



# Road Traffic Act 1988

## 1988 CHAPTER 52

An Act to consolidate certain enactments relating to road traffic with amendments to give effect to recommendations of the Law Commission and the Scottish Law Commission.

[15th November 1988]

**B**E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

### PART I

#### PRINCIPAL ROAD SAFETY PROVISIONS

##### *Driving offences*

1. A person who causes the death of another person by driving a motor vehicle on a road recklessly is guilty of an offence. Causing death by reckless driving.
2. A person who drives a motor vehicle on a road recklessly is guilty of an offence. Reckless driving.
3. If a person drives a motor vehicle on a road without due care and attention, or without reasonable consideration for other persons using the road, he is guilty of an offence. Careless, and inconsiderate, driving.

##### *Motor vehicles: drink and drugs*

- 4.—(1) A person who, when driving or attempting to drive a motor vehicle on a road or other public place, is unfit to drive through drink or drugs is guilty of an offence. Driving, or being in charge, when under influence of drink or drugs.
- (2) Without prejudice to subsection (1) above, a person who, when in charge of a motor vehicle which is on a road or other public place, is unfit to drive through drink or drugs is guilty of an offence.

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(3) For the purposes of subsection (2) above, a person shall be deemed not to have been in charge of a motor vehicle if he proves that at the material time the circumstances were such that there was no likelihood of his driving it so long as he remained unfit to drive through drink or drugs.

(4) The court may, in determining whether there was such a likelihood as is mentioned in subsection (3) above, disregard any injury to him and any damage to the vehicle.

(5) For the purposes of this section, a person shall be taken to be unfit to drive if his ability to drive properly is for the time being impaired.

(6) A constable may arrest a person without warrant if he has reasonable cause to suspect that that person is or has been committing an offence under this section.

(7) For the purpose of arresting a person under the power conferred by subsection (6) above, a constable may enter (if need be by force) any place where that person is or where the constable, with reasonable cause, suspects him to be.

(8) Subsection (7) above does not extend to Scotland, and nothing in that subsection affects any rule of law in Scotland concerning the right of a constable to enter any premises for any purpose.

Driving or being  
in charge of a  
motor vehicle  
with alcohol  
concentration  
above prescribed  
limit.

**5.—(1) If a person—**

(a) drives or attempts to drive a motor vehicle on a road or other public place, or

(b) is in charge of a motor vehicle on a road or other public place, after consuming so much alcohol that the proportion of it in his breath, blood or urine exceeds the prescribed limit he is guilty of an offence.

(2) It is a defence for a person charged with an offence under subsection (1)(b) above to prove that at the time he is alleged to have committed the offence the circumstances were such that there was no likelihood of his driving the vehicle whilst the proportion of alcohol in his breath, blood or urine remained likely to exceed the prescribed limit.

(3) The court may, in determining whether there was such a likelihood as is mentioned in subsection (2) above, disregard any injury to him and any damage to the vehicle.

Breath tests.

**6.—(1) Where a constable in uniform has reasonable cause to suspect—**

(a) that a person driving or attempting to drive or in charge of a motor vehicle on a road or other public place has alcohol in his body or has committed a traffic offence whilst the vehicle was in motion, or

(b) that a person has been driving or attempting to drive or been in charge of a motor vehicle on a road or other public place with alcohol in his body and that that person still has alcohol in his body, or

(c) that a person has been driving or attempting to drive or been in charge of a motor vehicle on a road or other public place and has committed a traffic offence whilst the vehicle was in motion,

he may, subject to section 9 of this Act, require him to provide a specimen of breath for a breath test.

## PART I

(2) If an accident occurs owing to the presence of a motor vehicle on a road or other public place, a constable may, subject to section 9 of this Act, require any person who he has reasonable cause to believe was driving or attempting to drive or in charge of the vehicle at the time of the accident to provide a specimen of breath for a breath test.

(3) A person may be required under subsection (1) or subsection (2) above to provide a specimen either at or near the place where the requirement is made or, if the requirement is made under subsection (2) above and the constable making the requirement thinks fit, at a police station specified by the constable.

(4) A person who, without reasonable excuse, fails to provide a specimen of breath when required to do so in pursuance of this section is guilty of an offence.

(5) A constable may arrest a person without warrant if—

- (a) as a result of a breath test he has reasonable cause to suspect that the proportion of alcohol in that person's breath or blood exceeds the prescribed limit, or
- (b) that person has failed to provide a specimen of breath for a breath test when required to do so in pursuance of this section and the constable has reasonable cause to suspect that he has alcohol in his body,

but a person shall not be arrested by virtue of this subsection when he is at a hospital as a patient.

(6) A constable may, for the purpose of requiring a person to provide a specimen of breath under subsection (2) above in a case where he has reasonable cause to suspect that the accident involved injury to another person or of arresting him in such a case under subsection (5) above, enter (if need be by force) any place where that person is or where the constable, with reasonable cause, suspects him to be.

(7) Subsection (6) above does not extend to Scotland, and nothing in that subsection shall affect any rule of law in Scotland concerning the right of a constable to enter any premises for any purpose.

(8) In this section "traffic offence" means an offence under—

- (a) any provision of Part II of the Public Passenger Vehicles Act 1981, 1981 c. 14.
- (b) any provision of the Road Traffic Regulation Act 1984, 1984 c. 27.
- (c) any provision of the Road Traffic Offenders Act 1988 except Part III, or 1988 c. 53.
- (d) any provision of this Act except Part V.

7.—(1) In the course of an investigation into whether a person has committed an offence under section 4 or 5 of this Act a constable may, subject to the following provisions of this section and section 9 of this Act, require him—

Provision of  
specimens for  
analysis.

- (a) to provide two specimens of breath for analysis by means of a device of a type approved by the Secretary of State, or
- (b) to provide a specimen of blood or urine for a laboratory test.

(2) A requirement under this section to provide specimens of breath can only be made at a police station.

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(3) A requirement under this section to provide a specimen of blood or urine can only be made at a police station or at a hospital; and it cannot be made at a police station unless—

- (a) the constable making the requirement has reasonable cause to believe that for medical reasons a specimen of breath cannot be provided or should not be required, or
- (b) at the time the requirement is made a device or a reliable device of the type mentioned in subsection (1)(a) above is not available at the police station or it is then for any other reason not practicable to use such a device there, or
- (c) the suspected offence is one under section 4 of this Act and the constable making the requirement has been advised by a medical practitioner that the condition of the person required to provide the specimen might be due to some drug;

but may then be made notwithstanding that the person required to provide the specimen has already provided or been required to provide two specimens of breath.

(4) If the provision of a specimen other than a specimen of breath may be required in pursuance of this section the question whether it is to be a specimen of blood or a specimen of urine shall be decided by the constable making the requirement, but if a medical practitioner is of the opinion that for medical reasons a specimen of blood cannot or should not be taken the specimen shall be a specimen of urine.

(5) A specimen of urine shall be provided within one hour of the requirement for its provision being made and after the provision of a previous specimen of urine.

(6) A person who, without reasonable excuse, fails to provide a specimen when required to do so in pursuance of this section is guilty of an offence.

(7) A constable must, on requiring any person to provide a specimen in pursuance of this section, warn him that a failure to provide it may render him liable to prosecution.

Choice of  
specimens of  
breath.

8.—(1) Subject to subsection (2) below, of any two specimens of breath provided by any person in pursuance of section 7 of this Act that with the lower proportion of alcohol in the breath shall be used and the other shall be disregarded.

(2) If the specimen with the lower proportion of alcohol contains no more than 50 microgrammes of alcohol in 100 millilitres of breath, the person who provided it may claim that it should be replaced by such specimen as may be required under section 7(4) of this Act and, if he then provides such a specimen, neither specimen of breath shall be used.

(3) The Secretary of State may by regulations substitute another proportion of alcohol in the breath for that specified in subsection (2) above.

Protection for  
hospital patients.

9.—(1) While a person is at a hospital as a patient he shall not be required to provide a specimen of breath for a breath test or to provide a specimen for a laboratory test unless the medical practitioner in immediate charge of his case has been notified of the proposal to make the requirement; and—



- (a) if the requirement is then made, it shall be for the provision of a specimen at the hospital, but
- (b) if the medical practitioner objects on the ground specified in subsection (2) below, the requirement shall not be made.

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(2) The ground on which the medical practitioner may object is that the requirement or the provision of a specimen or, in the case of a specimen of blood or urine, the warning required under section 7(7) of this Act, would be prejudicial to the proper care and treatment of the patient.

10.—(1) Subject to subsections (2) and (3) below, a person required to provide a specimen of breath, blood or urine may afterwards be detained at a police station until it appears to the constable that, were that person then driving or attempting to drive a motor vehicle on a road, he would not be committing an offence under section 4 or 5 of this Act.

Detention of  
persons affected  
by alcohol or a  
drug.

(2) A person shall not be detained in pursuance of this section if it appears to a constable that there is no likelihood of his driving or attempting to drive a motor vehicle whilst his ability to drive properly is impaired or whilst the proportion of alcohol in his breath, blood or urine exceeds the prescribed limit.

(3) A constable must consult a medical practitioner on any question arising under this section whether a person's ability to drive properly is or might be impaired through drugs and must act on the medical practitioner's advice.

11.—(1) The following provisions apply for the interpretation of sections 4 to 10 of this Act.

Interpretation of  
sections 4 to 10.

(2) In those sections—

“breath test” means a preliminary test for the purpose of obtaining, by means of a device of a type approved by the Secretary of State, an indication whether the proportion of alcohol in a person's breath or blood is likely to exceed the prescribed limit,

“drug” includes any intoxicant other than alcohol,

“fail” includes refuse,

“hospital” means an institution which provides medical or surgical treatment for in-patients or out-patients,

“the prescribed limit” means, as the case may require—

(a) 35 microgrammes of alcohol in 100 millilitres of breath,

(b) 80 milligrammes of alcohol in 100 millilitres of blood,  
or

(c) 107 milligrammes of alcohol in 100 millilitres of urine,  
or such other proportion as may be prescribed by regulations made by the Secretary of State.

(3) A person does not provide a specimen of breath for a breath test or for analysis unless the specimen—

- (a) is sufficient to enable the test or the analysis to be carried out, and
- (b) is provided in such a way as to enable the objective of the test or analysis to be satisfactorily achieved.

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(4) A person provides a specimen of blood if and only if he consents to its being taken by a medical practitioner and it is so taken.

*Motor racing and motoring events on public ways*

Motor racing on public ways.

12.—(1) A person who promotes or takes part in a race or trial of speed between motor vehicles on a public way is guilty of an offence.

(2) In this section “public way” means, in England and Wales, a public highway and, in Scotland, a public road.

Regulation of motoring events on public ways.

13.—(1) A person who promotes or takes part in a competition or trial (other than a race or trial of speed) involving the use of motor vehicles on a public way is guilty of an offence unless the competition or trial—

(a) is authorised, and

(b) is conducted in accordance with any conditions imposed, by or under regulations under this section.

(2) The Secretary of State may by regulations authorise, or provide for authorising, the holding of competitions or trials (other than races or trials of speed) involving the use of motor vehicles on public ways either—

(a) generally, or

(b) as regards any area, or as regards any class or description of competition or trial or any particular competition or trial,

subject to such conditions, including conditions requiring the payment of fees, as may be imposed by or under the regulations.

(3) Regulations under this section may—

(a) prescribe the procedure to be followed, and the particulars to be given, in connection with applications for authorisation under the regulations, and

(b) make different provision for different classes or descriptions of competition or trial.

(4) In this section “public way” means, in England and Wales, a public highway and, in Scotland, a public road.

*Protective measures: seat belts, helmets, etc.*

Seat belts: adults.

14.—(1) The Secretary of State may make regulations requiring, subject to such exceptions as may be prescribed, persons who are driving or riding in motor vehicles on a road to wear seat belts of such description as may be prescribed.

(2) Regulations under this section—

(a) may make different provision in relation to different classes of vehicles, different descriptions of persons and different circumstances,

(b) shall include exceptions for—

(i) the users of vehicles constructed or adapted for the delivery of goods or mail to consumers or addresses, as the case may be, while engaged in making local rounds of deliveries,

(ii) the drivers of vehicles while performing a manoeuvre which includes reversing,

## PART I

(iii) any person holding a valid certificate signed by a medical practitioner to the effect that it is inadvisable on medical grounds for him to wear a seat belt,

- (c) may make any prescribed exceptions subject to such conditions as may be prescribed, and
- (d) may prescribe cases in which a fee of a prescribed amount may be charged on an application for any certificate required as a condition of any prescribed exception.

(3) A person who drives or rides in a motor vehicle in contravention of regulations under this section is guilty of an offence; but, notwithstanding any enactment or rule of law, no person other than the person actually committing the contravention is guilty of an offence by reason of the contravention.

(4) If the holder of any such certificate as is referred to in subsection (2)(b) above is informed by a constable that he may be prosecuted for an offence under subsection (3) above, he is not in proceedings for that offence entitled to rely on the exception afforded to him by the certificate unless—

- (a) it is produced to the constable at the time he is so informed, or
- (b) it is produced—
  - (i) within seven days after the date on which he is so informed, or
  - (ii) as soon as is reasonably practicable,at such police station as he may have specified to the constable, or
- (c) where it is not produced at such police station, it is not reasonably practicable for it to be produced there before the day on which the proceedings are commenced.

(5) For the purposes of subsection (4) above, the laying of the information or, in Scotland, the service of the complaint on the accused shall be treated as the commencement of the proceedings.

(6) Regulations under this section requiring the wearing of seat belts by persons riding in motor vehicles shall not apply to children under the age of fourteen years.

15.—(1) Except as provided by regulations, where a child under the age of fourteen years is in the front of a motor vehicle, a person must not without reasonable excuse drive the vehicle on a road unless the child is wearing a seat belt in conformity with regulations.

Restriction on carrying children not wearing seat belts in motor vehicles.

(2) It is an offence for a person to drive a motor vehicle in contravention of subsection (1) above.

(3) Except as provided by regulations, where a child under the age of fourteen years is in the rear of a motor vehicle and any seat belt is fitted in the rear of that vehicle, a person must not without reasonable excuse drive the vehicle on a road unless the child is wearing a seat belt in conformity with regulations.

(4) It is an offence for a person to drive a motor vehicle in contravention of subsection (3) above.

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## (5) Provision may be made by regulations—

- (a) excepting from the prohibition in subsection (1) or (3) above children of any prescribed description, vehicles of a prescribed class or the driving of vehicles in such circumstances as may be prescribed,
- (b) defining in relation to any class of vehicle what part of the vehicle is to be regarded as the front of the vehicle for the purposes of subsection (1) above or as the rear of the vehicle for the purposes of subsection (3) above,
- (c) prescribing for the purposes of subsection (1) or (3) above the descriptions of seat belt to be worn by children of any prescribed description and the manner in which such seat belt is to be fixed and used.

(6) Regulations made for the purposes of subsection (3) above shall include an exemption for any child holding a valid certificate signed by a medical practitioner to the effect that it is inadvisable on medical grounds for him to wear a seat belt.

(7) If the driver of a motor vehicle is informed by a constable that he may be prosecuted for an offence under subsection (4) above, he is not in proceedings for that offence entitled to rely on an exception afforded to a child by a certificate referred to in subsection (6) above unless—

- (a) it is produced to the constable at the time he is so informed, or
- (b) it is produced—
  - (i) within seven days after the date on which he is so informed, or
  - (ii) as soon as is reasonably practicable, at such police station as he may have specified to the constable, or
- (c) where it is not produced at such police station, it is not reasonably practicable for it to be produced there before the day on which the proceedings are commenced.

(8) For the purposes of subsection (7) above, the laying of the information or, in Scotland, the service of the complaint on the accused shall be treated as the commencement of the proceedings.

## (9) In this section—

“regulations” means regulations made by the Secretary of State under this section, and

“seat belt” includes any description of restraining device for a child and any reference to wearing a seat belt is to be construed accordingly.

(10) This section is affected by Schedule 5 to the Road Traffic (Consequential Provisions) Act 1988 (transitory modifications).

1988 c.54.

Wearing of  
protective  
headgear.

16.—(1) The Secretary of State may make regulations requiring, subject to such exceptions as may be specified in the regulations, persons driving or riding (otherwise than in side-cars) on motor cycles of any class specified in the regulations to wear protective headgear of such description as may be so specified.

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(2) A requirement imposed by regulations under this section shall not apply to any follower of the Sikh religion while he is wearing a turban.

(3) Regulations under this section may make different provision in relation to different circumstances.

(4) A person who drives or rides on a motor cycle in contravention of regulations under this section is guilty of an offence; but notwithstanding any enactment or rule of law no person other than the person actually committing the contravention is guilty of an offence by reason of the contravention unless the person actually committing the contravention is a child under the age of sixteen years.

17.—(1) The Secretary of State may make regulations prescribing (by reference to shape, construction or any other quality) types of helmet recommended as affording protection to persons on or in motor cycles, or motor cycles of different classes, from injury in the event of accident.

Protective helmets for motor cyclists.

(2) If a person sells, or offers for sale, a helmet as a helmet for affording such protection and the helmet is neither—

(a) of a type prescribed under this section, nor

(b) of a type authorised under regulations made under this section and sold or offered for sale subject to any conditions specified in the authorisation,

subject to subsection (3) below, he is guilty of an offence.

(3) A person shall not be convicted of an offence under this section in respect of the sale or offer for sale of a helmet if he proves that it was sold or, as the case may be, offered for sale for export from Great Britain.

(4) The provisions of Schedule 1 to this Act shall have effect in relation to contraventions of this section.

(5) In this section and that Schedule “helmet” includes any head-dress, and references in this section to selling or offering for sale include respectively references to letting on hire and offering to let on hire.

18.—(1) The Secretary of State may make regulations prescribing (by reference to shape, construction or any other quality) types of appliance of any description to which this section applies as authorised for use by persons driving or riding (otherwise than in sidecars) on motor cycles of any class specified in the regulations.

Authorisation of head-worn appliances for use on motor cycles.

(2) Regulations under this section—

(a) may impose restrictions or requirements with respect to the circumstances in which appliances of any type prescribed by the regulations may be used, and

(b) may make different provision in relation to different circumstances.

(3) If a person driving or riding on a motor cycle on a road uses an appliance of any description for which a type is prescribed under this section and that appliance—

(a) is not of a type so prescribed, or

(b) is otherwise used in contravention of regulations under this section,

he is guilty of an offence.

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(4) If a person sells, or offers for sale, an appliance of any such description as authorised for use by persons on or in motor cycles, or motor cycles of any class, and that appliance is not of a type prescribed under this section as authorised for such use, he is, subject to subsection (5) below, guilty of an offence.

(5) A person shall not be convicted of an offence under this section in respect of the sale or offer for sale of an appliance if he proves that it was sold or, as the case may be, offered for sale for export from Great Britain.

(6) The provisions of Schedule 1 to this Act shall have effect in relation to contraventions of subsection (4) above.

(7) This section applies to appliances of any description designed or adapted for use—

- (a) with any headgear, or
  - (b) by being attached to or placed upon the head,
- (as, for example, eye protectors or earphones).

(8) References in this section to selling or offering for sale include respectively references to letting on hire and offering to let on hire.

*Stopping on verges, etc., or in dangerous positions, etc.*

Prohibition of  
parking of  
HGVs on verges,  
central  
reservations and  
footways.

19.—(1) Subject to subsection (2) below, a person who parks a heavy commercial vehicle (as defined in section 20 of this Act) wholly or partly—

- (a) on the verge of a road, or
  - (b) on any land situated between two carriageways and which is not a footway, or
  - (c) on a footway,
- is guilty of an offence.

(2) A person shall not be convicted of an offence under this section in respect of a vehicle if he proves to the satisfaction of the court—

- (a) that it was parked in accordance with permission given by a constable in uniform, or
- (b) that it was parked in contravention of this section for the purpose of saving life or extinguishing fire or meeting any other like emergency, or
- (c) that it was parked in contravention of this section but the conditions specified in subsection (3) below were satisfied.

(3) The conditions mentioned in subsection (2)(c) above are—

- (a) that the vehicle was parked on the verge of a road or on a footway for the purpose of loading or unloading, and
- (b) that the loading or unloading of the vehicle could not have been satisfactorily performed if it had not been parked on the footway or verge, and
- (c) that the vehicle was not left unattended at any time while it was so parked.

(4) In this section “carriageway” and “footway”, in relation to England and Wales, have the same meanings as in the Highways Act 1980.

**20.—(1)** In section 19 of this Act, “heavy commercial vehicle” means any goods vehicle which has an operating weight exceeding 7.5 tonnes.

**PART I**  
Definition of  
“heavy  
commercial  
vehicle” for the  
purposes of  
section 19.

**(2)** The operating weight of a goods vehicle for the purposes of this section is—

- (a)** in the case of a motor vehicle not drawing a trailer or in the case of a trailer, its maximum laden weight,
- (b)** in the case of an articulated vehicle, its maximum laden weight (if it has one) and otherwise the aggregate maximum laden weight of all the individual vehicles forming part of that articulated vehicle, and
- (c)** in the case of a motor vehicle (other than an articulated vehicle) drawing one or more trailers, the aggregate maximum laden weight of the motor vehicle and the trailer or trailers attached to it.

**(3)** In this section “articulated vehicle” means a motor vehicle with a trailer so attached to it as to be partially superimposed upon it; and references to the maximum laden weight of a vehicle are references to the total laden weight which must not be exceeded in the case of that vehicle if it is to be used in Great Britain without contravening any regulations for the time being in force under section 41 of this Act.

**(4)** In this section, and in the definition of “goods vehicle” in section 192 of this Act as it applies for the purposes of this section, “trailer” means any vehicle other than a motor vehicle.

**(5)** The Secretary of State may by regulations amend subsections (1) and (2) above (whether as originally enacted or as previously amended under this subsection)—

- (a)** by substituting weights of a different description for any of the weights there mentioned, or
- (b)** in the case of subsection (1) above, by substituting a weight of a different description or amount, or a weight different both in description and amount, for the weight there mentioned.

**(6)** Different regulations may be made under subsection (5) above as respects different classes of vehicles or as respects the same class of vehicles in different circumstances and as respects different times of the day or night and as respects different localities.

**(7)** Regulations under subsection (5) above shall not so amend subsection (1) above that there is any case in which a goods vehicle whose operating weight (ascertained in accordance with subsection (2) above as originally enacted) does not exceed 7.5 tonnes is a heavy commercial vehicle for any of the purposes of section 19 of this Act.

**21.—(1)** Subject to the provisions of this section, any person who, without lawful authority, drives or parks a motor vehicle wholly or partly on a cycle track is guilty of an offence.

Prohibition of  
driving or  
parking on cycle  
tracks.

**(2)** A person shall not be convicted of an offence under subsection (1) above with respect to a vehicle if he proves to the satisfaction of the court—

- (a)** that the vehicle was driven or (as the case may be) parked in contravention of that subsection for the purpose of saving life, or extinguishing fire or meeting any other like emergency, or

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(b) that the vehicle was owned or operated by a highway authority or by a person discharging functions on behalf of a highway authority and was driven or (as the case may be) parked in contravention of that subsection in connection with the carrying out by or on behalf of that authority of any of the following, that is, the cleansing, maintenance or improvement of, or the maintenance or alteration of any structure or other work situated in, the cycle track or its verges, or

(c) that the vehicle was owned or operated by statutory undertakers and was driven or (as the case may be) parked in contravention of that subsection in connection with the carrying out by those undertakers of any works in relation to any apparatus belonging to or used by them for the purpose of their undertaking.

(3) In this section—

1980 c. 66.

(a) “cycle track” and other expressions used in this section and in the Highways Act 1980 have the same meaning as in that Act,

1984 c. 12.

(b) in subsection (2)(c) above “statutory undertakers” means any body who are statutory undertakers within the meaning of the Highways Act 1980, any sewerage authority within the meaning of that Act or the operator of a telecommunications code system (as defined by paragraph 1(1) of Schedule 4 to the Telecommunications Act 1984), and in relation to any such sewerage authority “apparatus” includes sewers or sewerage disposal works.

(4) This section does not extend to Scotland.

Leaving vehicles  
in dangerous  
positions.

22. If a person in charge of a vehicle causes or permits the vehicle or a trailer drawn by it to remain at rest on a road in such a position or in such condition or in such circumstances as to be likely to cause danger to other persons using the road, he is guilty of an offence.

*Other restrictions in interests of safety*

Restriction of  
carriage of  
persons on  
motor cycles.

23.—(1) Not more than one person in addition to the driver may be carried on a two-wheeled motor cycle.

(2) No person in addition to the driver may be carried on a two-wheeled motor cycle otherwise than sitting astride the motor cycle and on a proper seat securely fixed to the motor cycle behind the driver's seat.

(3) If a person is carried on a motor cycle in contravention of this section, the driver of the motor cycle is guilty of an offence.

Restriction of  
carriage of  
persons on  
bicycles.

24.—(1) Not more than one person may be carried on a road on a bicycle not propelled by mechanical power unless it is constructed or adapted for the carriage of more than one person.

(2) In this section—

(a) references to a person carried on a bicycle include references to a person riding the bicycle, and

(b) “road” includes bridleway.

(3) If a person is carried on a bicycle in contravention of subsection (1) above, each of the persons carried is guilty of an offence.



**25.** If, while a motor vehicle is on a road or on a parking place provided by a local authority, a person—

(a) gets on to the vehicle, or

(b) tampers with the brake or other part of its mechanism,  
without lawful authority or reasonable cause he is guilty of an offence.

**PART I**  
Tampering with  
motor vehicles.

**26.—**(1) If, for the purpose of being carried, a person without lawful authority or reasonable cause takes or retains hold of, or gets on to, a motor vehicle or trailer while in motion on a road he is guilty of an offence.

Holding or  
getting on to  
vehicle in order  
to be towed or  
carried.

(2) If, for the purpose of being drawn, a person takes or retains hold of a motor vehicle or trailer while in motion on a road he is guilty of an offence.

**27.—**(1) A person who causes or permits a dog to be on a designated road without the dog being held on a lead is guilty of an offence.

Control of dogs  
on roads.

(2) In this section “designated road” means a length of road specified by an order in that behalf of the local authority in whose area the length of road is situated.

(3) The powers which under subsection (2) above are exercisable by a local authority in England and Wales are, in the case of a road part of the width of which is in the area of one local authority and part in the area of another, exercisable by either authority with the consent of the other.

(4) An order under this section may provide that subsection (1) above shall apply subject to such limitations or exceptions as may be specified in the order, and (without prejudice to the generality of this subsection) subsection (1) above does not apply to dogs proved—

(a) to be kept for driving or tending sheep or cattle in the course of a trade or business, or

(b) to have been at the material time in use under proper control for sporting purposes.

(5) An order under this section shall not be made except after consultation with the chief officer of police.

(6) The Secretary of State may make regulations—

(a) prescribing the procedure to be followed in connection with the making of orders under this section, and

(b) requiring the authority making such an order to publish in such manner as may be prescribed by the regulations notice of the making and effect of the order.

(7) In this section “local authority” means—

(a) in relation to England and Wales, the council of a county, metropolitan district or London borough or the Common Council of the City of London, and

(b) in relation to Scotland, a regional or islands council.

(8) The power conferred by this section to make an order includes power, exercisable in like manner and subject to the like conditions, to vary or revoke it.

## PART I

*Cycling offences and cycle racing*

## Reckless cycling.

28. A person who rides a cycle on a road recklessly is guilty of an offence.

In this section "road" includes a bridleway.

## Careless, and inconsiderate, cycling.

29. If a person rides a cycle on a road without due care and attention, or without reasonable consideration for other persons using the road, he is guilty of an offence.

In this section "road" includes a bridleway.

## Cycling when under influence of drink or drugs.

30.—(1) A person who, when riding a cycle on a road or other public place, is unfit to ride through drink or drugs (that is to say, is under the influence of drink or a drug to such an extent as to be incapable of having proper control of the cycle) is guilty of an offence.

(2) In Scotland a constable may arrest without warrant a person committing an offence under this section.

(3) In this section "road" includes a bridleway.

## Regulation of cycle racing on public ways.

31.—(1) A person who promotes or takes part in a race or trial of speed on a public way between cycles is guilty of an offence, unless the race or trial—

(a) is authorised, and

(b) is conducted in accordance with any conditions imposed, by or under regulations under this section.

(2) The Secretary of State may by regulations authorise, or provide for authorising, for the purposes of subsection (1) above, the holding on a public way other than a bridleway—

(a) of races or trials of speed of any class or description, or

(b) of a particular race or trial of speed,

in such cases as may be prescribed and subject to such conditions as may be imposed by or under the regulations.

(3) Regulations under this section may—

(a) prescribe the procedure to be followed, and the particulars to be given, in connection with applications for authorisation under the regulations, and

(b) make different provision for different classes or descriptions of race or trial.

(4) Without prejudice to any other powers exercisable in that behalf, the chief officer of police may give directions with respect to the movement of, or the route to be followed by, vehicular traffic during any period, being directions which it is necessary or expedient to give in relation to that period to prevent or mitigate—

(a) congestion or obstruction of traffic, or

(b) danger to or from traffic,

in consequence of the holding of a race or trial of speed authorised by or under regulations under this section.

(5) Directions under subsection (4) above may include a direction that any road or part of a road specified in the direction shall be closed during the period to vehicles or to vehicles of a class so specified.

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(6) In this section "public way" means, in England and Wales, a public highway and, in Scotland, a public road and includes a bridleway but not a footpath.

32.—(1) An electrically assisted pedal cycle of a class specified in regulations made for the purposes of section 189 of this Act and section 140 of the Road Traffic Regulation Act 1984 shall not be driven on a road by a person under the age of fourteen.

Electrically assisted pedal cycles.  
1984 c. 27.

(2) A person who—

(a) drives such a pedal cycle, or

(b) knowing or suspecting that another person is under the age of fourteen, causes or permits him to drive such a pedal cycle,

in contravention of subsection (1) above is guilty of an offence.

*Use of motor vehicles away from roads*

33.—(1) A person must not promote or take part in a trial of any description between motor vehicles on a footpath or bridleway unless the holding of the trial has been authorised under this section by the local authority.

Control of use of footpaths and bridleways for motor vehicle trials.

(2) A local authority shall not give an authorisation under this section unless satisfied that consent in writing to the use of any length of footpath or bridleway for the purposes of the trial has been given by the owner and by the occupier of the land over which that length of footpath or bridleway runs, and any such authorisation may be given subject to compliance with such conditions as the authority think fit.

(3) A person who—

(a) contravenes subsection (1) above, or

(b) fails to comply with any conditions subject to which an authorisation under this section has been granted,

is guilty of an offence.

(4) The holding of a trial authorised under this section is not affected by any statutory provision prohibiting or restricting the use of footpaths or bridleways or a specified footpath or bridleway; but this section does not prejudice any right or remedy of a person as having any interest in land.

(5) In this section "local authority"—

(a) in relation to England and Wales, means the council of a county, metropolitan district or London borough, and

(b) in relation to Scotland, means a regional or islands council.

34.—(1) Subject to the provisions of this section, if without lawful authority a person drives a motor vehicle—

(a) on to or upon any common land, moorland or land of any other description, not being land forming part of a road, or

Prohibition of driving motor vehicles elsewhere than on roads.

## PART I

(b) on any road being a footpath or bridleway,  
he is guilty of an offence.

(2) It is not an offence under this section to drive a motor vehicle on any land within fifteen yards of a road, being a road on which a motor vehicle may lawfully be driven, for the purpose only of parking the vehicle on that land.

(3) A person shall not be convicted of an offence under this section with respect to a vehicle if he proves to the satisfaction of the court that it was driven in contravention of this section for the purpose of saving life or extinguishing fire or meeting any other like emergency.

(4) It is hereby declared that nothing in this section prejudices the operation of—

1925 c. 20.

(a) section 193 of the Law of Property Act 1925 (rights of the public over commons and waste lands), or

(b) any byelaws applying to any land,

or affects the law of trespass to land or any right or remedy to which a person may by law be entitled in respect of any such trespass or in particular confers a right to park a vehicle on any land.

*Directions to traffic and to pedestrians and traffic signs*

Drivers to  
comply with  
traffic directions.

35.—(1) Where a constable is for the time being engaged in the regulation of traffic in a road, a person driving or propelling a vehicle who neglects or refuses—

(a) to stop the vehicle, or

(b) to make it proceed in, or keep to, a particular line of traffic,

when directed to do so by the constable in the execution of his duty is guilty of an offence.

(2) Where—

(a) a traffic survey of any description is being carried out on or in the vicinity of a road, and

(b) a constable gives to a person driving or propelling a vehicle a direction—

(i) to stop the vehicle,

(ii) to make it proceed in, or keep to, a particular line of traffic, or

(iii) to proceed to a particular point on or near the road on which the vehicle is being driven or propelled,

being a direction given for the purposes of the survey (but not a direction requiring any person to provide any information for the purposes of a traffic survey),

the person is guilty of an offence if he neglects or refuses to comply with the direction.

(3) The power to give such a direction as is referred to in subsection (2) above for the purposes of a traffic survey shall be so exercised as not to cause any unreasonable delay to a person who indicates that he is unwilling to provide any information for the purposes of the survey.

**36.—(1) Where a traffic sign, being a sign—**

- (a) of the prescribed size, colour and type, or**
- (b) of another character authorised by the Secretary of State under the provisions in that behalf of the Road Traffic Regulation Act 1984,**

**PART I**  
**Drivers to**  
**comply with**  
**traffic signs.**

**1984 c. 27.**

has been lawfully placed on or near a road, a person driving or propelling a vehicle who fails to comply with the indication given by the sign is guilty of an offence.

**(2) A traffic sign shall not be treated for the purposes of this section as having been lawfully placed unless either—**

- (a) the indication given by the sign is an indication of a statutory prohibition, restriction or requirement, or**
- (b) it is expressly provided by or under any provision of the Traffic Acts that this section shall apply to the sign or to signs of a type of which the sign is one;**

and, where the indication mentioned in paragraph (a) of this subsection is of the general nature only of the prohibition, restriction or requirement to which the sign relates, a person shall not be convicted of failure to comply with the indication unless he has failed to comply with the prohibition, restriction or requirement to which the sign relates.

**(3) For the purposes of this section a traffic sign placed on or near a road shall be deemed—**

- (a) to be of the prescribed size, colour and type, or of another character authorised by the Secretary of State under the provisions in that behalf of the Road Traffic Regulation Act 1984, and**
- (b) (subject to subsection (2) above) to have been lawfully so placed,**

unless the contrary is proved.

**(4) Where a traffic survey of any description is being carried out on or in the vicinity of a road, this section applies to a traffic sign by which a direction is given—**

- (a) to stop a vehicle,**
- (b) to make it proceed in, or keep to, a particular line of traffic, or**
- (c) to proceed to a particular point on or near the road on which the vehicle is being driven or propelled,**

being a direction given for the purposes of the survey (but not a direction requiring any person to provide any information for the purposes of the survey).

**(5) Regulations made by the Secretary of State for Transport, the Secretary of State for Wales and the Secretary of State for Scotland acting jointly may specify any traffic sign for the purposes of column 5 of the**

PART I  
1988 c. 53.

entry in Schedule 2 to the Road Traffic Offenders Act 1988 relating to offences under this section (offences committed by failing to comply with certain signs involve discretionary disqualification).

Directions to  
pedestrians.

37. Where a constable in uniform is for the time being engaged in the regulation of vehicular traffic in a road, a person on foot who proceeds across or along the carriageway in contravention of a direction to stop given by the constable in the execution of his duty, either to persons on foot or to persons on foot and other traffic, is guilty of an offence.

*Promotion of road safety*

The Highway  
Code.

38.—(1) The Highway Code shall continue to have effect, subject however to revision in accordance with the following provisions of this section.

(2) Subject to the following provisions of this section, the Secretary of State may from time to time revise the Highway Code by revoking, varying, amending or adding to the provisions of the Code in such manner as he thinks fit.

(3) Where the Secretary of State proposes to revise the Highway Code by making any alterations in the provisions of the Code (other than alterations merely consequential on the passing, amendment or repeal of any statutory provision) he must lay the proposed alterations before both Houses of Parliament and must not make the proposed revision until after the end of a period of forty days beginning with the day on which the alterations were so laid.

(4) If within the period mentioned in subsection (3) above either House resolves that the proposed alterations be not made, the Secretary of State must not make the proposed revision (but without prejudice to the laying before Parliament of further proposals for alteration in accordance with that subsection).

(5) Before revising the Highway Code by making any alterations in its provisions which are required by subsection (3) above to be laid before Parliament, the Secretary of State must consult with such representative organisations as he thinks fit.

(6) The Secretary of State must cause the Highway Code to be printed and may cause copies of it to be sold to the public at such price as he may determine.

1981 c. 14.  
1985 c. 67.

(7) A failure on the part of a person to observe a provision of the Highway Code shall not of itself render that person liable to criminal proceedings of any kind but any such failure may in any proceedings (whether civil or criminal, and including proceedings for an offence under the Traffic Acts, the Public Passenger Vehicles Act 1981 or sections 18 to 23 of the Transport Act 1985) be relied upon by any party to the proceedings as tending to establish or negative any liability which is in question in those proceedings.

1930 c. 43.

(8) In this section "the Highway Code" means the code comprising directions for the guidance of persons using roads issued under section 45 of the Road Traffic Act 1930, as from time to time revised under this section or under any previous enactment.

(9) For the purposes of subsection (3) above—

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- (a) “statutory provision” means a provision contained in an Act or in subordinate legislation within the meaning of the Interpretation Act 1978 (and the reference to the passing or repeal of any such provision accordingly includes the making or revocation of any such provision),
- (b) where the proposed alterations are laid before each House of Parliament on different days, the later day shall be taken to be the day on which they were laid before both Houses, and
- (c) in reckoning any period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

1978 c. 30.

**39.—(1)** The Secretary of State may, with the approval of the Treasury, provide for promoting road safety by disseminating information or advice relating to the use of roads.

Powers of Secretary of State and local authorities as to giving road safety information and training.

(2) Each local authority must prepare and carry out a programme of measures designed to promote road safety and may make contributions towards the cost of measures for promoting road safety taken by other authorities or bodies.

(3) Without prejudice to the generality of subsection (2) above, in pursuance of their duty under that subsection each local authority—

- (a) must carry out studies into accidents arising out of the use of vehicles on roads or parts of roads, other than trunk roads, within their area,
- (b) must, in the light of those studies, take such measures as appear to the authority to be appropriate to prevent such accidents, including the dissemination of information and advice relating to the use of roads, the giving of practical training to road users or any class or description of road users, the construction, improvement, maintenance or repair of roads for which they are the highway authority (in Scotland, local roads authority) and other measures taken in the exercise of their powers for controlling, protecting or assisting the movement of traffic on roads, and
- (c) in constructing new roads, must take such measures as appear to the authority to be appropriate to reduce the possibilities of such accidents when the roads come into use.

(4) In this section “local authority” means—

- (a) in relation to England and Wales, the council of a county, metropolitan district or London borough or the Common Council of the City of London,
- (b) in relation to Scotland, a regional or islands council.

**PART I**

Powers of Secretary of State to subsidise bodies other than local authorities for giving road safety information and training.

Regulation of construction, weight, equipment and use of vehicles.

**40.** The Secretary of State may, with the approval of the Treasury, make out of monies provided by Parliament contributions towards the cost of measures for promoting road safety, being measures taken by authorities or bodies other than local authorities (within the meaning of section 39 of this Act).

**PART II****CONSTRUCTION AND USE OF VEHICLES AND EQUIPMENT***General regulation of construction, use etc.*

**41.—(1)** The Secretary of State may make regulations generally as to the use of motor vehicles and trailers on roads, their construction and equipment and the conditions under which they may be so used.

Subsections (2) to (4) below do not affect the generality of this subsection.

(2) In particular, the regulations may make provision with respect to any of the following matters—

- (a) the width, height and length of motor vehicles and trailers and the load carried by them, the diameter of wheels, and the width, nature and condition of tyres, of motor vehicles and trailers,
- (b) the emission or consumption of smoke, fumes or vapour and the emission of sparks, ashes and grit,
- (c) noise,
- (d) the maximum weight unladen of heavy locomotives and heavy motor cars, and the maximum weight laden of motor vehicles and trailers, and the maximum weight to be transmitted to the road or any specified area of the road by a motor vehicle or trailer of any class or by any part or parts of such a vehicle or trailer in contact with the road, and the conditions under which the weights may be required to be tested,
- (e) the particulars to be marked on motor vehicles and trailers,
- (f) the towing of or drawing of vehicles by motor vehicles,
- (g) the number and nature of brakes, and for securing that brakes, silencers and steering gear are efficient and kept in proper working order,
- (h) lighting equipment and reflectors,
- (j) the testing and inspection, by persons authorised by or under the regulations, of the brakes, silencers, steering gear, tyres, lighting equipment and reflectors of motor vehicles and trailers on any premises where they are (if the owner of the premises consents),
- (k) the appliances to be fitted for—
  - (i) signalling the approach of a motor vehicle, or
  - (ii) enabling the driver of a motor vehicle to become aware of the approach of another vehicle from the rear, or
  - (iii) intimating any intended change of speed or direction of a motor vehicle,

and the use of any such appliance, and for securing that any such appliance is efficient and kept in proper working order,



## PART II

- (l) for prohibiting the use of appliances fitted to motor vehicles for signalling their approach, being appliances for signalling by sound, at any times, or on or in any roads or localities, specified in the regulations.
- (3) The Secretary of State may, as respects goods vehicles, make regulations under this section—
- (a) prescribing other descriptions of weight which are not to be exceeded in the case of such vehicles,
  - (b) providing for the marking on such vehicles of weights of any description or other particulars by means of plates (of any material) fixed to them,
  - (c) providing for the circumstances in which any particulars which are to be marked on such vehicles are to be so marked,
  - (d) providing that weights of any description or other particulars which are to be marked on particular goods vehicles may be determined in accordance with regulations under section 49 of this Act.
- (4) Regulations under this section with respect to lighting equipment and reflectors—
- (a) may require that lamps be kept lit at such times and in such circumstances as may be specified in the regulations, and
  - (b) may extend, in like manner as to motor vehicles and trailers, to vehicles of any description used on roads, whether or not they are mechanically propelled.
- (5) Different regulations may be made under this section as respects different classes of vehicles or as respects the same class of vehicles in different circumstances and as respects different times of the day or night and as respects roads in different localities.
- (6) In framing regulations under this section prescribing a weight of any description which is not to be exceeded in the case of goods vehicles of a class for which a certificate of conformity or Minister's approval certificate may be issued under section 57 or 58 of this Act the Secretary of State must have regard to the design weight of the like description determined by virtue of section 54 of this Act for vehicles of that class and must secure that the first-mentioned weight does not exceed the design weight.
- (7) In this Part of this Act—
- “construction and use requirements” means requirements, whether applicable generally or at specified times or in specified circumstances, imposed under this section,
  - “plated particulars” means such particulars as are required to be marked on a goods vehicle in pursuance of regulations under this section by means of a plate,
  - “plated weights” means such weights as are required to be so marked.
- 42.—(1) Subject to subsection (2) below and sections 43 and 44 of this Act, a person who—
- (a) contravenes or fails to comply with any regulations under section 41 of this Act, or

Offence where regulations are contravened, etc.

## PART II

- (b) uses on a road a motor vehicle or trailer which does not comply with any such regulations or causes or permits a vehicle to be so used,

is guilty of an offence.

(2) In any proceedings for an offence under subsection (1) above in which there is alleged a contravention of or failure to comply with a construction and use requirement relating to any description of weight applicable to a goods vehicle, it shall be a defence to prove either—

- (a) that at the time when the vehicle was being used on the road—
- (i) it was proceeding to a weighbridge which was the nearest available one to the place where the loading of the vehicle was completed for the purpose of being weighed, or
  - (ii) it was proceeding from a weighbridge after being weighed to the nearest point at which it was reasonably practicable to reduce the weight to the relevant limit, without causing an obstruction on any road, or
- (b) in a case where the limit of that weight was not exceeded by more than 5 per cent.—
- (i) that that limit was not exceeded at the time when the loading of the vehicle was originally completed, and
  - (ii) that since that time no person has made any addition to the load.

Temporary  
exemption from  
application of  
regulations  
under section 41.

1971 c. 10.

43.—(1) Subject to subsections (2) to (4) below, where any regulations under section 41 of this Act contain provisions varying the requirements as regards the construction or weight of any class of vehicles, provision shall be made by the regulations for exempting from those provisions for such period, not being less than five years, as may be specified in the regulations any vehicle of that class registered under the Vehicles (Excise) Act 1971 before the expiration of one year from the making of the regulations.

(2) No such provision contained in regulations under section 41 as imposes or varies requirements with respect to the braking systems with which motor vehicles must be equipped shall be taken, for the purposes of subsection (1) above or of any other provision of the regulations, to be one relating to the construction of vehicles.

(3) Where regulations under section 41 contain provisions varying the requirements as regards the construction or weight of any class of vehicle, and the Secretary of State is satisfied—

- (a) that it is requisite that those provisions shall apply at a date specified in the regulations to vehicles registered before the expiration of one year from the making of the regulations, or to such of them as are specified in the regulations, and
- (b) that no undue hardship or inconvenience will be caused by their application then to those vehicles,

then, if the regulations state that the Secretary of State is so satisfied, subsection (1) above shall not apply in relation to those provisions.

(4) Subsection (1) above shall not apply in relation to—

**PART II**

- (a) regulations made with respect to any description of weight of goods vehicles, other than their maximum unladen weight, or
- (b) regulations made by virtue of section 41(3) of this Act.

**44.—**(1) The Secretary of State may by order authorise, subject to such restrictions and conditions as may be specified by or under the order, the use on roads—

Authorisation of use on roads of special vehicles not complying with regulations under section 41.

- (a) of special motor vehicles or trailers, or special types of motor vehicles or trailers, which are constructed either for special purposes or for tests or trials,
  - (b) of vehicles or trailers, or types of vehicles or trailers, constructed for use outside the United Kingdom,
  - (c) of new or improved types of motor vehicles or trailers, whether wheeled or wheelless, or of motor vehicles or trailers equipped with new or improved equipment or types of equipment, and
  - (d) of vehicles or trailers carrying loads of exceptional dimensions,
- and nothing in sections 41 and 42 of this Act shall prevent the use of such vehicles, trailers, or types in accordance with the order.

(2) The Secretary of State may by order make provision for securing that, subject to such restrictions and conditions as may be specified by or under the order, regulations under section 41 of this Act shall have effect in their application to such vehicles, trailers and types of vehicles and trailers as are mentioned in subsection (1) above subject to such modifications or exceptions as may be specified in the order.

(3) The powers conferred by this section on the Secretary of State to make orders shall be exercisable by statutory instrument except in the case of orders applying only to specified vehicles or to vehicles of specified persons, but in that excepted case (as in others) the order may be varied or revoked by subsequent order of the Secretary of State.

*Tests of vehicles other than goods vehicles to which section 49 applies*

**45.—**(1) This section applies to motor vehicles other than goods vehicles which are required by regulations under section 49 of this Act to be submitted for a vehicle test under that section and has effect for the purpose of ascertaining whether the prescribed statutory requirements relating to the construction and condition of motor vehicles or their accessories or equipment are complied with.

Tests of satisfactory condition of vehicles.

(2) The Secretary of State may by regulations make provision—

- (a) for the examination of vehicles submitted for examination under this section, and
- (b) for the issue, where it is found on such an examination that the requirements mentioned in subsection (1) above are complied with, of a certificate (in this Act referred to as a “test certificate”) that at the date of the examination the requirements were complied with in relation to the vehicle.

## PART II

(3) Examinations for the purposes of this section shall be carried out by—

- (a) persons, not being officers of the Secretary of State, authorised for those purposes by the Secretary of State (in this section and section 46 of this Act referred to as “authorised examiners”),
- (b) inspectors appointed by the Secretary of State, or
- (c) inspectors appointed by any council designated by the Secretary of State for the purposes of this section and section 46 of this Act, being the council of a county, district or London borough or the Common Council of the City of London or the council of a region or islands area.

(4) Where a test certificate is refused, the examiner or inspector must issue a notification of the refusal stating the grounds of the refusal, and a person aggrieved by the refusal or the grounds of the refusal may appeal to the Secretary of State.

(5) On any such appeal the Secretary of State must cause a further examination to be made and either issue a test certificate or issue a notification of the refusal stating the grounds of the refusal.

(6) For the purposes of their functions under this section the Secretary of State or a council designated for the purposes of this section may provide and maintain—

- (a) stations where examinations under this section may be carried out, and
- (b) apparatus for carrying out such examinations.

(7) The Secretary of State may make regulations under this section for the purpose of giving effect to this section and for prescribing anything authorised by this section and section 46 of this Act to be prescribed.

(8) In its application to vehicles in which recording equipment is required by Article 3 of the Community Recording Equipment Regulation to be installed and used, this section shall have effect as if any reference to prescribed statutory requirements relating to the construction and condition of motor vehicles or their accessories or equipment included a reference to the prescribed requirements of so much of that Regulation as relates to the installation of recording equipment and the seals to be fixed to such equipment.

Particular  
aspects of  
regulations  
under section 45.

46. Regulations under section 45 of this Act may, in particular, make provision as to—

- (a) the authorisation of examiners, the imposition of conditions to be complied with by authorised examiners and the withdrawal of authorisations,
- (b) the manner in which, conditions under which and apparatus with which examinations are carried out, the maintenance of that apparatus in an efficient state, and the inspection of premises at which and apparatus with which examinations are being, or are to be, carried out,
- (c) the manner in which applications may be made for the examination of vehicles under section 45 of this Act, the manner in which and time within which appeals may be brought under subsection (4) of that section, the information to be supplied

and documents to be produced on such an application, examination or appeal, the fees to be paid on such an application or appeal, and the repayment of the whole or part of the fee paid on such an appeal where it appears to the Secretary of State that there were substantial grounds for contesting the whole or part of the decision appealed against,

## PART II

- (d) the form of, and particulars to be contained in, test certificates and notifications of the refusal of test certificates, and the supply by the Secretary of State of forms for such certificates and notifications and the charges to be made for the supply of such forms,
- (e) the issue of duplicates of test certificates lost or defaced and the fee to be paid for the issue of such duplicates,
- (f) the issue of copies of test certificates and the fees to be paid for the issue of such copies,
- (g) the keeping by designated councils and authorised examiners of registers of test certificates in the prescribed form and containing the prescribed particulars, and the inspection of such registers by such persons and in such circumstances as may be prescribed,
- (h) the keeping of records by designated councils and authorised examiners and the providing by them of returns and information to the Secretary of State,

and regulations under that section may make different provision in relation to different cases or classes of cases.

**47.—(1)** A person who uses on a road at any time, or causes or permits to be so used, a motor vehicle to which this section applies, and as respects which no test certificate has been issued within the appropriate period before that time, is guilty of an offence.

Obligatory test certificates.

In this section and section 48 of this Act, the “appropriate period” means a period of twelve months or such shorter period as may be prescribed.

(2) Subject to subsections (3) and (5) below, the motor vehicles to which this section applies at any time are—

- (a) those first registered under the Vehicles (Excise) Act 1971, the Vehicles (Excise) Act 1962, the Vehicles (Excise) Act 1949 or the Roads Act 1920, not less than three years before that time, and
- (b) those which, having a date of manufacture not less than three years before that time, have been used on roads (whether in Great Britain or elsewhere) before being registered under the Vehicles (Excise) Act 1971 or the Vehicles (Excise) Act 1962,

1971 c. 10.  
1962 c. 13.  
1949 c. 89.  
1920 c. 72.

being, in either case, motor vehicles other than goods vehicles which are required by regulations under section 49 of this Act to be submitted for a goods vehicle test.

(3) As respects a vehicle being—

- (a) a motor vehicle used for the carriage of passengers and with more than eight seats, excluding the driver’s seat, or
- (b) a taxi (as defined in section 64 (3) of the Transport Act 1980), being a vehicle licensed to ply for hire, or

1980 c. 34.

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- (c) an ambulance, that is to say, a motor vehicle which is constructed or adapted, and primarily used, for the carriage of persons to a place where they will receive, or from a place where they have received, medical or dental treatment, and which, by reason of design, marking or equipment is readily identifiable as a vehicle so constructed or adapted,

subsection (2)(a) above shall have effect as if for the period there mentioned there were substituted a period of one year.

(4) For the purposes of subsection (2)(b) above, there shall be disregarded the use of a vehicle before it is sold or supplied by retail.

(5) This section does not apply to vehicles of such classes as may be prescribed.

(6) The Secretary of State may by regulations exempt from subsection (1) above the use of vehicles for such purposes as may be prescribed.

(7) The Secretary of State may by regulations exempt from subsection (1) above the use of vehicles in any such area as may be prescribed.

(8) For the purposes of this section the date of manufacture of a vehicle shall be taken to be the last day of the year during which its final assembly is completed, except where after that day modifications are made to the vehicle before it is sold or supplied by retail, and in that excepted case shall be taken to be the last day of the year during which the modifications are completed.

(9) The Secretary of State may by order made by statutory instrument direct that subsection (2) above shall have effect with the substitution, for three years (in both places), of such other period (not being more than ten years) as may be specified in the order.

An order under this subsection shall not have effect unless approved by resolution of each House of Parliament.

Supplementary  
provisions  
about test  
certificates.

48.—(1) For the purpose of spreading the work of issuing certificates in contemplation of a change in—

- (a) the length of the appropriate period, or
- (b) the length of the period specified in section 47(2)(a) and (b) of this Act,

(and whether for the purposes of that section or section 66 of this Act), the order or, as the case may be, regulations changing the length of that period may be made so as to come into operation on different days as respects vehicles first registered under any of the enactments mentioned in section 47(2) of this Act at different times.

(2) Where—

- (a) within the appropriate period after a test certificate is issued or treated for the purposes of section 47 of this Act as issued, but
- (b) not earlier than one month before the end of that period,

a further test certificate is issued as respects the same vehicle, the further certificate shall be treated for the purposes of that section as if issued at the end of the appropriate period.

## PART II

(3) Where the particulars contained in a test certificate in accordance with regulations made under section 45 of this Act include a date of expiry falling later, but not more than one month later, than the end of the appropriate period after the date on which it is issued—

- (a) the certificate shall be deemed to have been issued in respect of the same vehicle as an earlier test certificate, and
- (b) the date on which it was issued shall be deemed to have been a date falling within the last month of the appropriate period after the date on which that earlier certificate was issued or treated for the purposes of section 47 of this Act as issued;

and any date of expiry contained in a test certificate shall be deemed to have been entered in accordance with regulations under section 45 of this Act unless the contrary is proved.

(4) The Secretary of State may by regulations make provision for the issue, in such circumstances as may be prescribed, of a certificate of temporary exemption in respect of a public service vehicle adapted to carry more than eight passengers, exempting that vehicle from the provisions of section 47(1) of this Act for such period as may be specified in the certificate.

(5) In relation to any public service vehicle so adapted—

- (a) subsections (2) and (3) above shall have effect as if for “one month” (in both places) there were substituted “two months”, and
- (b) subsection (3) above shall have effect as if for “last month” there were substituted “last two months”.

(6) In subsections (4) and (5) above “public service vehicle” has the same meaning as in the Public Passenger Vehicles Act 1981.

1981 c. 14.

*Tests of certain classes of goods vehicles*

49.—(1) The Secretary of State may by regulations make provision for the examination of goods vehicles of any prescribed class—

- (a) for the purpose of selecting or otherwise determining plated weights or other plated particulars for goods vehicles of that class, or
- (b) for the purpose of ascertaining whether any prescribed construction and use requirements (whether relating to plated particulars or not) are complied with in the case of goods vehicles of that class,

Tests of satisfactory condition of goods vehicles and determination of plated weights, etc.

or for both purposes.

(2) In particular the regulations may make provision—

- (a) for the determination, according to criteria or by methods prescribed by or determined under the regulations, of the plated particulars for a goods vehicle (including its plated weights), on an examination of the vehicle for the purpose, and for the issue on such an examination, except as provided by regulations made by virtue of paragraph (c) of this subsection, of a certificate (in this Act referred to as a “plating certificate”) specifying those particulars,

## PART II

(b) for the issue, for a goods vehicle which has been found on examination for the purpose to comply with the prescribed construction and use requirements, of a certificate (in this Act referred to as a "goods vehicle test certificate") stating that the vehicle has been found so to comply, and

(c) for the refusal of a goods vehicle test certificate for a goods vehicle which is so found not to comply with those requirements and for requiring a written notification to be given—

(i) of any such refusal, and

(ii) of the grounds of the refusal,

and for the refusal of a plating certificate where a goods vehicle test certificate is refused.

(3) References in subsections (1) and (2) above to construction and use requirements shall be construed—

(a) in relation to an examination of a vehicle solely for the purpose of ascertaining whether it complies with any such requirements, as references to such of those requirements as are applicable to the vehicle at the time of the test, and

(b) in relation to an examination of a vehicle both for that purpose and for the purpose of determining its plated particulars, as references to such of those requirements as will be applicable to the vehicle if a plating certificate is issued for it.

(4) In this Part of this Act—

"examination for plating" means an examination under regulations under this section for the purpose of determining plated particulars for a goods vehicle, and

"goods vehicle test" means an examination under regulations under this section for the purpose of ascertaining whether any prescribed construction and use requirements are complied with in the case of a goods vehicle.

(5) In its application to vehicles in which recording equipment is required by Article 3 of the Community Recording Equipment Regulation to be installed and used, this section shall have effect as if any reference to prescribed construction and use requirements included a reference to prescribed requirements of so much of that Regulation as relates to the installation of recording equipment and the seals to be fixed to such equipment.

**Appeals against  
determinations.**

**50.—**(1) Any person aggrieved by a determination made on an examination under regulations under section 49 of this Act by the person in charge of the examination may appeal to an area mechanical engineer appointed by the Secretary of State to act for the traffic area in which the original examination was made.

(2) On the appeal the area mechanical engineer must cause the vehicle to be re-examined and make such determination in the matter as he thinks fit.

(3) A person aggrieved by the determination of an area mechanical engineer under subsection (2) above may appeal to the Secretary of State.



(4) On the appeal the Secretary of State must cause the vehicle to be re-examined by an officer appointed by him for the purpose and must make such determination on the basis of the re-examination as he thinks fit.

## PART II

(5) Regulations under section 49 of this Act may make the like provision in relation to a determination on an appeal under this section as they make in relation to a determination on an examination under the regulations.

**51.—**(1) Without prejudice to the generality of subsection (1) of section 49 of this Act, regulations under that section may—

Particular  
aspects of  
regulations  
under section 49.

(a) require or authorise goods vehicles to which the regulations apply to be submitted for examination under the regulations and, in particular—

(i) require any such vehicle to be submitted for a goods vehicle test at periodic intervals, and

(ii) require or authorise any such vehicle to be submitted for re-examination on the making of any prescribed alteration to it or its equipment and, for the purpose of determining whether any such re-examination is necessary, require any such alteration to be notified to the Secretary of State, and

(iii) require any such vehicle to be submitted for examination or re-examination for any purpose of plating or certification,

(b) authorise any examination under the regulations to be carried out by or under the direction of a goods vehicle examiner,

(c) prescribe the conditions subject to which vehicles will be accepted for such examination and, without prejudice to that—

(i) authorise any person by whom an examination of the vehicle under the regulations or section 50 of this Act is carried out to drive the vehicle, whether on a road or elsewhere, and

(ii) require that a driver of a vehicle examined under those regulations or that section is, except so far as permitted to be absent by the person carrying out the examination, present throughout the whole of the examination and drives the vehicle when directed to do so, and operates the controls in accordance with any directions given to him, by that person,

(d) require the plating certificate for any vehicle to which the regulations apply to specify any alteration to the vehicle or its equipment which is required by the regulations to be notified to the Secretary of State,

(e) authorise the amendment of a plating certificate or the issue of a different plating certificate on the re-examination of any vehicle,

(f) provide for the period of validity of goods vehicle test certificates,

(g) specify the manner in which, and the time before or within which, applications may be made for the examination of vehicles under the regulations or appeals may be brought under section 50 of this Act and the information to be supplied and documents to be produced on any such application, examination or appeal,

## PART II

- (h) make provision as to the fees to be paid on any such application or appeal and as to the repayment of the whole or part of any fee paid on such an appeal where it appears to the Secretary of State that there were substantial grounds for contesting the whole or part of the determination appealed from,
- (j) make provision as to the form of, and particulars to be contained in, plating certificates and goods vehicle test certificates and notifications of the refusal of the latter certificates,
- (k) provide for the issue of replacements for plates marked with plated particulars, plating certificates and goods vehicle test certificates which have been lost or defaced and for the payment of a fee for their issue,
- (l) exempt prescribed classes of vehicles from all or any of the provisions of the regulations either generally or in prescribed circumstances,
- (m) make different provision for different cases.

(2) Regulations under section 49 of this Act may provide that a person who contravenes or fails to comply with a requirement of regulations imposed by virtue of subsection (1)(c)(ii) above is guilty of an offence.

(3) In this section any reference to the driving of a vehicle is, in relation to a trailer, a reference to the driving of the vehicle by which the trailer is drawn.

Supplementary provisions about tests, etc., of goods vehicles.

52.—(1) Without prejudice to any regulations made under section 49 of this Act by virtue of section 51(1)(c) of this Act, the Secretary of State may give directions with respect to the manner in which examinations under regulations under section 49 or under section 50 of this Act are to be carried out.

(2) The Secretary of State may provide and maintain stations where examinations of goods vehicles under regulations under section 49 or under section 50 of this Act may be carried out and may provide and maintain the apparatus for carrying out such examinations.

Obligatory goods vehicle test certificates.

53.—(1) If any person at any time on or after the relevant date—

- (a) uses on a road a goods vehicle of a class required by regulations under section 49 of this Act to have been submitted for examination for plating, or
- (b) causes or permits to be used on a road a goods vehicle of such a class,

and at that time there is no plating certificate in force for the vehicle, he is guilty of an offence.

In this subsection “relevant date”, in relation to any goods vehicle, means the date by which it is required by the regulations to be submitted for examination for plating.

(2) If any person at any time on or after the relevant date—

- (a) uses on a road a goods vehicle of a class required by regulations under section 49 of this Act to have been submitted for a goods vehicle test, or

- (b) causes or permits to be used on a road a goods vehicle of such a class,

PART II

and at that time there is no goods vehicle test certificate in force for the vehicle, he is guilty of an offence.

In this subsection "relevant date", in relation to any goods vehicle, means the date by which it is required by the regulations to be submitted for its first goods vehicle test.

- (3) Any person who—

(a) uses a goods vehicle on a road, or

(b) causes or permits a goods vehicle to be so used,

when an alteration has been made to the vehicle or its equipment which is required by regulations under section 49 of this Act to be, but has not been, notified to the Secretary of State is guilty of an offence.

(4) In any proceedings for an offence under subsection (3) above, it shall be a defence to prove that the alteration was not specified in the relevant plating certificate in accordance with regulations under section 49 of this Act.

- (5) The Secretary of State may by regulations—

(a) exempt from all or any of the preceding provisions of this section the use of goods vehicles for such purposes or in such an area as may be prescribed, and

(b) make provision for the issue in respect of a vehicle in such circumstances as may be prescribed of a certificate of temporary exemption exempting that vehicle from the provisions of subsection (1) or (2) above for such period as may be specified in the certificate.

*Approval of design, construction, equipment and marking of vehicles*

54.—(1) Without prejudice to section 41 of this Act, the Secretary of State may by regulations prescribe requirements (in this Part of this Act referred to as "type approval requirements")—

Type approval requirements.

(a) with respect to the design, construction, equipment and marking of vehicles of any class, being requirements which are applicable before, whether or not they are applicable after, vehicles of that class are used on a road,

(b) with respect to the design, construction, equipment and marking of vehicle parts of any class, being requirements which are applicable before, whether or not they are applicable after, vehicle parts of that class are fitted to a vehicle used on a road.

(2) Regulations under this section may provide for the determination, according to criteria or by methods prescribed by or determined under the regulations, of weights of any description which in the opinion of the Secretary of State should not be exceeded in the case of vehicles of any class.

(3) In this Part of this Act references to design weights shall be construed as references to weights determined by virtue of subsection (2) above.

**PART II**

(4) Subject to subsection (5) below, the following provisions of this Act to the end of section 60 apply in relation to parts of vehicles as they apply in relation to vehicles and, accordingly, any reference in those provisions to a vehicle, other than a reference to a goods vehicle, is to be read as including a reference to a vehicle part.

(5) Any provision which relates solely to goods vehicles or design weights does not apply in relation to parts of vehicles, but particular exclusions in those provisions do not affect the generality of this exclusion.

(6) In this Part of this Act, "the relevant aspects of design, construction, equipment and marking", in relation to any vehicle, means those aspects of design, construction, equipment and marking which are subject to the type approval requirements or which were used as criteria in determining design weights for that vehicle.

**Type approval certificates.**

**55.—**(1) Where the Secretary of State is satisfied on application made to him by the manufacturer of a vehicle of a class to which regulations under section 54 of this Act apply and after examination of the vehicle—

- (a) that the vehicle complies with the relevant type approval requirements, and
- (b) that adequate arrangements have been made to secure that other vehicles purporting to conform with that vehicle in the relevant aspects of design, construction, equipment and marking will so conform in all respects or with such variations as may be permitted,

he may approve that vehicle as a type vehicle.

(2) Where the Secretary of State approves a vehicle as a type vehicle he must issue a certificate (in this Part of this Act referred to as a "type approval certificate") stating that the vehicle complies with the relevant type approval requirements and specifying—

- (a) the permitted variations from the type vehicle, and
- (b) the design weights for vehicles so conforming in all respects and for vehicles so conforming with any such variations.

(3) In the following provisions of this section and in sections 56 to 59 of this Act "conform" means conform in all respects or with any permitted variation.

(4) Subject to subsection (6) below, a type approval certificate may be issued for a type vehicle where the Secretary of State is satisfied that one or more, but not all, of the relevant type approval requirements are complied with in the case of that vehicle.

(5) A further type approval certificate may be issued by virtue of subsection (4) above on the application of any person—

- (a) who manufactures any part of the vehicle, or
- (b) by whom the vehicle is finally assembled;

and references in the following provisions of this section and in sections 56 to 59 of this Act to a manufacturer shall be construed accordingly.

(6) The first type approval certificate issued for a type vehicle by virtue of subsection (4) above must specify the design weights for conforming vehicles, and accordingly—

## PART II

- (a) so much of subsection (2) above or section 57 (1) to (3) of this Act as requires the Secretary of State or a manufacturer to specify in any certificate under this or that section the design weights or plated weights for a vehicle or as requires the Secretary of State or a manufacturer to mark or secure the marking of the plated weights on a vehicle does not apply to a subsequent type approval certificate issued by virtue of subsection (4) above or to the certificates of conformity issued in consequence of such a type approval certificate, and
  - (b) so much of section 58 (2) of this Act as requires the Secretary of State to specify in any certificate issued by him the design weights and plated weights for a vehicle or to secure that the plated weights are marked on a vehicle does not apply to a Minister's approval certificate issued by virtue of subsection (4) above.
- (7) Subsection (6) above does not apply in relation to vehicle parts.
- (8) Where the Secretary of State determines on an application under this section not to issue a type approval certificate in respect of a vehicle, he must give to the applicant a written notification of the determination, stating the grounds on which it is based.

**56.—(1)** A type approval certificate may be issued subject to conditions with respect to—

Conditions of,  
and cancellation  
or suspension of,  
type approval  
certificates.

- (a) the inspection by officers of the Secretary of State of vehicles purporting to conform with the type vehicle in the relevant aspects of design, construction, equipment and marking and of parts of such vehicles and their equipment, and the entry of premises where they are manufactured, and
- (b) the notification by the manufacturer of differences of design, construction, equipment or marking (other than permitted variations) between any such vehicles and the type vehicle which might affect the type approval requirements or the criteria for determining the design weights of those vehicles.

(2) If—

- (a) it appears to the Secretary of State that there has been a breach of a condition subject to which a type approval certificate has been granted, or
- (b) the Secretary of State ceases to be satisfied as to any other matter relevant to a type approval certificate,

he may cancel or suspend the certificate, but the cancellation or suspension shall not affect the validity of any certificate of conformity previously issued in consequence of the type approval certificate.

(3) Where the Secretary of State cancels or suspends a certificate in pursuance of this section, he shall give a written notification of that fact to the holder of the certificate stating the grounds for the cancellation or suspension.

**PART II**  
Certificates of  
conformity.

**57.—(1)** The manufacturer of a type vehicle in respect of which a type approval certificate is in force may issue, in respect of each vehicle manufactured by him which conforms with the type vehicle in such of the relevant aspects of design, construction, equipment and marking as are mentioned in the type approval certificate, a certificate (in this Part of this Act referred to as a “certificate of conformity”)—

- (a) stating that it does so conform, and
- (b) specifying the design weights for the vehicle,

and must in the case of goods vehicles of such classes as may be prescribed specify in the certificate one or more of the plated weights for the vehicle.

**(2)** Where a manufacturer issues a certificate of conformity for a goods vehicle, the Secretary of State must—

- (a) on an application made by any person containing such information as he may require with respect to the proposed circumstances of operation of the goods vehicle, and
- (b) on production of that certificate,

specify in the certificate any plated weights for the goods vehicle not so specified by the manufacturer.

**(3)** Where a manufacturer issues a certificate of conformity for a goods vehicle then—

- (a) if he is required by subsection (1) above to specify any plated weights for the goods vehicle in the certificate, he must mark those weights on the goods vehicle by means of a plate fixed to it, and
- (b) in any other case the Secretary of State must on an application for the purpose secure that those weights are so marked.

**(4)** Any certificate of conformity issued in consequence of any type approval certificate issued by virtue of section 55(4) of this Act shall relate only to the requirement or requirements to which that type approval certificate relates.

**(5)** Subsections (2) and (3) above do not apply in relation to vehicle parts.

Minister's  
approval  
certificates.

**58.—(1)** Where the Secretary of State is satisfied, on application made to him by any person in respect of a vehicle of a class to which regulations under section 54 of this Act apply and after examination of the vehicle, that—

- (a) the vehicle complies with the relevant type approval requirements, and
- (b) in the case of a goods vehicle, the Secretary of State has sufficient information to enable the plated weights to be ascertained for the vehicle,

he may issue a certificate (in this Part of this Act referred to as a “Minister's approval certificate”).

**(2)** The certificate must state that the vehicle complies with those requirements and specify—

- (a) its design weights, and

## PART II

(b) in the case of a goods vehicle, its plated weights, and, where the Secretary of State issues such a certificate in respect of a goods vehicle, he must secure that the plated weights are marked on the vehicle by means of a plate fixed to it.

(3) Where by virtue of section 57(4) of this Act a certificate of conformity issued in respect of a vehicle relates to one or more, but not all, of the relevant type approval requirements, the Secretary of State may issue in respect of that vehicle a Minister's approval certificate relating to one or more of the other relevant type approval requirements.

(4) Where—

(a) a Minister's approval certificate is given as respects a vehicle, and

(b) the Secretary of State is satisfied—

(i) on the application of the manufacturer of the vehicle or, in the case of an imported vehicle, the importer of the vehicle, and

(ii) after the consideration of such evidence as he thinks necessary,

that another vehicle manufactured by that manufacturer or, as the case may be, imported by that importer conforms with the first mentioned vehicle as respects the relevant aspects of design, construction, equipment and marking,

the Secretary of State may issue a Minister's approval certificate in respect of that other vehicle without examining it.

(5) Where the Secretary of State issues such a certificate by virtue of subsection (4) above, he must specify the plated weights which are to be marked on the other vehicle.

(6) Subsection (4) above shall apply in relation to vehicles brought into Great Britain from Northern Ireland as it applies in relation to imported vehicles, and references in that subsection to the importer shall be construed accordingly.

(7) Where the Secretary of State determines on an application under this section not to issue a Minister's approval certificate in respect of a vehicle, he must give to the applicant a written notification of the determination, stating the grounds on which it is based.

59.—(1) The Secretary of State may by regulations require that prescribed alterations—

(a) in any of the relevant aspects of design, construction, equipment or marking, or

(b) in any such aspect which affects the plated weight,

made to any vehicle for which a certificate of conformity or a Minister's approval certificate is issued shall, subject to any exemption granted under subsection (2) below, be notified to the Secretary of State.

(2) The Secretary of State may by notice in writing given to the manufacturer of vehicles or to the owner of a vehicle for which a Minister's approval certificate is issued—

(a) direct that any specified alteration in any of the aspects mentioned in subsection (1) above to a vehicle to which the direction relates shall be notified to the Secretary of State,

Supplementary provisions as to certificates of conformity and Minister's approval certificates.

## PART II

- (b) exempt a vehicle to which the notice relates from all or any of the requirements of regulations under subsection (1) above, subject to compliance with any conditions specified in the notice.

(3) Without prejudice to the provisions of section 61 of this Act, the Secretary of State may by regulations require that a certificate of conformity or Minister's approval certificate issued for any vehicle shall specify—

- (a) the regulations, if any, applicable to the vehicle under subsection (1) above at the time of the issue of the certificate,
- (b) any additional alteration to that vehicle required by any direction under subsection (2) above to be notified to the Secretary of State, and
- (c) any exemption applicable to that vehicle under that subsection.

(4) A certificate of conformity or a Minister's approval certificate specifying any plated weights shall be treated for the purposes of the provisions of this Part of this Act and any regulations made under them relating to plating certificates (except section 50 (1) and (2) of this Act) as a plating certificate.

This subsection does not apply in relation to vehicle parts.

## Appeals.

**60.**—(1) A person aggrieved by the determination made on behalf of the Secretary of State with respect to a type approval certificate, a certificate of conformity or a Minister's approval certificate under sections 54 to 59 of this Act, including any determination with respect to design weights or plated weights, may within the prescribed time and in the prescribed manner appeal to the Secretary of State.

(2) On the appeal the Secretary of State—

- (a) shall have the like powers and duties as he has on an original application for a type approval or a Minister's approval certificate or in respect of the plated weights to be included in a certificate of conformity,
- (b) may hold an inquiry in connection with it, and
- (c) may appoint an assessor for the purpose of assisting him with the appeal or any such inquiry.

## Regulations for the purposes of sections 54 to 60.

**61.**—(1) The Secretary of State may make regulations for the purposes of sections 54 to 60 of this Act.

(2) Without prejudice to the generality of subsection (1) above, such regulations—

- (a) may provide for the examination of any vehicle in respect of which a certificate of conformity or a Minister's approval certificate is in force in the event of an alteration being made to the vehicle which is notifiable by virtue of section 59(1) or (2) of this Act and, in particular, may empower a goods vehicle examiner or a public service vehicle examiner to require the vehicle to be examined at a testing station provided under section 52, 62 or 72 of this Act,



## PART II

- (b) may authorise the cancellation, suspension or amendment of a certificate of conformity or a Minister's approval certificate on an examination of any vehicle in pursuance of regulations made by virtue of paragraph (a) above,
  - (c) shall give a right of appeal to any person aggrieved by a determination on any such examination and for that purpose may apply section 50(1) to (4) of this Act,
  - (d) may contain the like provisions with respect to any such examination and any appeal brought by virtue of paragraph (c) above as may be contained in regulations made by virtue of paragraphs (b), (c), (g) and (h) of section 51(1) of this Act in relation to the examinations and appeals there mentioned,
  - (e) may require the payment of fees or other charges in connection with the provision by the Secretary of State of services or facilities or the issue by him of certificates and other documents,
  - (f) may provide—
    - (i) for the authorisation of persons to carry out examinations, in connection with the issue of type approval certificates, of vehicles or vehicle parts of such classes as may be specified in the regulations,
    - (ii) for the imposition of conditions to be complied with by persons so authorised, and
    - (iii) for the withdrawal of authorisations,
  - (g) may make provision as to the form of, and particulars to be contained in, certificates of conformity and provide for the supply by the Secretary of State of forms for such certificates,
  - (h) may provide for the issue of replacements for plates fixed to vehicles under sections 54 to 58 of this Act, certificates of conformity and Minister's approval certificates which have been lost or defaced and provide for the payment of a fee for their issue,
  - (j) may require persons empowered by sections 54 to 58 of this Act to issue certificates of conformity to keep records—
    - (i) of certificates of conformity issued by them, and
    - (ii) of the vehicles or vehicle parts in respect of which such certificates are issued,and may authorise the inspection of such records by such persons and in such circumstances as may be prescribed, and
  - (k) may make different provisions for different cases.
- (3) Without prejudice to any regulations made by virtue of section 51(1)(c) of this Act, as applied by this section, the Secretary of State may give directions with respect to the manner in which examinations to which such regulations apply are to be carried out.
- (4) Where regulations under this section impose the like requirement as may be imposed by regulations made by virtue of section 51(1)(c)(ii) of this Act, the regulations may provide that a person who contravenes or fails to comply with a requirement so imposed is guilty of an offence.
- (5) In this section "public service vehicle examiner" means a person appointed as such an examiner under section 7(2) of the Public Passenger Vehicles Act 1981.

**PART II**  
Other  
supplementary  
provisions.

**62.—(1)** The Secretary of State may provide and maintain stations where examinations of vehicles under sections 54 to 61 of this Act or regulations under those sections may be carried out and may provide and maintain the apparatus for carrying out such examinations.

(2) Where an agreement entered into between Her Majesty's Government and the Government of a country outside Great Britain provides for the recognition in Great Britain of arrangements under the law of that country with respect to the approval of the design, construction, equipment or marking of vehicles of any description manufactured in that country, the Secretary of State may make regulations—

- (a) applying, with such adaptations and modifications as he thinks fit, all or any of the provisions of sections 54 to 60 of this Act and of regulations under section 61 of this Act, so far as relating to type approval certificates and certificates of conformity, to vehicles of that description manufactured in that country,
- (b) providing that a certificate issued under any such provision as so applied shall be treated for the purposes of any other provisions of this Part of this Act prescribed by the regulations as a type approval certificate or as a certificate of conformity,
- (c) providing for the cancellation or suspension (subject to any savings prescribed by the regulations) of any such certificate in the event of the agreement ceasing to be in force or being modified.

(3) Except in the case of vehicles of such class as may be prescribed, in sections 57, 58 and 61 of this Act "goods vehicle" includes a vehicle which is a chassis for, or will otherwise form part of, a vehicle which when completed will be a goods vehicle.

Obligatory type  
approval  
certificates,  
certificates of  
conformity and  
Minister's  
approval  
certificates.

**63.—(1)** If—

- (a) any person at any time on or after the day appointed by regulations made by the Secretary of State in relation to vehicles or vehicle parts of a prescribed class, being vehicles or vehicle parts to which type approval requirements prescribed by those regulations apply—
  - (i) uses on a road, or
  - (ii) causes or permits to be so used,
 a vehicle of that class or a vehicle to which is fitted a vehicle part of that class, and
- (b) it does not appear from one or more certificates then in force under sections 54 to 58 of this Act that the vehicle or vehicle part complies with those requirements,

he is guilty of an offence.

Different days may be appointed under this subsection in relation to different classes of vehicles or vehicle parts.

(2) If a plating certificate—

- (a) has been issued for a goods vehicle to which section 53(1) of this Act or subsection (1) above applies, but

## PART II

- (b) does not specify a maximum laden weight for the vehicle together with any trailer which may be drawn by it,

any person who on or after the relevant date within the meaning of section 53(1) of this Act or, as the case may be, the day appointed under subsection (1) above uses the vehicle on a road for drawing a trailer, or causes or permits it to be so used, is guilty of an offence.

- (3) Any person who—

- (a) uses a vehicle on a road, or  
(b) causes or permits a vehicle to be so used,

when an alteration has been made to the vehicle or its equipment which is required by regulations or directions under section 59 of this Act to be, but has not been, notified to the Secretary of State is guilty of an offence.

(4) In any proceedings for an offence under subsection (3) above, it shall be a defence to prove that the regulations were not or, as the case may be, the alteration was not, specified in the relevant certificate of conformity or Minister's approval certificate in accordance with regulations under section 59(3) of this Act.

- (5) The Secretary of State may by regulations—

- (a) exempt from all or any of the preceding provisions of this section the use of vehicles for such purposes or in such an area as may be prescribed,  
(b) except any class of goods vehicles from the provisions of subsection (2) above, and  
(c) make provision for the issue in respect of a vehicle or vehicle part in such circumstances as may be prescribed of a certificate of temporary exemption exempting that vehicle or vehicle part from the provisions of subsection (1) above for such period as may be specified in the certificate.

64.—(1) If there is fixed to a goods vehicle a plate containing plated weights of any description—

- (a) determined for that vehicle by virtue of sections 49 to 52 of this Act, or  
(b) specified in a certificate for that vehicle under section 57(1) or (2) or 58(2) or (5) of this Act,

Using goods vehicle with unauthorised weights as well as authorised weights marked on it.

the vehicle shall not, while it is used on a road, be marked with any other weights, except other plated weights, other weights required or authorised to be marked on the vehicle by regulations under section 41 of this Act or weights so authorised for the purposes of this section by regulations made by the Secretary of State and marked in the prescribed manner.

(2) In the event of a contravention of or failure to comply with this section the owner of the vehicle is guilty of an offence.

## PART II

Vehicles and parts not to be sold without required certificate of conformity or Minister's approval certificate.

## 65.—(1) If—

- (a) any person at any time on or after the day appointed by regulations under section 63(1) of this Act supplies a vehicle or vehicle part of a class to which those regulations apply, and
- (b) it does not appear from one or more certificates in force at that time under sections 54 to 58 of this Act that the vehicle or vehicle part complies with all the relevant type approval requirements prescribed by those regulations,

he is guilty of an offence.

## (2) In this section references to supply include—

- (a) sell,
- (b) offer to sell or supply, and
- (c) expose for sale.

(3) A person shall not be convicted of an offence under this section in respect of the supply of a vehicle or vehicle part if he proves—

- (a) that it was supplied for export from Great Britain,
- (b) that he had reasonable cause to believe that it would not be used on a road in Great Britain or, in the case of a vehicle part, that it would not be fitted to a vehicle used on a road in Great Britain or would not be so used or fitted until it had been certified under sections 54 to 58 of this Act, or
- (c) that he had reasonable cause to believe that it would only be used for purposes or in any area prescribed by the Secretary of State under section 63(5) of this Act or, in the case of a goods vehicle, under section 53(5) of this Act.

(4) Nothing in subsection (1) above shall affect the validity of a contract or any rights arising under or in relation to a contract.

*Conditions for grant of excise licence*

Regulations prohibiting the grant of excise licences for certain vehicles except on compliance with certain conditions.  
1971 c. 10.

## 66.—(1) The Secretary of State may by regulations provide that where—

- (a) application is made for a licence under the Vehicles (Excise) Act 1971 for a vehicle to which section 47 of this Act applies, and
- (b) in the case of an application relating to a vehicle to which that section applies by virtue of subsection (2)(b) of that section, it appears from the application that the vehicle has been used on roads (whether in Great Britain or elsewhere) before the date of the application,

the licence shall not be granted unless one of the following conditions is satisfied.

## (2) Those conditions are that—

- (a) there is produced such evidence as may be prescribed of the granting of an effective test certificate or (if it is so prescribed) there is produced such a certificate or the Secretary of State is provided with a copy of it, or

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- (b) there is made such a declaration as may be prescribed that the vehicle is not intended to be used during the period for which the licence is to be in force except for a purpose prescribed under subsection (6), or in an area prescribed under subsection (7), of section 47, or
- (c) in the case of an application relating to a vehicle to which section 47 applies by virtue of subsection (2)(b) of that section, the owner of the vehicle declares in writing the year in which the vehicle was manufactured, and the specified period from the date of manufacture has not expired.
- (3) The Secretary of State may by regulations provide that where application is made for a licence under the Vehicles (Excise) Act 1971 for a goods vehicle to which section 53(2) of this Act applies or for a vehicle of any class to which section 63(1) of this Act applies, the licence shall not be granted unless the requirements of subsection (4), subsection (5) or subsection (6) below are satisfied. 1971 c. 10.
- (4) The requirements of this subsection are that—
- (a) on any application, after the relevant date within the meaning of section 53(2), for a licence for a vehicle to which section 53(2) applies, there is produced evidence that an effective goods vehicle test certificate is in force for the vehicle,
- (b) on the first application, after the day appointed by regulations made by virtue of section 63(1), for a licence for a vehicle of any class to which those regulations apply, there is produced evidence that there is or are one or more certificates in force for the vehicle under sections 54 to 58 of this Act from which it appears that the vehicle complies with all the relevant type approval requirements prescribed by those regulations.
- (5) The requirements of this subsection are that there is made such a declaration as may be prescribed that the vehicle is not intended to be used during the period for which the licence is to be in force except for a purpose or in an area prescribed under paragraph (a) of section 53(5) or 63(5) of this Act.
- (6) The requirements of this subsection are that there is produced in respect of the vehicle a certificate of temporary exemption issued by virtue of paragraph (b) of section 53(5) or paragraph (c) of section 63(5) which exempts that vehicle from the provisions of section 53(2) or 63(1) of this Act, as the case may be, for a period which includes the date on which the licence is to come into force.
- (7) Regulations under subsection (3) above may be made so as to apply to such classes only of vehicles as may be specified in the regulations.
- (8) For the purposes of this section the date of manufacture of a vehicle shall be taken to be the last day of the year during which its final assembly is completed, except where after that day modifications are made to the vehicle before it is sold or supplied by retail, and in that excepted case shall be taken to be the last day of the year during which the modifications are completed.
- (9) In this section—
- “appropriate period” has the same meaning as in section 47 of this Act,

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“effective goods vehicle test certificate” means, in relation to an application for a licence for a vehicle, a goods vehicle test certificate relating to the vehicle which will be in force on the date on which the licence is to come into force,

“effective test certificate” means, in relation to an application for a licence for a vehicle, a test certificate relating to the vehicle and issued within the appropriate period before the date on which the licence is to come into force,

“specified period” means the period for the time being specified in section 47(2)(a) and (b) of this Act.

*Testing vehicles on roads*

Testing of  
condition of  
vehicles on  
roads.

67.—(1) An authorised examiner may test a motor vehicle on a road for the purpose of—

- (a) ascertaining whether the requirements imposed by law as to—
  - (i) brakes, silencers, steering gear and tyres,
  - (ii) the prevention or reduction of noise, smoke, fumes or vapour, and
  - (iii) lighting equipment and reflectors,
 are complied with as respects the vehicle, and
- (b) bringing to the notice of the driver any failure to comply with those requirements.

(2) The examiner may drive the vehicle for the purpose of testing it.

(3) A vehicle shall not be required to stop for a test except by a constable in uniform.

(4) The following persons may act as authorised examiners for the purposes of this section—

- (a) a certifying officer or public service vehicle examiner appointed under the Public Passenger Vehicles Act 1981,
- (b) a person appointed as an examiner under section 68(1) of this Act,
- (c) a person appointed to examine and inspect public carriages for the purposes of the Metropolitan Public Carriage Act 1869,
- (d) a person appointed to act for the purposes of this section by the Secretary of State,
- (e) a constable authorised so to act by or under instructions of the chief officer of police, and
- (f) a person appointed by the police authority for a police area to act, under the directions of the chief officer of police, for the purposes of this section.

(5) A person mentioned in subsection (4)(a) to (d) and (f) must produce his authority to act for the purposes of this section if required to do so.

(6) On the examiner proceeding to test a vehicle under this section, the driver may, unless the test is required under subsection (7) or (8) below to be carried out forthwith, elect that the test shall be deferred to a time, and carried out at a place, fixed in accordance with Schedule 2 to this Act, and the provisions of that Schedule shall apply accordingly.

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(7) Where it appears to a constable that, by reason of an accident having occurred owing to the presence of the vehicle on a road, it is requisite that a test should be carried out forthwith, he may require it to be so carried out and, if he is not to carry it out himself, may require that the vehicle shall not be taken away until the test has been carried out.

(8) Where in the opinion of a constable the vehicle is apparently so defective that it ought not to be allowed to proceed without a test being carried out, he may require the test to be carried out forthwith.

(9) If a person obstructs an authorised examiner acting under this section, or fails to comply with a requirement of this section or Schedule 2 to this Act, he is guilty of an offence.

(10) In this section and in Schedule 2 to this Act—

- (a) “test” includes “inspect” or “inspection”, as the case may require, and
- (b) references to a vehicle include references to a trailer drawn by it.

*Maintenance and loading of goods vehicles*

68.—(1) For the purpose of securing that goods vehicles are maintained in a fit and serviceable condition and that, in relation to goods vehicles, the provisions of this Part of this Act (except section 74) and of Part V of the Transport Act 1968 are observed, the Secretary of State must appoint such examiners as he considers necessary.

Power to inspect goods vehicles to secure proper maintenance.  
1968 c. 73.

(2) In this Part of this Act “goods vehicle examiner” means an examiner appointed under subsection (1) above or a certifying officer appointed under the Public Passenger Vehicles Act 1981.

1981 c. 14.

(3) A goods vehicle examiner—

- (a) may at any time, on production if so required of his authority, enter and inspect any goods vehicle, and for that purpose detain the vehicle during such time as is required for the inspection, and
- (b) may at any time which is reasonable having regard to the circumstances of the case enter any premises on which he has reason to believe that a goods vehicle is kept.

(4) A person who obstructs a goods vehicle examiner in the performance of his duty under subsection (3) above is guilty of an offence.

(5) A goods vehicle examiner or a constable in uniform may at any time require any person in charge of a stationary goods vehicle on a road to proceed with the vehicle for the purpose of having it inspected under this section to any place where an inspection can be suitably carried out (not being more than five miles from the place where the requirement is made).

(6) A person in charge of a goods vehicle who refuses or neglects to comply with a requirement made under subsection (5) above is guilty of an offence.

69.—(1) If—

- (a) on any inspection of a goods vehicle under section 68 of this Act, or

Power to prohibit the driving of unfit goods vehicles.

## PART II

- (b) on an examination of such a vehicle under regulations under section 49 or 61 of this Act,

it appears to a goods vehicle examiner that, owing to any defects in the vehicle, it is, or is likely to become, unfit for service, he may prohibit the driving of the vehicle on a road either absolutely or for a specified purpose.

(2) Where a goods vehicle examiner prohibits the driving of a vehicle under subsection (1) above, he must forthwith give notice in writing of the prohibition to the person in charge of the vehicle at the time of the inspection—

- (a) specifying the defects which occasioned the prohibition,
- (b) stating whether the prohibition is on all driving of the vehicle or driving it for a specified purpose (and if the latter specifying the purpose), and
- (c) stating whether the prohibition is to come into force immediately or at the end of a specified period.

(3) A prohibition under subsection (1) above with respect to any vehicle shall, subject to any exemption granted under subsection (6) below, come into force as soon as notice of it has been given under subsection (2) above if, in the opinion of the examiner, the defects in the vehicle are such that driving it, or driving it for any purpose specified in the notice, will create an immediate risk to public safety, and the prohibition shall afterwards continue in force until it is removed under section 72 of this Act.

(4) In any other case a prohibition under subsection (1) above shall, unless previously removed under section 72 and subject to any exemption under subsection (6) below, come into force at such time not later than ten days from the date of the inspection as seems appropriate to the examiner having regard to all the circumstances, and shall afterwards continue in force until it is so removed.

(5) A prohibition under subsection (1) above may be imposed with a direction making it irremovable unless and until the vehicle has been inspected at an official testing station.

(6) Where a notice has been given under subsection (2) above any examiner may grant an exemption in writing for the use of the vehicle in such manner, subject to such conditions and for such purpose as may be specified in the exemption.

(7) Where any such notice has been given an examiner may by endorsement on the notice vary its terms and, in particular, alter the time at which the prohibition is to come into force or suspend it if it has come into force.

Power to  
prohibit driving  
of overloaded  
goods vehicles.

70.—(1) Subsections (2) and (3) below apply where a goods vehicle has been weighed in pursuance of a requirement imposed under section 78 of this Act and it appears to—

- (a) a goods vehicle examiner,
  - (b) a person authorised with the consent of the Secretary of State to act for the purposes of this subsection by—
    - (i) a highway authority other than the Secretary of State,
- or



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- (ii) a local roads authority in Scotland, or
- (c) a constable authorised to act for those purposes by or on behalf of a chief officer of police,

that the limit imposed by construction and use requirements with respect to any description of weight which is applicable to that vehicle has been exceeded or would be exceeded if it were used on a road.

(2) The person to whom it so appears may, whether or not a notice is given under section 69(2) of this Act, give notice in writing to the person in charge of the vehicle prohibiting the driving of the vehicle on a road until—

- (a) that weight is reduced to that limit, and
- (b) official notification has been given to whoever is for the time being in charge of the vehicle that it is permitted to proceed.

(3) The person to whom it so appears may also by direction in writing require the person in charge of the vehicle to remove it (and, if it is a motor vehicle drawing a trailer, also to remove the trailer) to such place and subject to such conditions as are specified in the direction; and the prohibition shall not apply to the removal of the vehicle or trailer in accordance with that direction.

(4) Official notification for the purposes of subsection (2) above—

- (a) must be in writing and be given by a goods vehicle examiner, a person authorised as mentioned in subsection (1) above or a constable authorised as so mentioned, and
- (b) may be withheld until the vehicle has been weighed or reweighed in order to satisfy the person giving the notification that the weight has been sufficiently reduced.

(5) Nothing in this section shall be construed as limiting the power of the Secretary of State to make regulations under section 71(2) of this Act.

71.—(1) A person who—

- (a) drives a goods vehicle on a road, or causes or permits a goods vehicle to be so driven, in contravention of a prohibition under section 69 or 70 of this Act, or
- (b) refuses, neglects or otherwise fails to comply within a reasonable time with a direction under section 70(3) of this Act,

is guilty of an offence.

(2) The Secretary of State may by regulations exempt from subsection (1) above the use of vehicles for such purposes as may be prescribed.

Offences in connection with unfit or overloaded goods vehicles.

72.—(1) A prohibition under section 69 or 70 of this Act may be removed by any goods vehicle examiner if he is satisfied that the vehicle is fit for service.

Removal of prohibitions.

(2) A person aggrieved by the refusal of an examiner appointed under section 68(1) of this Act to remove a prohibition may make an application to any licensing authority to have the vehicle inspected by a certifying officer appointed under the Public Passenger Vehicles Act 1981.

1981 c. 14.

(3) Where any such application is made, the certifying officer, on the matter being referred to him, must, if he considers that the vehicle is fit for service, remove the prohibition.

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(4) If the prohibition has been imposed with a direction under section 69(5) of this Act, a goods vehicle examiner must not remove it unless and until the vehicle has been inspected at an official testing station.

(5) A person aggrieved by the refusal of a certifying officer to remove a prohibition may, within the prescribed time and in the prescribed manner, appeal to the Secretary of State.

(6) The Secretary of State may make such order on the appeal as he thinks fit, and the order shall be binding on the certifying officer.

(7) Where a goods vehicle examiner removes a prohibition, he must forthwith give notice of the removal—

- (a) to the owner of the vehicle, and
- (b) in the case of an authorised vehicle, to the licensing authority by whom the operator's licence was granted for the vehicle.

(8) The Secretary of State may provide and maintain stations (in this Part of this Act referred to as "official testing stations") where inspections of goods vehicles for the purposes of this section may be carried out and may provide and maintain the apparatus for carrying out such examinations.

(9) In the case of vehicles brought to an official testing station for inspection with a view to removal of a prohibition, the Secretary of State may require the payment of fees for inspection, in accordance with prescribed scales and rates; and

- (a) payment of the fee may be required to be made in advance,
- (b) the Secretary of State must ensure that all the scales and rates prescribed for the purposes of this subsection are reasonably comparable with the fees charged by virtue of section 51(1)(h) of this Act in respect of the periodic examination of goods vehicles.

(10) The Secretary of State may make regulations for prescribing anything which may be prescribed under subsection (5) or (9) above and for regulating the procedure on appeals to him under subsection (5) above.

(11) A licensing authority may hold such inquiries as he thinks necessary for the proper exercise of his functions under this section.

Provisions  
supplementary  
to sections 69 to  
72.

73.—(1) On giving a notice under section 69(2) or 70(2) of this Act to a person in charge of a vehicle, the person giving the notice must as soon as practicable take steps to bring the contents of the notice—

- (a) to the attention of the owner of the vehicle if he was not in charge of it at the time when the notice was given, and
- (b) in the case of an authorised vehicle, to the attention of the licensing authority by whom the operator's licence was granted for the vehicle.

(2) A goods vehicle examiner must, in exercising his functions under this section and sections 69 and 70 of this Act, act under the general directions of the Secretary of State and (without prejudice to that) must, in exercising his functions under section 69(6) of this Act, act in accordance with any directions given by the Secretary of State with respect to the exercise of those functions in any particular case.

(3) Any reference in sections 69 to 72 of this Act to the driving of a vehicle is, in relation to a trailer, a reference to the driving of the vehicle by which the trailer is drawn.

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(4) In this section and section 72 of this Act "authorised vehicle" and "operator's licence" have the same meaning as in Part V of the Transport Act 1968.

1968 c. 73.

*Miscellaneous provisions about vehicles and vehicle parts*

74.—(1) The Secretary of State may make regulations requiring the operator for the time being of a goods vehicle to which the regulations apply to secure—

Operator's duty to inspect, and keep records of inspections of, goods vehicles.

- (a) the carrying out by a suitably qualified person (including the operator if so qualified) of an inspection of the vehicle for the purpose of ascertaining whether the construction and use requirements with respect to any prescribed matters, being requirements applicable to the vehicle, are complied with, and
- (b) the making and authentication of records of such matters relating to any such inspection as may be prescribed, including records of the action taken to remedy any defects discovered on the inspection,

and providing for the preservation of such records for a prescribed period not exceeding fifteen months and their custody and production during that period.

(2) Regulations under this section may—

- (a) apply to all goods vehicles or to goods vehicles of such classes as may be prescribed,
- (b) require the inspection of goods vehicles under the regulations to be carried out at such times, or before the happening of such events, as may be prescribed, and
- (c) make different provision for different cases.

(3) Any person who contravenes or fails to comply with any provision of regulations under this section is guilty of an offence.

(4) In this section "the operator", in relation to a goods vehicle, means the person to whom it belongs or the hirer of it under a hire purchase agreement; but, if he has let it on hire (otherwise than by way of hire-purchase) or lent it to any other person, it means a person of a class prescribed by regulations under this section in relation to any particular class of goods vehicles or, subject to any such regulations, that other person.

75.—(1) Subject to the provisions of this section no person shall supply a motor vehicle or trailer in an unroadworthy condition.

Vehicles not to be sold in unroadworthy condition or altered so as to be unroadworthy.

(2) In this section references to supply include—

- (a) sell,
- (b) offer to sell or supply, and
- (c) expose for sale.

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(3) For the purposes of subsection (1) above a motor vehicle or trailer is in an unroadworthy condition if—

(a) it is in such a condition that the use of it on a road in that condition would be unlawful by virtue of any provision made by regulations under section 41 of this Act as respects—

(i) brakes, steering gear or tyres, or

(ii) the construction, weight or equipment of vehicles, or

(iii) the maintenance of vehicles, their parts and accessories in such a condition that no danger is or is likely to be caused, or

(b) it is in such a condition, as respects lighting equipment or reflectors or their maintenance, that it is not capable of being used on a road during the hours of darkness without contravention of the requirements imposed by law as to obligatory lamps or reflectors.

(4) Subject to the provisions of this section no person shall alter a motor vehicle or trailer so as to render its condition such that the use of it on a road in that condition would be unlawful by virtue of any provision made as respects the construction, weight or equipment of vehicles by regulations under section 41.

(5) A person who supplies or alters a motor vehicle or trailer in contravention of this section, or causes or permits it to be so supplied or altered, is guilty of an offence.

(6) A person shall not be convicted of an offence under this section in respect of the supply or alteration of a motor vehicle or trailer if he proves—

(a) that it was supplied or altered, as the case may be, for export from Great Britain, or

(b) that he had reasonable cause to believe that the vehicle or trailer would not be used on a road in Great Britain, or would not be so used until it had been put into a condition in which it might lawfully be so used, or

(c) in the case of a vehicle or trailer the supply of which is alleged to be unlawful by reason of its condition as respects lighting equipment or reflectors or their maintenance, that he had reasonable cause to believe that the vehicle or trailer would not be used on a road in Great Britain during the hours of darkness until it had been put into a condition in which it might be so used during those hours without contravention of the requirements imposed by law as to obligatory lamps or reflectors.

(7) Nothing in the preceding provisions of this section shall affect the validity of a contract or any rights arising under a contract.

(8) In this section "obligatory lamps or reflectors" means, in relation to a motor vehicle or trailer, the lamps or reflectors required by law to be carried on it while it is on a road—

(a) during the hours of darkness, and

(b) when it is neither drawing nor being drawn by another vehicle, except that the expression does not, in the case of a trailer, include any lamps showing a white light to the front.

**PART II**

Fitting and  
supply of  
defective or  
unsuitable  
vehicle parts.

**76.—(1) If any person—**

- (a) fits a vehicle part to a vehicle, or
- (b) causes or permits a vehicle part to be fitted to a vehicle,

in such circumstances that the use of the vehicle on a road would, by reason of that part being fitted to the vehicle, constitute a contravention of or failure to comply with any of the construction and use requirements, he is guilty of an offence.

(2) A person shall not be convicted of an offence under subsection (1) above if he proves—

- (a) that the vehicle to which the part was fitted was to be exported from Great Britain, or
- (b) that he had reasonable cause to believe that that vehicle—
  - (i) would not be used on a road in Great Britain, or
  - (ii) that it would not be so used until it had been put into a condition in which its use would not constitute a contravention of or a failure to comply with any of the construction and use requirements.

**(3) If a person—**

- (a) supplies a vehicle part or causes or permits a vehicle part to be supplied, and
- (b) has reasonable cause to believe that the part is to be fitted to a motor vehicle, or to a vehicle of a particular class, or to a particular vehicle,

he is guilty of an offence if that part could not be fitted to a motor vehicle or, as the case may require, to a vehicle of that class or of a class to which the particular vehicle belongs, except in such circumstances that the use of the vehicle on a road would, by reason of that part being fitted to the vehicle, constitute a contravention of or failure to comply with any of the construction and use requirements.

**(4) In this section references to supply include—**

- (a) sell, and
- (b) offer to sell or supply.

(5) A person shall not be convicted of an offence under subsection (3) above in respect of the supply of a vehicle part if he proves—

- (a) that the part was supplied for export from Great Britain, or
- (b) that he had reasonable cause to believe that—
  - (i) it would not be fitted to a vehicle used on a road in Great Britain, or
  - (ii) it would not be so fitted until it had been put into such a condition that it could be fitted otherwise than in such circumstances that the use of the vehicle on a road would, by reason of that part being fitted to the vehicle, constitute a contravention of or failure to comply with any of the construction and use requirements.

(6) An authorised examiner may at any reasonable hour enter premises where, in the course of a business, vehicle parts are fitted to vehicles or are supplied and test and inspect any vehicle or vehicle part found on those premises for the purpose of ascertaining whether—

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(a) a vehicle part has been fitted to the vehicle in such circumstances that the use of the vehicle on a road would, by reason of that part being fitted to the vehicle, constitute a contravention of or failure to comply with any of the construction and use requirements, or

(b) the vehicle part could not be supplied for fitting to a vehicle used on roads in Great Britain without the commission of an offence under subsection (3) above.

(7) For the purpose of testing a motor vehicle and any trailer drawn by it the authorised examiner may drive it and for the purpose of testing a trailer may draw it with a motor vehicle.

(8) Any person who obstructs an authorised examiner acting under subsection (6) or (7) above is guilty of an offence.

(9) In subsections (6) to (8) above "authorised examiner" means a person who may act as an authorised examiner for the purposes of section 67 of this Act; and any such person, other than a constable in uniform, shall produce his authority to act for the purpose of subsections (6) and (7) above if required to do so.

(10) Nothing in this section shall affect the validity of a contract or of any rights arising under a contract.

Testing  
condition of  
used vehicles at  
sale rooms, etc.

77.—(1) An authorised examiner may at any reasonable hour enter premises where used motor vehicles or trailers are supplied in the course of a business and test and inspect any used motor vehicle or trailer found on the premises for the purpose of ascertaining whether it is in an unroadworthy condition for the purposes of section 75(1) of this Act.

(2) In this section (except paragraph (d) below) references to supply include—

- (a) sell,
- (b) offer for sale or supply,
- (c) expose for sale, and
- (d) otherwise keep for sale or supply.

(3) An authorised examiner may at any reasonable hour enter premises where vehicles or vehicle parts of a class prescribed for the purposes of section 63 of this Act are supplied in the course of a business and test and inspect any such vehicle or vehicle part for the purpose of ascertaining whether the vehicle or vehicle part complies with the type approval requirements applicable to a vehicle or vehicle part of that class.

(4) For the purpose of testing a motor vehicle and any trailer drawn by it the authorised examiner may drive it and for the purpose of testing a trailer may draw it with a motor vehicle.

(5) A person who obstructs an authorised examiner acting under this section is guilty of an offence.

(6) In this section "authorised examiner" means a person who may act as an authorised examiner for the purposes of section 67 of this Act; and any such person, other than a constable in uniform, shall produce his authority to act for the purposes of that section if required to do so.

(7) A motor vehicle or trailer shall be treated for the purposes of this section as used if, but only if, it has previously been sold or supplied by retail.

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78.—(1) Subject to any regulations made by the Secretary of State, an authorised person may, on production of his authority, require the person in charge of a motor vehicle—

Weighing of motor vehicles.

- (a) to allow the vehicle or any trailer drawn by it to be weighed, either laden or unladen, and the weight transmitted to the road by any parts of the vehicle or trailer in contact with the road to be tested, and
- (b) for that purpose, to proceed to a weighbridge or other machine for weighing vehicles.

(2) For the purpose of enabling a vehicle or a trailer drawn by it to be weighed or a weight to be tested in accordance with regulations under subsection (1) above, an authorised person may require the person in charge of the vehicle to drive the vehicle or to do any other thing in relation to the vehicle or its load or the trailer or its load which is reasonably required to be done for that purpose.

(3) If a person in charge of a motor vehicle—

- (a) refuses or neglects to comply with any requirement under subsection (1) or (2) above, or
- (b) obstructs an authorised person in the exercise of his functions under this section,

he is guilty of an offence.

(4) An authorised person may not require the person in charge of the motor vehicle to unload the vehicle or trailer, or to cause or allow it to be unloaded, for the purpose of its being weighed unladen.

(5) Regulations under subsection (1) above may make provision with respect to—

- (a) the manner in which a vehicle or trailer is to be weighed or a weight is to be tested as mentioned in subsection (1) above, and
- (b) the limits within which, unless the contrary is proved, any weight determined by a weighbridge or other machine for weighing vehicles is to be presumed to be accurate for the purposes of any provision made by or under this Act or by or under any other enactment relating to motor vehicles or trailers,

and the regulations may make different provision in relation to vehicles of different classes, in relation to different types of weighbridges and other machines and in relation to different circumstances.

(6) If—

- (a) at the time when the requirement is made the vehicle is more than five miles from the weighbridge or other machine, and
- (b) the weight is found to be within the limits authorised by law,

the highway authority (in Scotland, roads authority) on whose behalf the requirement is made must pay, in respect of loss occasioned, such amount as in default of agreement may be determined by a single arbitrator (in Scotland, arbiter) agreed upon by the parties or, in default of agreement, appointed by the Secretary of State.

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(7) The Secretary of State may by order designate areas in Great Britain where subsection (6) above is to have effect, in such cases as may be specified by the order, with the substitution for five miles of a greater distance so specified.

An order under this subsection shall be made by statutory instrument subject to annulment by a resolution of either House of Parliament.

(8) In this section—

(a) “road” includes any land which forms part of a harbour or which is adjacent to a harbour and is occupied wholly or partly for the purposes of harbour operations,

(b) “authorised person” means a person authorised by a highway authority (in Scotland, a roads authority) or a constable authorised on behalf of such an authority by a police authority or a chief officer of police,

1964 c. 40.

and in this subsection “harbour” and “harbour operations” have the meanings given to them by section 57(1) of the Harbours Act 1964.

Further provisions relating to weighing of motor vehicles.

79.—(1) Where a motor vehicle or trailer is weighed under section 78 of this Act, a certificate of weight must be given to the person in charge of the vehicle, and the certificate so given shall exempt the motor vehicle and the trailer, if any, from being weighed so long as it is during the continuance of the same journey carrying the same load.

(2) On production of his authority—

1981 c. 14.

(a) a certifying officer appointed under the Public Passenger Vehicles Act 1981, or

(b) an examiner appointed under section 68 (1) of this Act, or

(c) any of the Secretary of State’s officers authorised by him in that behalf,

may at any time exercise with respect to the weighing of vehicles of a class prescribed for the purposes of section 63 of this Act and goods vehicles generally all such powers with respect to the weighing of motor vehicles and trailers as are exercisable under section 78 of this Act by a constable authorised as mentioned in subsection (8) of that section.

(3) The provisions of section 78 of this Act shall apply accordingly in relation to vehicles of a class so prescribed and goods vehicles generally—

(a) as if references to a constable so authorised included references to such a certifying officer, examiner or officer of the Secretary of State, and

(b) as if the reference in subsection (6) to the authority on whose behalf the requirement is made were a reference to the Secretary of State, and

(c) as if the reference in that subsection to the Secretary of State were a reference, in relation to England and Wales, to the Lord Chief Justice of England and, in relation to Scotland, to the Lord President of the Court of Session.

(4) A certificate in the prescribed form which—

(a) purports to be signed by an authorised person (within the meaning of section 78 of this Act) or by a person exercising powers by virtue of subsection (2) above, and



## PART II

(b) states, in relation to a vehicle identified in the certificate, any weight determined in relation to that vehicle on the occasion of its being brought to a weighbridge or other machine in pursuance of a requirement under section 78(1) of this Act, shall be evidence (in Scotland, sufficient evidence) of the matter so stated.

(5) If, for the purposes of or in connection with the determination of any weight in relation to a vehicle which is brought to a weighbridge or other machine as mentioned in section 78(1) of this Act, an authorised person (within the meaning of that section) or a person exercising powers by virtue of subsection (2) above—

- (a) drives a vehicle or does any other thing in relation to a vehicle or its load or a trailer or its load, or
- (b) requires the driver of a vehicle to drive it in a particular manner or to a particular place or to do any other thing in relation to a vehicle or its load or a trailer or its load,

neither he nor any person complying with such a requirement shall be liable for any damage to or loss in respect of the vehicle or its load or the trailer or its load unless it is shown that he acted without reasonable care.

80.—(1) Where any international agreement to which the United Kingdom is a party or a Community obligation provides— Approval marks.

(a) for markings to be applied—

(i) to motor vehicle parts of any description to indicate conformity with a type approved by any country, or

(ii) to a motor vehicle to indicate that the vehicle is fitted with motor vehicle parts of any description and either that the parts conform with a type approved by any country or that the vehicle is such that as so fitted it conforms with a type so approved, and

(b) for motor vehicle parts or, as the case may be, motor vehicles, bearing those markings to be recognised as complying with the requirements imposed by the law of another country,

the Secretary of State may by regulations designate the markings as approval marks, and any markings so designated shall be deemed for the purposes of the Trade Descriptions Act 1968 to be a trade description, whether or not the markings fall within the definition of the expression in section 2 of that Act. 1968 c. 29.

(2) Any person who, without being authorised by the competent authority to apply any approval mark, applies that mark or a mark so nearly resembling it as to be calculated to deceive is guilty of an offence under the Trade Descriptions Act 1968, whether or not he would be guilty of such an offence apart from this subsection.

(3) The conditions subject to which approval of any type may be given on behalf of the United Kingdom or the use of approval marks indicating conformity with a type approved by the United Kingdom may be authorised may include such conditions as to testing or inspection and the payment of fees as the Secretary of State may impose.

(4) In this section—

“motor vehicle” means a mechanically propelled vehicle or a vehicle designed or adapted for towing by a mechanically propelled vehicle,

## PART II

“motor vehicle part” means any article made or adapted for use as part of a mechanically propelled vehicle or a vehicle drawn by a mechanically propelled vehicle, or for use as part of the equipment of any such vehicle, and shall be treated as including any equipment for the protection of drivers or passengers in or on a motor vehicle notwithstanding that it does not form part of, or of the equipment of, that vehicle, and

“the competent authority” means—

(a) as respects any approval marks indicating conformity with a type approved by the United Kingdom, the Secretary of State, and

(b) as respects any approval marks indicating conformity with a type approved by any other country, the authority having power under the law of that country to authorise the use of that mark.

*Pedal cycles and horse-drawn vehicles*

Regulation of  
brakes, bells etc.,  
on pedal cycles.

81.—(1) The Secretary of State may make regulations as to the use on roads of cycles, their construction and equipment and the conditions under which they may be so used.

(2) In particular, but without prejudice to the generality of subsection (1) above, the regulations may make provision as to—

- (a) the number, nature and efficiency of brakes and their maintenance in proper working order,
- (b) the appliances to be fitted for signalling approach and their maintenance in proper working order, and
- (c) the testing and inspection, by persons authorised under the regulations, of any equipment prescribed under this section and of lighting equipment and reflectors.

(3) Regulations under this section may provide for repealing byelaws dealing with the same subject-matter as the regulations, and for suspending while the regulations remain in force any power of making such byelaws.

(4) Regulations under this section may be made so as to apply either generally or in such circumstances only as may be specified in the regulations.

(5) Regulations under this section as to the use on roads of cycles may prohibit the sale or supply, or the offer of a sale or supply, of a cycle for delivery in such a condition that the use of it on a road in that condition would be a contravention of the regulations, but no provision made by virtue of this subsection shall affect the validity of any contract or any rights arising under a contract.

(6) If a person sells or supplies or offers to sell or supply a cycle in contravention of any prohibition imposed by regulations made by virtue of subsection (5) above, he is guilty of an offence, unless he proves—

- (a) that it was sold, supplied or offered for export from Great Britain, or
- (b) that he had reasonable cause to believe that it would not be used on a road in Great Britain, or would not be so used until it had been put into a condition in which it might lawfully be so used.

**82.—**(1) The Secretary of State may make regulations for regulating the number, nature and use of brakes, including skid pans and locking-chains, in the case of vehicles drawn by horses or other animals, or any class of such vehicles, when used on roads.

**PART II**  
Regulation of  
brakes on horse-  
drawn vehicles.

(2) Regulations under this section may be made for securing that such brakes are efficient and kept in proper working order, and for empowering persons authorised by or under the regulations to test and inspect any such brakes, whether on a road or elsewhere.

(3) Regulations under this section may provide for repealing byelaws dealing with the same subject matter as the regulations, and for suspending while the regulations remain in force any power of making such byelaws.

(4) Regulations under this section may be made so as to apply either generally or in such circumstances only as may be specified in the regulations.

#### *Miscellaneous*

**83.** A person who sells, or offers or exposes for sale, any appliance adapted for use as a reflector or tail lamp to be carried on a vehicle in accordance with the provisions of this Act or of any regulations made under it, not being an appliance which complies with the construction and use requirements applicable to a class of vehicles for which the appliance is adapted, is guilty of an offence.

Offences to do  
with reflectors  
and tail lamps.

**84.—**(1) Subject to the consent of the Treasury as to number, the Secretary of State may appoint such officers and servants as he considers necessary for the operation of the provisions of sections 68 to 73 of this Act.

Appointment of  
officials and  
destination of  
fees.

(2) There shall be paid to goods vehicles examiners appointed for the purposes of sections 68 to 73 of this Act such remuneration or salaries and such allowances (if any) as the Secretary of State may, with the consent of the Treasury, determine.

(3) In every year there shall be paid out of monies provided by Parliament such sums as the Secretary of State may, with the consent of the Treasury, direct in respect of the remuneration, salaries and allowances under subsection (2) above and the other expenses of examiners.

(4) Any sum received by the Secretary of State in pursuance of sections 45, 46, 49 to 51, 54 to 62, 72(9) and 80 of this Act shall be paid into the Consolidated Fund.

**85.** In this Part of this Act—

“the Community Recording Equipment Regulation” means Council Regulation (EEC) No. 3821/85 of 20th December 1985 on recording equipment in road transport, as read with the Community Drivers’ Hours and Recording Equipment (Exemptions and Supplementary Provisions) Regulations 1986, the Community Drivers’ Hours and Recording Equipment (Exemptions and Supplementary Provisions) (Amendment) Regulations 1986 and the Community Drivers’ Hours and Recording Equipment (Exemptions and Supplementary Provisions) (Amendment) Regulations 1987,

Interpretation of  
Part II.

OJ No. L370/8  
of 31.12.85.

S.I. 1986/1456.

S.I. 1986/1669.

S.I. 1987/805.

**PART II**  
1968 c. 73.

“licensing authority” means a licensing authority for the purposes of Part V of the Transport Act 1968,

“official testing station” means a testing station maintained by the Secretary of State under section 72(8) of this Act,

“prescribed” means prescribed by regulations made by the Secretary of State,

“sold or supplied by retail” means sold or supplied otherwise than to a person acquiring solely for the purpose of resale or of re-supply for a valuable consideration,

“tail lamp” means, in relation to a vehicle, any lamp carried attached to the vehicle for the purpose of showing a red light to the rear in accordance with regulations under section 41 of this Act,

1981 c. 14.

“traffic area” has the same meaning as in the Public Passenger Vehicles Act 1981, and

“vehicle part” means any article which is a motor vehicle part, within the meaning of section 80 of this Act, and any other article which is made or adapted for use as part of, or as part of the equipment of, a vehicle which is intended or adapted to be used on roads but which is not a motor vehicle within the meaning of that section.

Index to Part II.

86. The expressions listed in the left-hand column below are respectively defined or (as the case may be) fall to be construed in accordance with the provisions of this Part of this Act listed in the right-hand column in relation to those expressions.

| <i>Expression</i>                                               | <i>Relevant provision</i> |
|-----------------------------------------------------------------|---------------------------|
| Certificate of conformity                                       | Section 57(1)             |
| Community Recording Equipment Regulation                        | Section 85                |
| Construction and use requirements                               | Section 41(7)             |
| Design weights                                                  | Section 54(3)             |
| Examination for plating                                         | Section 49(4)             |
| Goods vehicle examiner                                          | Section 68(2)             |
| Goods vehicle test                                              | Section 49(4)             |
| Goods vehicle test certificate                                  | Section 49(2)(b)          |
| Licensing authority                                             | Section 85                |
| Minister's approval certificate                                 | Section 58(1)             |
| Official testing station                                        | Section 85                |
| Plating certificate                                             | Section 49(2)(a)          |
| Plated particulars                                              | Section 41(7)             |
| Plated weights                                                  | Section 41(7)             |
| Prescribed                                                      | Section 85                |
| Relevant aspects of design, construction, equipment and marking | Section 54(6)             |
| Sold or supplied by retail                                      | Section 85                |
| Tail lamp                                                       | Section 85                |
| Test certificate                                                | Section 45(2)             |

| <i>Expression</i>          | <i>Relevant provision</i> |
|----------------------------|---------------------------|
| Traffic area               | Section 85                |
| Type approval certificate  | Section 55(2)             |
| Type approval requirements | Section 54(1)             |
| Vehicle part               | Section 85                |

## PART II

## PART III

## LICENSING OF DRIVERS OF VEHICLES

*Requirement to hold licence*

**87.—**(1) It is an offence for a person to drive on a road a motor vehicle of any class if he is not the holder of a licence authorising him to drive a motor vehicle of that class.

Drivers of motor vehicles to have driving licences.

(2) It is an offence for a person to cause or permit another person to drive on a road a motor vehicle of any class if that other person is not the holder of a licence authorising him to drive a motor vehicle of that class.

**88.—**(1) Notwithstanding section 87 of this Act, a person may drive or cause or permit another person to drive a vehicle of any class if—

Exceptions.

- (a) the driver has held a licence to drive vehicles of that class or an exchangeable licence to drive vehicles of a category corresponding to that class and (in either case) is entitled to obtain a licence to drive vehicles of that class, and
- (b) an application by the driver for the grant of such a licence for a period which includes that time has been received by the Secretary of State or such a licence granted to him has been revoked or surrendered in pursuance of section 99 of this Act, and
- (c) any conditions which by virtue of section 97(3) or 98(2) of this Act apply to the driving under the authority of the licence of vehicles of that class are complied with.

(2) The benefit of subsection (1) above does not extend—

- (a) beyond the date when a licence is granted in pursuance of the application mentioned in subsection (1)(b) above or (as the case may be) in pursuance of section 99(7) of this Act in consequence of the revocation or surrender so mentioned, or
- (b) in a case where a licence is not in fact so granted, beyond the expiration of the period of one year or such shorter period as may be prescribed, beginning on the date of the application or (as the case may be) the revocation or surrender mentioned in subsection (1)(b) above.

(3) The Secretary of State may by regulations provide that subsection (1) above shall also apply (where the requirements of that subsection are otherwise met) in the case of a person who has not previously held a licence to drive vehicles of the relevant class.

(4) Regulations made by virtue of subsection (3) above shall, if not previously revoked, expire at the end of the period of one year beginning with the day on which they came into operation.

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(5) Regulations may provide that a person who becomes resident in Great Britain shall, during the prescribed period after he becomes so resident, be treated for the purposes of section 87 of this Act as the holder of a licence authorising him to drive motor vehicles of the prescribed classes if—

- (a) he satisfies the prescribed conditions, and
- (b) he is the holder of a permit of the prescribed description authorising him to drive vehicles under the law of a country outside the United Kingdom.

(6) Regulations made by virtue of subsection (5) above may provide for the application of any enactment relating to licences or licence holders, with or without modifications, in relation to any such permit and its holder respectively.

(7) Notwithstanding section 87 of this Act—

1984 c. 27.

- (a) a person who is not the holder of a licence may act as steersman of a motor vehicle, being a vehicle on which a speed limit of five miles per hour or less is imposed by or under section 86 of the Road Traffic Regulation Act 1984, under the orders of another person engaged in the driving of the vehicle who is licensed in that behalf in accordance with the requirements of this Part and Part IV of this Act, and
- (b) a person may cause or permit another person who is not the holder of a licence so to act.

*Tests*

Tests of  
competence to  
drive.

89.—(1) A licence authorising the driving of motor vehicles of any class shall not be granted to any person unless he satisfies the Secretary of State—

1960 c. 16.

- (a) that at some time during the period of ten years ending on the date of the coming into force of the licence applied for he has passed the test of competence to drive prescribed by virtue of subsection (3) below or a test of competence which under subsection (6) below is a sufficient test, or
- (b) that within that period of ten years he has held a licence authorising the driving of vehicles of that class, not being a provisional licence, a licence granted by virtue of section 99(4) of the Road Traffic Act 1960 or a licence which has been revoked in pursuance of section 99(3) of this Act, or
- (c) that, at the time of application for the licence—
  - (i) he holds an exchangeable licence authorising the driving of vehicles of a category corresponding to that class, and
  - (ii) he is normally resident in Great Britain or (where the exchangeable licence is a Community licence) the United Kingdom but has not been so resident for more than one year, or
- (d) that—
  - (i) within that period of ten years he has held a licence granted under a relevant external law to drive vehicles of that class, not being a licence corresponding to a provisional

licence or a licence granted under any provision of that law corresponding to section 99(4) of the Road Traffic Act 1960, and

PART III  
1960 c. 16.

(ii) he is not, at the time of application for the licence, disqualified under that law for holding or obtaining a licence under it to drive vehicles of any class.

This subsection is subject to the provisions of this Part of this Act as to provisional licences and to the provisions of any regulations made by virtue of section 105(2)(f) of this Act.

(2) For the purposes of subsection (1)(d) above "relevant external law" means the law for the time being in force in Northern Ireland, that for the time being in force in the Isle of Man or that for the time being in force in any of the Channel Islands that corresponds to this Part of this Act.

(3) Regulations may make provision with respect to—

- (a) the nature of tests of competence to drive for the purposes of this section,
  - (b) the qualifications, selection and appointment of persons by whom they may be conducted and the revocation of any appointment,
  - (c) evidence of the results of such tests,
- and generally with respect to such tests.

(4) In particular, regulations may, without prejudice to the generality of subsection (3) above, provide—

- (a) for requiring a person submitting himself for a test to provide a vehicle for the purposes of the test,
- (b) for requiring a fee, of such amount as may be specified in the regulations or, in such cases as may be prescribed, specified by such person as may be prescribed, to be paid by a person who submits himself for a test or applies for an appointment for a test,
- (c) for ensuring that a person submitting himself for a test and failing to pass that test shall not be eligible to submit himself for another test by the same or any other person before the expiration of a period specified in the regulations, except under an order made by a court or sheriff under the power conferred by section 90 of this Act,

and different regulations may be made with respect to tests of competence to drive different classes of vehicles.

(5) If regulations make provision for a test of competence to drive to consist of separate parts, they may make for each part—

- (a) any provision that could be made for a test not consisting of separate parts, and
- (b) provision for the supply by the Secretary of State of forms for certificates evidencing the results and for charges to be made for the supply.

## PART III

(6) For the purposes of subsection (1)(a) above, a test of competence shall be sufficient for the granting of a licence authorising the driving of—

- (a) vehicles of any class, if at the time the test was passed it authorised the granting of a licence to drive vehicles of that class,
- (b) vehicles of any classes which are designated by regulations as a group for the purposes of subsection (1)(a) above, if at the time the test was passed it authorised the granting of a licence to drive vehicles of any class included in the group.

(7) If vehicles of any classes are designated by regulations as a group for the purposes of subsection (1)(b) above, a licence authorising the driving of vehicles of a class included in the group shall be deemed for the purposes of subsection (1)(b) to authorise the driving of vehicles of all classes included in the group.

The reference in this subsection to a licence does not include a licence which has been revoked in pursuance of section 99(3) of this Act.

(8) For the purposes of this section and section 88(1) of this Act, an exchangeable licence issued in respect of a member State, country or territory shall not be treated as authorising a person to drive a vehicle of any category if—

- (a) the licence is not for the time being valid for that purpose, or
- (b) it was issued in respect of that category for a purpose corresponding to that mentioned in section 97(2) of this Act.

(9) Where an exchangeable licence authorises the driving of vehicles of any category and any vehicle falling within that category falls also within any of the classes designated as a group for the purposes of subsection (1)(a) above—

- (a) that category shall be treated for the purposes of subsection (1)(c) above as corresponding to all classes included in the group, and
- (b) where, by virtue of regulations, a person who passes a test of competence authorising the granting of a licence to drive vehicles of any class included in the group is treated as competent also to drive vehicles of a class included in another group, that category shall be treated for the purposes of subsection (1)(c) above as corresponding to all categories included in that other group.

Review of  
conduct of test.

90.—(1) On the application of a person who has submitted himself for a test of competence to drive—

- (a) a magistrates' court acting for the petty sessions area in which he resides, or
- (b) in Scotland, the sheriff within whose jurisdiction he resides,

may determine whether the test was properly conducted in accordance with regulations.

(2) The court or, as the case may be, sheriff may, if it appears that the test was not so conducted—

- (a) order that the applicant shall be eligible to submit himself for another test before the expiration of the period specified for the purposes of section 89(4)(c) of this Act, and



- (b) order that any fee payable by the applicant in respect of the test shall not be paid or, if it has been paid, shall be repaid.

## PART III

(3) If regulations make provision for a test of competence to drive to consist of separate parts, this section applies in relation to each part as well as in relation to the whole of the test.

**91.** A fee paid in pursuance of regulations made by virtue of section 89(4) of this Act on application for an appointment for a test may be repaid in the following cases and not otherwise—

Repayment of test fees.

- (a) if no such appointment is made, or an appointment made is subsequently cancelled by or on behalf of the Secretary of State,
- (b) if the person for whom the appointment is made gives such notice cancelling the appointment as may be prescribed for the purposes of this paragraph by regulations,
- (c) if the person for whom the appointment is made keeps the appointment, but the test does not take place, or is not completed, for reasons attributable neither to him nor to any vehicle provided by him for the purposes of the test, or
- (d) if an order for the repayment of the fee is made by the court or, as the case may be, sheriff under section 90 of this Act pursuant to a finding that the test was not properly conducted in accordance with the regulations.

*Physical fitness*

**92.—(1)** An application for the grant of a licence must include a declaration by the applicant, in such form as the Secretary of State may require, stating whether he is suffering or has at any time (or, if a period is prescribed for the purposes of this subsection, has during that period) suffered from any relevant disability or any prospective disability.

Requirements as to physical fitness of drivers.

(2) In this Part of this Act—

“disability” includes disease,

“relevant disability” in relation to any person means—

- (a) any prescribed disability, and
- (b) any other disability likely to cause the driving of a vehicle by him in pursuance of a licence to be a source of danger to the public, and

“prospective disability” in relation to any person means any other disability which—

- (a) at the time of the application for the grant of a licence or, as the case may be, the material time for the purposes of the provision in which the expression is used, is not of such a kind that it is a relevant disability, but
- (b) by virtue of the intermittent or progressive nature of the disability or otherwise, may become a relevant disability in course of time.

(3) If it appears from the applicant's declaration, or if on inquiry the Secretary of State is satisfied from other information, that the applicant is suffering from a relevant disability, the Secretary of State must, subject to the following provisions of this section, refuse to grant the licence.

## PART III

(4) The Secretary of State must not by virtue of subsection (3) above refuse to grant a licence—

- (a) on account of any relevant disability which is prescribed for the purposes of this paragraph, if the applicant has at any time passed a relevant test and it does not appear to the Secretary of State that the disability has arisen or become more acute since that time or was, for whatever reason, not disclosed to the Secretary of State at that time,
- (b) on account of any relevant disability which is prescribed for the purposes of this paragraph, if the applicant satisfies such conditions as may be prescribed with a view to authorising the grant of a licence to a person in whose case the disability is appropriately controlled,
- (c) on account of any relevant disability which is prescribed for the purposes of this paragraph, if the application is for a provisional licence.

(5) Where as a result of a test of competence to drive the Secretary of State is satisfied that the person who took the test is suffering from a disability such that there is likely to be a danger to the public—

- (a) if he drives any vehicle, or
- (b) if he drives a vehicle other than a vehicle of a particular construction or design,

the Secretary of State must serve notice in writing to that effect on that person and must include in the notice a description of the disability.

(6) Where a notice is served in pursuance of subsection (5)(a) above, then—

- (a) if the disability is not prescribed under subsection (2) above, it shall be deemed to be so prescribed in relation to the person who took the test, and
- (b) if the disability is prescribed for the purposes of subsection (4)(c) above it shall be deemed not to be so prescribed in relation to him.

(7) Where a notice is served in pursuance of subsection (5)(b) above, any licence granted to the person who took the test shall be limited to vehicles of the particular construction or design specified in the notice.

(8) In this section “relevant test”, in relation to an application for a licence, means any such test of competence as is mentioned in section 89 of this Act or a test as to fitness or ability in pursuance of section 100 of the Road Traffic Act 1960 as originally enacted, being a test authorising the grant of a licence in respect of vehicles of the classes to which the application relates.

(9) Without prejudice to subsection (8) above, for the purposes of subsection (4)(a) above—

- (a) an applicant shall be treated as having passed a relevant test if, and on the day on which, he has passed a test of competence to drive which, under a provision of a relevant external law corresponding to subsections (3) and (4) or (6) and (7) of section 89 of this Act, either is prescribed in relation to vehicles of the

classes to which the application relates or is sufficient under that law for the granting of a licence authorising the driving of vehicles of those classes, and

## PART III

- (b) in the case of an applicant who is treated as having passed a relevant test by virtue of paragraph (a) above, disclosure of a disability to the authority having power under the relevant external law to grant a licence to drive a motor vehicle shall be treated as disclosure to the Secretary of State.

In this subsection "relevant external law" has the meaning given by section 89(2) of this Act.

- 93.—(1) If the Secretary of State is at any time satisfied on inquiry—
- (a) that a licence holder is suffering from a relevant disability, and
  - (b) that the Secretary of State would be required by virtue of section 92(3) or (7) of this Act to refuse an application for the licence made by him at that time,

Revocation of licence because of disability or prospective disability.

the Secretary of State may serve notice in writing on the licence holder revoking the licence with effect from such date as may be specified in the notice, not being earlier than the date of service of the notice.

(2) If the Secretary of State is at any time satisfied on inquiry that a licence holder is suffering from a prospective disability, the Secretary of State may—

- (a) serve notice in writing on the licence holder revoking the licence with effect from such date as may be specified in the notice, not being earlier than the date of service of the notice, and
- (b) on receipt of the licence so revoked and of an application made for the purposes of this subsection, grant to the licence holder, free of charge, a new licence for a period determined by the Secretary of State under section 99(1)(b) of this Act.

(3) A person whose licence is revoked under subsection (1) or (2) above must deliver up the licence to the Secretary of State forthwith after the revocation.

(4) Where a person whose licence is revoked under subsection (1) or (2) above—

- (a) is not in possession of his licence in consequence of the fact that he has surrendered it to a constable or authorised person (within the meaning of Part III of the Road Traffic Offenders Act 1988) on receiving a fixed penalty notice given to him under section 54 of that Act but

1988 c. 53:

(b) delivers it to the Secretary of State immediately on its return, he is not in breach of the duty under subsection (3) above.

94.—(1) If at any time during the period for which his licence remains in force, a licence holder becomes aware—

Provision of information, etc. relating to disabilities.

- (a) that he is suffering from a relevant or prospective disability which he has not previously disclosed to the Secretary of State, or

## PART III

- (b) that a relevant or prospective disability from which he has at any time suffered (and which has been previously so disclosed) has become more acute since the licence was granted,

the licence holder must forthwith notify the Secretary of State in writing of the nature and extent of his disability.

(2) The licence holder is not required to notify the Secretary of State under subsection (1) above if—

- (a) the disability is one from which he has not previously suffered, and
- (b) he has reasonable grounds for believing that the duration of the disability will not extend beyond the period of three months beginning with the date on which he first becomes aware that he suffers from it.

(3) A person who fails without reasonable excuse to notify the Secretary of State as required by subsection (1) above is guilty of an offence.

(4) If the Secretary of State has reasonable grounds for believing that a person who is an applicant for, or the holder of, a licence may be suffering from a relevant or prospective disability, subsection (5) below applies for the purpose of enabling the Secretary of State to satisfy himself whether or not that is the case.

(5) The Secretary of State may by notice in writing served on the applicant or holder—

- (a) require him to provide the Secretary of State, within such reasonable time as may be specified in the notice, with such an authorisation as is mentioned in subsection (6) below, or
- (b) require him, as soon as practicable, to arrange to submit himself for examination—
  - (i) by such registered medical practitioner or practitioners as may be nominated by the Secretary of State, or
  - (ii) with respect to a disability of a prescribed description, by such officer of the Secretary of State as may be so nominated,for the purpose of determining whether or not he suffers or has at any time suffered from a relevant or prospective disability, or
- (c) except where the application is for, or the licence held is, a provisional licence, require him to submit himself for a test of competence to drive, being a test authorising the grant of a licence in respect of vehicles—
  - (i) of all or any of the classes to which the application relates, or
  - (ii) which he is authorised to drive (otherwise than by virtue of section 98(2) of this Act) by the licence which he holds,as the case may be.

(6) The authorisation referred to in subsection (5)(a) above—

- (a) shall be in such form and contain such particulars as may be specified in the notice by which it is required to be provided, and

## PART III

- (b) shall authorise any registered medical practitioner who may at any time have given medical advice or attention to the applicant or licence holder concerned to release to the Secretary of State any information which he may have, or which may be available to him, with respect to the question whether, and if so to what extent, the applicant or licence holder concerned may be suffering, or may at any time have suffered, from a relevant or prospective disability.

(7) If he considers it appropriate to do so in the case of any applicant or licence holder, the Secretary of State—

- (a) may include in a single notice under subsection (5) above requirements under more than one paragraph of that subsection, and
- (b) may at any time after the service of a notice under that subsection serve a further notice or notices under that subsection.

(8) If any person on whom a notice is served under subsection (5) above—

- (a) fails without reasonable excuse to comply with a requirement contained in the notice, or
- (b) fails any test of competence which he is required to take as mentioned in paragraph (c) of that subsection,

the Secretary of State may exercise his powers under sections 92 and 93 of this Act as if he were satisfied that the applicant or licence holder concerned is suffering from a relevant disability which is not prescribed for the purposes of any paragraph of section 92(4) of this Act or, if the Secretary of State so determines, as if he were satisfied that the applicant or licence holder concerned is suffering from a prospective disability.

(9) The Secretary of State must defray any fees or other reasonable expenses of a registered medical practitioner in connection with—

- (a) the provision of information in pursuance of an authorisation required to be provided under subsection (5)(a) above, or
- (b) any examination which a person is required to undergo as mentioned in subsection (5)(b) above.

**95.—**(1) If an authorised insurer refuses to issue to any person such a policy of insurance as complies with the requirements of Part VI of this Act on the ground that the state of health of that person is not satisfactory, or on grounds which include that ground, the insurer shall as soon as practicable notify the Secretary of State of that refusal and of the full name, address, sex and date of birth of that person as disclosed by him to the insurer.

Notification of refusal of insurance on grounds of health.

(2) In subsection (1) above “authorised insurer” means a person or body of persons carrying on insurance business within Group 2 in Part II of Schedule 2 to the Insurance Companies Act 1982 and being a member of the Motor Insurers’ Bureau (a company limited by guarantee and incorporated under the Companies Act 1929 on 14th June 1946).

1982 c. 50.

1929 c. 23.

**PART III**

Driving with  
uncorrected  
defective  
eyesight.

**96.**—(1) If a person drives a motor vehicle on a road while his eyesight is such (whether through a defect which cannot be or one which is not for the time being sufficiently corrected) that he cannot comply with any requirement as to eyesight prescribed under this Part of this Act for the purposes of tests of competence to drive, he is guilty of an offence.

(2) A constable having reason to suspect that a person driving a motor vehicle may be guilty of an offence under subsection (1) above may require him to submit to a test for the purpose of ascertaining whether, using no other means of correction than he used at the time of driving, he can comply with the requirement concerned.

(3) If that person refuses to submit to the test he is guilty of an offence.

*Granting of licences, their form and duration*

Grant of  
licences.

**97.**—(1) Subject to subsection (2) below and section 92 of this Act, the Secretary of State must, on payment of such fee (if any) as may be prescribed, grant a licence to a person who—

- (a) makes an application for it in such manner and containing such particulars as the Secretary of State may specify,
- (b) provides the Secretary of State with such evidence or further evidence in support of the application as the Secretary of State may require,
- (c) surrenders to the Secretary of State any previous licence granted to him after 1st June 1970 or provides the Secretary of State with an explanation for not surrendering it which the Secretary of State considers adequate and, where the application is made by virtue of section 89(1)(c) of this Act, surrenders to the Secretary of State his exchangeable licence, and
- (d) is not disqualified by reason of age or otherwise from obtaining the licence for which he makes the application and is not prevented from obtaining it by the provisions of section 89 of this Act.

(2) If the application for the licence states that it is made for the purpose of enabling the applicant to drive a motor vehicle with a view to passing a test of competence to drive, any licence granted in pursuance of the application shall be a provisional licence for that purpose, and nothing in section 89 of this Act shall apply to such a licence.

(3) A provisional licence—

- (a) shall be granted subject to prescribed conditions,
- (b) shall, in any cases prescribed for the purposes of this paragraph, be restricted so as to authorise only the driving of vehicles of the classes so prescribed,
- (c) may, in the case of a person appearing to the Secretary of State to be suffering from a relevant disability or a prospective disability, be restricted so as to authorise only the driving of vehicles of a particular construction or design specified in the licence, and
- (d) shall not authorise a person, before he has passed a test of competence to drive, to drive a motor cycle having two wheels only, unless it is a learner motor cycle (as defined in subsection

## PART III

(5) below) or its first use (as defined in regulations) occurred before 1st January 1982 and the cylinder capacity of its engine does not exceed 125 cubic centimetres.

(4) Regulations may authorise or require the Secretary of State to refuse a provisional licence authorising the driving of a motor cycle of a prescribed class if the applicant has held such a provisional licence and the licence applied for would come into force within the prescribed period—

- (a) beginning at the end of the period for which the previous licence authorised (or would, if not surrendered or revoked, have authorised) the driving of such a motor cycle, or
- (b) beginning at such other time as may be prescribed.

(5) A learner motor cycle is a motor cycle which either is propelled by electric power or has the following characteristics—

- (a) the cylinder capacity of its engine does not exceed 125 cubic centimetres,
- (b) the maximum power output of its engine does not exceed nine kilowatts (as measured in accordance with International Standards Organisation standard 4106-1978.09.01), and
- (c) its power to weight ratio does not exceed 100 kilowatts per metric tonne, the power being the maximum power output mentioned in paragraph (b) above and the weight that mentioned in subsection (6) below.

(6) The weight referred to in subsection (5) above is the weight of the motor cycle with a full supply of fuel in its tank, an adequate supply of other liquids needed for its propulsion and no load other than its normal equipment, including loose tools.

(7) A person who fails to comply with any condition applicable to him by virtue of subsection (3) above is guilty of an offence.

**98.—**(1) A licence shall be in such form as the Secretary of State may determine and shall— Form of licence.

- (a) state whether, apart from subsection (2) below, it authorises its holder to drive motor vehicles of all classes or of certain classes only and, in the latter case, specify those classes,
- (b) specify the restrictions on the driving of vehicles of any class in pursuance of the licence to which its holder is subject by virtue of the provisions of section 101 of this Act,
- (c) in the case of a provisional licence, specify the conditions subject to which it is granted, and
- (d) where, by virtue of subsection (2) below, the licence authorises its holder to drive vehicles of classes other than those specified in the licence in pursuance of paragraph (a) above, contain such statements as the Secretary of State considers appropriate for indicating the effect of that subsection.

(2) Subject to subsections (3) and (4) below, a licence which, apart from this subsection, authorises its holder to drive motor vehicles of certain classes only (not being—

- (a) a licence granted before 1st June 1970,
- (b) a provisional licence granted after that date, or

## PART III

- (c) any other licence of a description prescribed for the purposes of this subsection)

shall also authorise him to drive motor vehicles of all other classes subject to the same conditions as if he were authorised by a provisional licence to drive motor vehicles of those other classes.

(3) A licence shall not by virtue of subsection (2) above authorise a person to drive—

- (a) a vehicle of a class for the driving of which he could not, by reason of the provisions of section 101 of this Act, lawfully hold a licence, or
- (b) unless he has passed a test of competence to drive, a motor cycle which, by virtue of section 97(3)(d) of this Act, a provisional licence would not authorise him to drive before he had passed that test.

(4) In such cases as the Secretary of State may prescribe, the provisions of subsections (2) and (3) above shall not apply or shall apply subject to such limitations as he may prescribe.

(5) A person who fails to comply with any condition applicable to him by virtue of subsection (2) above is guilty of an offence.

Duration of  
licences.

99.—(1) A licence shall, unless previously revoked or surrendered, remain in force, subject to subsection (2) below—

- (a) except in a case falling within paragraph (b) or (c) of this subsection, for the period ending on the seventieth anniversary of the applicant's date of birth or for a period of three years, whichever is the longer,
- (b) except in a case falling within paragraph (c) of this subsection, if the Secretary of State so determines in the case of a licence to be granted to a person appearing to him to be suffering from a relevant or prospective disability, for such period of not more than three years and not less than one year as the Secretary of State may determine, and
- (c) in the case of a licence granted in exchange for a subsisting licence and in pursuance of an application requesting a licence for the period authorised by this paragraph, for a period equal to the remainder of that for which the subsisting licence was granted,

and any such period shall begin with the date on which the licence in question is expressed to come into force.

(2) To the extent that a provisional licence authorises the driving of a motor cycle of a prescribed class it shall, unless previously surrendered or revoked, remain in force—

- (a) for such period as may be prescribed, or
- (b) if the licence is granted to the holder of a previous licence which was surrendered, revoked or treated as being revoked—
  - (i) for the remainder of the period for which the previous licence would have authorised the driving of such a motor cycle, or
  - (ii) in such circumstances as may be prescribed, for a period equal to that remainder at the time of surrender or revocation.



## (3) Where it appears to the Secretary of State—

## PART III

- (a) that a licence granted by him to any person is required to be endorsed in pursuance of any enactment or was granted in error or with an error or omission in the particulars specified in the licence or required to be so endorsed on it, or
- (b) that the particulars specified in a licence granted by him to any person do not comply with any requirement imposed since the licence was granted by any provision made by or having effect under any enactment,

the Secretary of State may serve notice in writing on that person revoking the licence and requiring him to surrender the licence forthwith to the Secretary of State.

(4) Where the name or address of the licence holder as specified in a licence ceases to be correct, its holder must forthwith surrender the licence to the Secretary of State and provide him with particulars of the alterations falling to be made in the name or address and, in the case of a provisional licence as respects which the prescribed conditions are satisfied, with a statement of his sex and date of birth.

(5) A person who fails to comply with the duty under subsection (4) above is guilty of an offence.

(6) Where a person who has a duty under this section to surrender his licence is not in possession of the licence in consequence of the fact that he has surrendered it to a constable or authorised person (within the meaning of Part III of the Road Traffic Offenders Act 1988) on receiving a fixed penalty notice given to him under section 54 of that Act, he does not fail to comply with the duty if he surrenders the licence to the Secretary of State immediately on its return.

1988 c. 53.

(7) On the surrender of a licence by any person in pursuance of subsection (3) or (4) above, the Secretary of State—

- (a) must, except where the licence was granted in error or is surrendered in pursuance of subsection (3) above in consequence of an error or omission appearing to the Secretary of State to be attributable to that person's fault or in consequence of a current disqualification, and
- (b) may in such an excepted case which does not involve a current disqualification,

grant to that person free of charge a new licence for such period (subject to subsection (8) below) that it expires on the date on which the surrendered licence would have expired had it not been surrendered.

(8) Where the period for which the surrendered licence was granted was based on an error with respect to the licence holder's date of birth such that, if that error had not been made, that licence would have been expressed to expire on a different date, the period of the new licence shall be such that it expires on that different date.

*Appeals*

100.—(1) A person who is aggrieved by the Secretary of State's—

- (a) refusal to grant or revocation of a licence in pursuance of section 92 or 93 of this Act, or

Appeals relating to licences.

## PART III

(b) determination under section 99(1)(b) of this Act to grant a licence for three years or less, or

(c) revocation of a licence in pursuance of section 99(3) of this Act, or by a notice served on him in pursuance of section 92(5) of this Act may, after giving to the Secretary of State notice of his intention to do so, appeal to a magistrates' court acting for the petty sessions area in which he resides or, in Scotland, to the sheriff within whose jurisdiction he resides.

(2) On any such appeal the court or sheriff may make such order as it or he thinks fit and the order shall be binding on the Secretary of State.

(3) It is hereby declared that, without prejudice to section 90 of this Act, in any proceedings under this section the court or sheriff is not entitled to entertain any question as to whether the appellant passed a test of competence to drive if he was declared by the person who conducted it to have failed it.

*Disqualification (otherwise than on conviction)*

Disqualification  
of persons under  
age.

**101.**—(1) A person is disqualified for holding or obtaining a licence to drive a motor vehicle of a class specified in the following Table if he is under the age specified in relation to it in the second column of the Table.

TABLE

| <i>Class of motor vehicle</i>                     | <i>Age (in years)</i> |
|---------------------------------------------------|-----------------------|
| 1. Invalid carriage                               | 16                    |
| 2. Motor cycle                                    | 16                    |
| 3. Small passenger vehicle or small goods vehicle | 17                    |
| 4. Agricultural tractor                           | 17                    |
| 5. Medium-sized goods vehicle                     | 18                    |
| 6. Other motor vehicles                           | 21                    |

(2) The Secretary of State may by regulations provide that subsection (1) above shall have effect as if for the classes of vehicles and the ages specified in the Table in that subsection there were substituted different classes of vehicles and ages or different classes of vehicles or different ages.

(3) Subject to subsection (4) below, the regulations may—

- (a) apply to persons of a class specified in or under the regulations,
- (b) apply in circumstances so specified,
- (c) impose conditions or create exemptions or provide for the imposition of conditions or the creation of exemptions,
- (d) contain such transitional and supplemental provisions (including provisions amending section 108, 120 or 183(5) of this Act) as the Secretary of State considers necessary or expedient.

(4) For the purpose of defining the class of persons to whom, the class of vehicles to which, the circumstances in which or the conditions subject to which regulations made by virtue of subsection (2) above are to apply where an approved training scheme for drivers is in force, it is sufficient for the regulations to refer to a document which embodies the terms (or any of the terms) of the scheme or to a document which is in force in pursuance of the scheme.

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(5) In subsection (4) above—

“approved” means approved for the time being by the Secretary of State for the purpose of the regulations,

“training scheme for drivers” means a scheme for training persons to drive vehicles of a class in relation to which the age which is in force under this section (but apart from any such scheme) is 21 years,

but no approved training scheme for drivers shall be amended without the approval of the Secretary of State.

102. A person is disqualified for obtaining a licence authorising him to drive a motor vehicle of any class so long as he is the holder of another licence authorising him to drive a motor vehicle of that class, whether the licence is suspended or not.

Disqualification to prevent duplication of licences.

103.—(1) If a person disqualified for holding or obtaining a licence—

(a) obtains a licence while he is so disqualified, or

(b) while he is so disqualified drives on a road a motor vehicle or, if the disqualification is limited to the driving of a motor vehicle of a particular class, a motor vehicle of that class,

he is guilty of an offence.

Obtaining licence, or driving, while disqualified.

(2) A licence obtained by any person who is disqualified is of no effect.

(3) A constable in uniform may arrest without warrant any person driving or attempting to drive a motor vehicle on a road whom he has reasonable cause to suspect of being disqualified.

### Miscellaneous

104.—(1) Any proceedings by or against the Secretary of State in a magistrates' court or before the registrar of a county court under this Part of this Act or Part II of the Road Traffic Offenders Act 1988 may be conducted on behalf of the Secretary of State by a person authorised by him for the purposes of this subsection.

Conduct of proceedings in certain courts by or against the Secretary of State.

(2) Any proceedings in any court in Scotland, other than the High Court of Justiciary or the Court of Session, against the Secretary of State under this Part of this Act or Part II of the Road Traffic Offenders Act 1988 may be conducted on behalf of the Secretary of State by any person authorised by him for the purposes of this subsection.

1988 c. 53.

105.—(1) The Secretary of State may make regulations for any purpose for which regulations may be made under the provisions of this Part of this Act and the relevant provisions of the Road Traffic Offenders Act 1988 and for prescribing anything which may be prescribed under any of those provisions, and otherwise for the purpose of carrying any of those provisions into effect.

Regulations.

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(2) In particular, but without prejudice to the generality of subsection (1) above, the regulations may make provision with respect to—

- (a) licences,
- (b) making any particulars with respect to any persons who are disqualified or whose licences are suspended or endorsed available for use by the police,
- (c) preventing a person holding more than one licence,
- (d) facilitating identification of holders of licences,
- (e) providing for the issue of a new licence in the place of a licence lost or defaced on payment of such fee as may be prescribed,
- (f) the effect of a change in the classification of motor vehicles for the purposes of this Part of this Act on licences then in force or issued or on the right to or the subsequent granting of licences, and
- (g) enabling a person—
  - (i) whose entitlement to the grant of a licence to drive a class of motor vehicle is preserved by regulations made by virtue of paragraph (f) above, and
  - (ii) who satisfies such conditions as may be prescribed, to drive (and be employed in driving) that class of motor vehicle while he applies for the licence to be granted to him,

and different regulations may be made as respects different classes of vehicles or as respects the same class of vehicles in different circumstances.

(3) The regulations may—

- (a) make different provision for different circumstances,
- (b) provide for exemptions from any provision of the regulations, and
- (c) contain such incidental and supplemental provisions as the Secretary of State considers expedient for the purposes of the regulations,

and nothing in the other provisions of this Part of this Act shall be construed as prejudicing the generality of the preceding provisions of this subsection.

(4) Any fee prescribed under this Part of this Act shall be of an amount approved by the Treasury, and different fees may be prescribed for different circumstances.

1988 c. 53.

(5) In subsection (1) above “the relevant provisions of the Road Traffic Offenders Act 1988” means the following provisions of that Act: sections 2, 7, 8, 23 to 26, 27, 31 and 34 to 48.

Destination of  
fees for licences,  
etc.

**106.**—(1) All fees received by the Secretary of State for licences under this Part of this Act shall be paid into the Consolidated Fund.

(2) Fees in respect of tests of competence to drive payable by virtue of regulations made by virtue of section 89(4) of this Act shall be paid to such person as may be prescribed by the regulations, and any such fees received by a person so prescribed (other than any as to which the regulations provide that they are to be paid to the person conducting the test and retained by him as remuneration) shall be paid into the Consolidated Fund.

107. A notice authorised to be served on any person by section 92, 93 or 99(3) of this Act may be served on him by delivering it to him or by leaving it at his proper address or by sending it to him by post; and for the purposes of this section and section 7 of the Interpretation Act 1978 in its application to this section the proper address of any person shall be his latest address as known to the person serving the notice.

PART III  
Service of  
notices.  
1978 c. 30.

108.—(1) In this Part of this Act—

Interpretation.

“agricultural tractor” means a tractor used primarily for work on land in connection with agriculture,

“articulated goods vehicle” means a motor vehicle which is so constructed that a trailer designed to carry goods may by partial superimposition be attached to it in such manner as to cause a substantial part of the weight of the trailer to be borne by the motor vehicle, and “articulated goods vehicle combination” means an articulated goods vehicle with a trailer so attached,

“Community licence” means a document issued in respect of a member State other than the United Kingdom by an authority of that or another member State (including the United Kingdom) authorising the holder to drive a motor vehicle, not being—

(a) a document containing a statement to the effect that that or a previous document was issued in exchange for a document issued in respect of a State other than a member State, or

(b) a document in any of the forms for an international driving permit annexed to the Paris Convention on Motor Traffic of 1926, the Geneva Convention on Road Traffic of 1949 or the Vienna Convention on Road Traffic of 1968,

“disability” has the meaning given by section 92 of this Act,

“disqualified” means disqualified for holding or obtaining a licence, and “disqualification” is to be interpreted accordingly,

“exchangeable licence” means a Community licence or a document which would be a Community licence if—

(a) Gibraltar, and

(b) each country or territory within this paragraph by virtue of an order under subsection (2) below,

were or formed part of a member State other than the United Kingdom,

“licence” means a licence to drive a motor vehicle granted under this Part of this Act,

“maximum gross weight”, in relation to a motor vehicle or trailer, means the weight of the vehicle laden with the heaviest load which it is constructed or adapted to carry,

“maximum train weight”, in relation to an articulated goods vehicle combination, means the weight of the combination laden with the heaviest load which it is constructed or adapted to carry,

## PART III

“medium-sized goods vehicle” means a motor vehicle which is constructed or adapted to carry or to haul goods and is not adapted to carry more than nine persons inclusive of the driver and the permissible maximum weight of which exceeds 3.5 but not 7.5 tonnes,

“permissible maximum weight”, in relation to a goods vehicle (of whatever description), means—

(a) in the case of a motor vehicle which neither is an articulated goods vehicle nor is drawing a trailer, the relevant maximum weight of the vehicle,

(b) in the case of an articulated goods vehicle—

(i) when drawing only a semi-trailer, the relevant maximum train weight of the articulated goods vehicle combination,

(ii) when drawing a trailer as well as a semi-trailer, the aggregate of the relevant maximum train weight of the articulated goods vehicle combination and the relevant maximum weight of the trailer,

(iii) when drawing a trailer but not a semi-trailer, the aggregate of the relevant maximum weight of the articulated goods vehicle and the relevant maximum weight of the trailer,

(iv) when drawing neither a semi-trailer nor a trailer, the relevant maximum weight of the vehicle,

(c) in the case of a motor vehicle (not being an articulated goods vehicle) which is drawing a trailer, the aggregate of the relevant maximum weight of the motor vehicle and the relevant maximum weight of the trailer,

“prescribed” means prescribed by regulations,

“prospective disability” has the meaning given by section 92 of this Act,

“provisional licence” means a licence granted by virtue of section 97(2) of this Act,

“regulations” means regulations made under section 105 of this Act,

“relevant disability” has the meaning given by section 92 of this Act,

“relevant maximum weight”, in relation to a motor vehicle or trailer, means—

(a) in the case of a vehicle to which regulations under section 49 of this Act apply which is required by regulations under section 41 of this Act to have a maximum gross weight for the vehicle marked on a plate issued by the Secretary of State under regulations under section 41, the maximum gross weight so marked on the vehicle,

(b) in the case of a vehicle which is required by regulations under section 41 of this Act to have a maximum gross weight for the vehicle marked on the vehicle and does not also have a maximum gross weight marked on it as mentioned in paragraph (a) above, the maximum gross weight marked on the vehicle,

## PART III

(c) in the case of a vehicle on which a maximum gross weight is marked by the same means as would be required by regulations under section 41 of this Act if those regulations applied to the vehicle, the maximum gross weight so marked on the vehicle,

(d) in the case of a vehicle on which a maximum gross weight is not marked as mentioned in paragraph (a), (b) or (c) above, the notional maximum gross weight of the vehicle, that is to say, such weight as is produced by multiplying the unladen weight of the vehicle by the number prescribed by the Secretary of State for the class of vehicle into which that vehicle falls,

“relevant maximum train weight”, in relation to an articulated goods vehicle combination, means—

(a) in the case of an articulated goods vehicle to which regulations under section 49 of this Act apply which is required by regulations under section 41 of this Act to have a maximum train weight for the combination marked on a plate issued by the Secretary of State under regulations under section 41, the maximum train weight so marked on the motor vehicle,

(b) in the case of an articulated goods vehicle which is required by regulations under section 41 of this Act to have a maximum train weight for the combination marked on the vehicle and does not also have a maximum train weight marked on it as mentioned in paragraph (a) above, the maximum train weight marked on the motor vehicle,

(c) in the case of an articulated goods vehicle on which a maximum train weight is marked by the same means as would be required by regulations under section 41 of this Act if those regulations applied to the vehicle, the maximum train weight so marked on the motor vehicle,

(d) in the case of an articulated goods vehicle on which a maximum train weight is not marked as mentioned in paragraph (a), (b) or (c) above, the notional maximum gross weight of the combination, that is to say, such weight as is produced by multiplying the sum of the unladen weights of the motor vehicle and the semi-trailer by the number prescribed by the Secretary of State for the class of articulated goods vehicle combination into which that combination falls,

“semi-trailer”, in relation to an articulated goods vehicle, means a trailer attached to it in the manner described in the definition of articulated goods vehicle,

“small goods vehicle” means a motor vehicle (other than a motor cycle or invalid carriage) which is constructed or adapted to carry or to haul goods and is not adapted to carry more than nine persons inclusive of the driver and the permissible maximum weight of which does not exceed 3.5 tonnes,

“small passenger vehicle” means a motor vehicle (other than a motor cycle or invalid carriage) which is constructed solely to carry passengers and their effects and is adapted to carry not more than nine persons inclusive of the driver, and

## PART III

"test of competence to drive" means such a test conducted under section 89 of this Act.

(2) If the Secretary of State is satisfied that satisfactory provision for the granting of licences to drive motor vehicles is made by the law of a country or territory which neither is nor forms part of a member State, he may by order made by statutory instrument designate that country or territory as a country or territory within paragraph (b) of the definition of exchangeable licence in subsection (1) above.

(3) Before making any order under subsection (2) above, the Secretary of State shall consult with such representative organisations as he thinks fit.

Provisions as to  
Northern Ireland  
drivers' licences.

**109.**—(1) The holder of a licence to drive a motor vehicle granted under the law of Northern Ireland may drive, and a person may cause or permit the holder of such a licence to drive, in Great Britain, a motor vehicle of any class which he is authorised by that licence to drive, and which he is not disqualified from driving under this Part of this Act, notwithstanding that he is not the holder of a licence under this Part of this Act.

(2) Any driver holding a licence so granted shall be under the like obligation to produce such a licence as if it had been a licence granted under this Part of this Act, and the provisions—

(a) of this Act, and

1988 c. 53.

(b) of the Road Traffic Offenders Act 1988, being the provisions connected with the licensing of drivers within the meaning of that Act,

as to the production of licences granted under this Part of this Act shall apply accordingly.

(3) The holder of any such licence who by an order of the court is disqualified for holding or obtaining a licence under this Part of this Act must produce the licence so held by him to the court within such time as the court may determine, and the court must, on production of the licence, forward it to the Secretary of State.

(4) If the holder fails to produce the licence within that time, he is guilty of an offence.

(5) If the holder of any such licence is convicted of an offence and the court orders particulars of the conviction to be endorsed in accordance with section 44 of the Road Traffic Offenders Act 1988, the court shall send those particulars to the Secretary of State.

## PART IV

## LICENSING OF DRIVERS OF HEAVY GOODS VEHICLES

*Requirement for HGV licence*

Drivers of heavy  
goods vehicles to  
be licensed.

**110.**—(1) It is an offence for a person to drive a heavy goods vehicle of any class on a road if he is not licensed under this Part of this Act to drive a heavy goods vehicle of that class.

(2) It is an offence for a person to cause or permit another person to drive a heavy goods vehicle of any class on a road if that other person is not so licensed to drive a heavy goods vehicle of that class.



(3) Nothing in subsection (1) or (2) above makes it unlawful—

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(a) for a person who is not so licensed to act, or

(b) for a person to cause or permit such a person to act,

as steersman of a heavy goods vehicle (being a vehicle on which a speed limit of five miles per hour or less is imposed by or under section 86 of the Road Traffic Regulation Act 1984) under the orders of another person engaged in the driving of the vehicle who is licensed in that behalf in accordance with the requirements of Part III of this Act and this section.

1984 c. 27.

(4) Neither subsection (1) nor subsection (2) above applies to the driving of, or the causing or permitting of a person to drive, a vehicle in any case where—

(a) the excise duty in respect of the vehicle under the Vehicles (Excise) Act 1971 is chargeable at the rate applicable to vehicles specified in paragraph 2(1) of Schedule 3 to that Act, and

1971 c. 10.

(b) the vehicle is being driven for one of the purposes for which it must solely be used if the duty is to remain chargeable at that rate.

#### *Grant, duration and revocation of licences*

111.—(1) The traffic commissioner for any area constituted for the purposes of the Public Passenger Vehicles Act 1981 shall exercise the function of granting licences under this Part of this Act (in this Part of this Act referred to as “heavy goods vehicle drivers’ licences”) and is in this Part of this Act referred to as “the licensing authority”.

Licensing authority, and applications, for HGV drivers’ licences.  
1981 c. 14.

(2) An application for a heavy goods vehicle driver’s licence shall be made to the licensing authority of the traffic area in which the applicant for the licence resides.

112.—(1) Subject to the provisions of any regulations made by virtue of section 117(2)(m) of this Act, the licensing authority must not grant a full licence to drive a heavy goods vehicle of any class unless he is satisfied—

Grant of HGV drivers’ licences.

(a) that the applicant for the licence has at some time during the period of five years ending on the date of the coming into force of the licence passed the prescribed test of competence to drive vehicles of that class, or

(b) that the applicant for the licence has within that period held a full licence authorising the driving of vehicles of that class, or

(c) that the applicant for the licence holds a licence to drive a motor vehicle granted under Part III of this Act and that—

(i) either he holds an exchangeable licence authorising the driving of vehicles of a category corresponding to that class or, at the time of the application for the licence granted under Part III of this Act which he holds or of an application for a previous such licence, he surrendered such an exchangeable licence, and

(ii) he fulfils the requirements of subsection (2) below.

**PART IV**

(2) Those requirements are that at the time of his application for the heavy goods vehicle driver's licence he has not been normally resident in Great Britain or (where the exchangeable licence is or was a Community licence) the United Kingdom for more than 18 months, that he surrenders to the licensing authority any exchangeable licence which he holds, and that either—

- (a) he has passed in the member State or territory in respect of which his exchangeable licence was issued a test in respect of vehicles of a category corresponding to the class in question, being a test which, in the opinion of the Secretary of State, is equivalent to the prescribed test of competence to drive vehicles of that class, or
- (b) at the time at which he became normally resident in Great Britain or (where the exchangeable licence is or was a Community licence) the United Kingdom, he had been in the habit of driving vehicles of a category corresponding to the class in question—
  - (i) for a period of six months falling within the period of 18 months ending at that time, or
  - (ii) for a period of one year falling within the period of three years ending at that time,or for periods which, taken together, satisfy sub-paragraph (i) or (ii) above.

(3) Subsection (8) of section 89 of this Act shall apply for the purposes of this section as it applies for the purposes of that.

(4) For the purposes of this section, where an exchangeable licence authorises the driving of vehicles of any category and any vehicle falling within that category falls also within any class of vehicles specified by regulations under section 117 of this Act as a class in respect of which a heavy goods vehicle driver's licence may be issued—

- (a) that category shall be treated as corresponding to that class, and
- (b) where, by virtue of those regulations, a person who passes a test of competence to drive vehicles of that class is treated as having also passed a test of competence to drive vehicles of another class, that category shall be treated as corresponding to that other class.

(5) For the purpose of enabling an applicant to learn to drive a heavy goods vehicle with a view to passing the prescribed test of competence to drive, the licensing authority may issue to him a heavy goods vehicle driver's licence as a provisional licence.

(6) A licence issued by virtue of subsection (5) above or a full licence granted to an applicant who is under the age of 21 on the date of the application shall be subject to the prescribed conditions, and if the person to whom it is issued fails to comply with any of the conditions he is guilty of an offence.

(7) It is an offence for a person to cause or permit another person who is under the age of 21 to drive a heavy goods vehicle of any class in contravention of any prescribed conditions subject to which that other person's licence is issued.

(8) In this section—

**PART IV**

“Community licence” has the same meaning as in Part III of this Act,

“exchangeable licence” means a Community licence or a document which would be a Community licence if Gibraltar formed part of a member State other than the United Kingdom.

**113.—**(1) Subject to subsection (4) below, a heavy goods vehicle driver's licence shall, unless previously revoked, continue in force for three years from the date on which it is expressed to take effect. Duration of  
HGV drivers'  
licences.

(2) A heavy goods vehicle driver's licence may at any time be suspended or revoked by the licensing authority of the area in which it was granted on the ground that, by reason of his conduct (including conduct in Northern Ireland) as a driver of a motor vehicle or of physical disability, the holder is not a fit person to hold such a licence and during any time of suspension such a licence shall be of no effect.

(3) Without prejudice to subsection (1) above, if there come into existence, in relation to the holder of a heavy goods vehicle driver's licence who is under the age of 21, such circumstances as may be prescribed relating to his conduct as a driver of a motor vehicle, the licensing authority of the area in which the licence was granted must revoke the licence.

(4) Subject to subsection (5) below, a licence issued by virtue of section 112(5) of this Act shall, unless previously revoked, continue in force for six months from the date on which it is expressed to take effect.

(5) Subsection (4) above does not apply to a licence treated as a provisional licence by virtue of section 117(2)(e) of this Act.

(6) Without prejudice to section 116(5) of this Act, if on the date on which an application is made for a heavy goods vehicle driver's licence, the applicant is the holder of such a licence, his existing licence shall not expire in accordance with subsection (1) above before the application is disposed of.

**114.—**(1) Where in pursuance of section 113(2) of this Act the licensing authority revokes a heavy goods vehicle driver's licence, the authority may— Disqualification  
on revocation of  
HGV driver's  
licence.

(a) order the holder to be disqualified indefinitely or for such period as the authority thinks fit for holding or obtaining such a licence, or

(b) if—

(i) the licence is a full licence, and

(ii) it appears to the authority that, owing to the conduct or physical disability of the holder of the licence, it is expedient to require him to comply with the prescribed conditions applicable to provisional licences under this Part of this Act until he passes the prescribed test of competence to drive heavy goods vehicles of any class,

order him to be disqualified for holding or obtaining a full licence until he passes such a test.

## PART IV

(2) Where in pursuance of section 113(3) of this Act the licensing authority is required to revoke the heavy goods vehicle driver's licence of a person under the age of 21, the authority must order that person to be disqualified for holding or obtaining such a licence until he attains the age of 21.

(3) Where the holder of a heavy goods vehicle driver's licence is disqualified under subsection (1)(a) above, the licensing authority for the traffic area where he resides may, in such circumstances as may be prescribed, remove the disqualification.

(4) Where the holder of a full licence is disqualified under subsection (1)(b) above, a licensing authority must not afterwards grant him a full licence to drive a heavy goods vehicle of any class unless satisfied that he has since the disqualification passed the prescribed test of competence to drive vehicles of that class, and until he passes that test any full licence obtained by him shall be of no effect.

(5) If, while the holder of a heavy goods vehicle driver's licence is disqualified under subsection (2) above, the circumstances prescribed for the purposes of section 113(3) of this Act cease to exist in his case, the licensing authority of the traffic area where he resides must, on an application made to the authority in that behalf, remove the disqualification.

(6) So long as the disqualification under subsection (1)(a) or (2) above of the holder of a heavy goods vehicle driver's licence continues in force, a heavy goods vehicle driver's licence must not be granted to him and any such licence obtained by him shall be of no effect.

*Appeals and review of tests*Review of  
conduct of test.

115.—(1) On the application of a person who has submitted himself for a test of competence to drive—

(a) a magistrates' court acting for the petty sessions area in which he resides, or

(b) in Scotland, the sheriff within whose jurisdiction he resides,  
may determine whether the test was properly conducted in accordance with the regulations.

(2) The court or, as the case may be, sheriff may, if it appears that the test was not so conducted—

(a) order that the applicant shall be eligible to submit himself for another test before the expiration of the period specified for the purposes of section 117 (2)(k) of this Act, and

(b) order that any fee payable by the applicant in respect of the test shall not be paid or, if it has been paid, shall be repaid.

Appeals relating  
to HGV drivers'  
licences.

116.—(1) A person who, being the holder of, or an applicant for, a heavy goods vehicle driver's licence feels aggrieved by the licensing authority's—

(a) refusal or failure to grant such a licence, or

(b) imposition of any limitation on such a licence, or

(c) suspension or revocation of such a licence, or

(d) ordering of disqualification under section 114 (1) of this Act, may by notice in writing to the licensing authority require him to reconsider the matter, and shall on a reconsideration be entitled to be heard either personally or by his representative.

## PART IV

(2) Subject to subsection (4) below, a person who feels aggrieved as mentioned in subsection (1) above or who is dissatisfied with the decision of the licensing authority on reconsideration of the matter, may appeal to a magistrates' court acting for the petty sessions area in which he resides or, if he resides in Scotland, to the sheriff within whose jurisdiction he resides.

(3) On any such appeal the court or sheriff may make such order as it or he thinks fit and an order so made is binding on the licensing authority.

(4) No appeal lies under this section in respect of any matter in respect of which an application may be made to a magistrates' court or a sheriff under section 115 of this Act.

(5) Where an applicant for a heavy goods vehicle driver's licence who is at the date of his application the holder of such a licence (other than one issued as a provisional licence) appeals under this section on the ground of refusal or failure to grant the licence, the existing licence shall not expire before the appeal is disposed of.

*General and supplemental*

117.—(1) The Secretary of State may make regulations for the purpose of carrying the provisions of this Part of this Act into effect. Regulations.

(2) Without prejudice to the generality of subsection (1) above, the regulations may—

- (a) make provision with respect to tests of competence to drive heavy goods vehicles and, in particular, the nature of such tests, the qualifications, selection, appointment and removal of the persons by whom they may be conducted, and evidence of the results of the test,
- (b) require applicants for such tests or for heavy goods vehicle drivers' licences (whether full or provisional) to have such qualifications, experience and knowledge (including, in the case of applicants for licences, qualifications with respect to health and driving conduct and, if the applicant is to be authorised to drive vehicles of any class at an age below the normal minimum age for driving vehicles of that class, with respect to participation in an approved training scheme for drivers) as may be prescribed,
- (c) require a person submitting himself for a test to produce for the purposes of the test a vehicle of the class in respect of which he is to be tested, loaded or unloaded according as may be prescribed, and, in the case of a loaded vehicle, impose requirements about its loading,
- (d) restrict the issue of provisional licences, in the case of prescribed classes of applicants or in prescribed circumstances, to such classes of vehicle as may be prescribed,

## PART IV

1970 c. 2 (N.I.).  
S.I. 1981/160.

- (e) provide that a full licence to drive a heavy goods vehicle of a particular class shall also be treated for the purposes of this Part of this Act as a provisional licence to drive heavy goods vehicles of another prescribed class,
- (f) make provision for preventing a person holding more than one licence and for facilitating the identification of licence holders,
- (g) make provision with respect to applications for and the issue of heavy goods vehicle drivers' licences,
- (h) make provision with respect to the custody and production of any heavy goods vehicle driver's licence or any Northern Ireland licence (within the meaning of section 121 of this Act) or any licence under Part I of the Road Traffic Act (Northern Ireland) 1970 or Part II of the Road Traffic (Northern Ireland) Order 1981 to drive heavy goods vehicles of any description, and require the return to a prescribed licensing authority of any such licence which has expired or been suspended or revoked,
- (i) require the payment of a fee of a prescribed amount by a person who applies for a test and provide for the repayment of any such fee in the prescribed circumstances,
- (k) provide that a person submitting himself for, but failing to pass, a test shall not be eligible to submit himself for another test before the expiration of a prescribed period, except under an order made by a court or sheriff under section 115 of this Act,
- (l) provide for the issue of a new licence in place of a licence lost or defaced on payment of the prescribed fee,
- (m) make provision about the effect of a change in the meaning of heavy goods vehicle or in the classification of heavy goods vehicles for the purposes of this Part of this Act on heavy goods vehicle drivers' licences then in force or issued or on the granting of such licences afterwards,

and different provision may be made by the regulations for different cases.

(3) In subsection (2)(b) above—

“approved training scheme for drivers” means a training scheme for drivers (as defined in section 101(5) of this Act) approved for the time being by the Secretary of State for the purposes of regulations under this section, and

“normal minimum age for driving”, in relation to the driving of vehicles of any class, means the age which is in force under section 101 of this Act (but apart from any approved training scheme for drivers) in relation to that class of vehicle.

(4) Regulations under this section may provide that a person who contravenes or fails to comply with any specified provision of the regulations is guilty of an offence.

(5) The Secretary of State may by regulations provide that this Part of this Act shall not apply to heavy goods vehicles of such classes as may be prescribed either generally or in such circumstances as may be prescribed.

Fees and  
expenses.

118.—(1) There shall be charged by licensing authorities in respect of the grant of heavy goods vehicle drivers' licences such fees as may be prescribed.

(2) All fees received by licensing authorities in respect of the grant of such licences shall be paid into the Consolidated Fund in such manner as the Treasury may direct.

PART IV

(3) Any fees received by the Secretary of State in pursuance of regulations under section 117 of this Act shall be paid into the Consolidated Fund.

119. The Secretary of State may by regulations provide that a person who passes a test of competence to drive heavy goods vehicles of any prescribed class for the purpose of obtaining a full licence shall, in such circumstances as may be prescribed, be treated as having passed a test of competence to drive prescribed by virtue of section 89 (3) of this Act for any prescribed class of motor vehicle.

Common test of competence to drive for the purposes of Parts III and IV.

120. In this Part of this Act—

Interpretation.

“full licence” means a heavy goods vehicle driver’s licence other than a provisional licence,

“heavy goods vehicle” means—

- (a) an articulated goods vehicle, or
- (b) a large goods vehicle, that is to say, a motor vehicle (not being an articulated goods vehicle) which is constructed or adapted to carry or to haul goods and the permissible maximum weight of which exceeds 7.5 tonnes,

“heavy goods vehicle driver’s licence” has the meaning given by section 111 of this Act,

“licensing authority” has the meaning given by section 111 of this Act,

“prescribed” means prescribed by regulations under section 117 of this Act,

and in this section “articulated goods vehicle” and “permissible maximum weight” have the same meaning as in Part III of this Act.

121.—(1) The holder of a licence specifically to drive heavy goods vehicles granted under the law of Northern Ireland (in this section referred to as a “Northern Ireland licence”) may drive, and be employed in driving, on a road in Great Britain heavy goods vehicles of any class which he is authorised by that licence to drive, notwithstanding that he is not the holder of a heavy goods vehicle driver’s licence.

Provisions as to Northern Ireland heavy goods vehicle drivers’ licences.

(2) The licensing authority may, notwithstanding anything in section 112 (1) of this Act, grant a full licence to drive a heavy goods vehicle of any class to an applicant resident in Great Britain if he is satisfied that the applicant has, within the period of five years ending on the date of the coming into force of the licence, held a Northern Ireland licence to drive any heavy goods vehicle of that class corresponding to a full licence, not being a licence granted under an enactment of the Parliament of Northern Ireland in consequence of a dispensation from passing a test of competence to drive by reason of the applicant’s residence outside the United Kingdom.

## PART IV

(3) A prescribed licensing authority may exercise as respects Great Britain the like power of suspending or revoking any Northern Ireland licence and of making an order under section 114 (1) of this Act as is conferred in relation to a heavy goods vehicle driver's licence by sections 113 (2) and 114 (1) of this Act on the licensing authority for the traffic area in which the last-named licence was granted, and the provisions of sections 113 (2) and 114 (1) shall have effect accordingly.

(4) A holder of a Northern Ireland licence who is aggrieved by the suspension or revocation of the licence or the ordering of disqualification by virtue of subsection (3) above shall have the like right to require the reconsideration of the matter and the like right of appeal as are conferred by section 116 of this Act, except that the matter shall be reconsidered by the prescribed licensing authority, and—

- (a) an appeal brought by virtue of this subsection shall, if the appellant is not resident in Great Britain, lie to a prescribed magistrates' court or a prescribed sheriff, and
- (b) the provisions of section 116 (2) shall have effect accordingly.

Protection of  
public interests.

122. It is hereby declared that nothing in this Part of this Act is to be treated as conferring on the holder of a licence granted under this Part of this Act any right to the continuance of any benefits arising from, or from a licence granted under, this Part of this Act, or from any conditions attached to any such licence.

## PART V

## DRIVING INSTRUCTION

*Instructors to be registered or licensed*

Driving  
instruction for  
payment to be  
given only by  
registered or  
licensed persons.  
1962 c. 59.

123.—(1) No paid instruction in the driving of a motor car shall be given unless—

- (a) the name of the person giving the instruction is in the register of approved instructors established in pursuance of section 23 of the Road Traffic Act 1962 (in this Part of this Act referred to as "the register"), or
- (b) the person giving the instruction is the holder of a current licence granted under this Part of this Act authorising him to give such instruction.

(2) No paid instruction in the driving of a motor car shall be given unless there is fixed to and exhibited on that motor car in such manner as may be prescribed by regulations either—

- (a) a certificate in such form as may be so prescribed that the name of the person giving the instruction is in the register, or
- (b) a current licence granted under this Part of this Act authorising the person giving the instruction to give such instruction.

(3) For the purposes of subsections (1) and (2) above, instruction is paid instruction if payment of money or money's worth is, or is to be, made by or in respect of the person to whom the instruction is given for the giving of the instruction and for the purposes of this subsection instruction which is given—



## PART V

- (a) free of charge to a person who is not the holder of a current licence to drive a motor vehicle granted under Part III of this Act (other than a provisional licence),
- (b) by, or in pursuance of arrangements made by, a person carrying on business in the supply of motor cars, and
- (c) in connection with the supply of a motor car in the course of that business,

shall be deemed to be given for payment of money by the person to whom the instruction is given.

(4) Where instruction is given in contravention of subsection (1) above—

- (a) the person by whom it is given, and
- (b) if that person is employed by another to give that instruction, that other, as well as that person,

is guilty of an offence.

(5) In proceedings against a person for an offence under subsection (4) above it shall be a defence for him to prove that he did not know, and had no reasonable cause to believe, that his name or, as the case may be, that of the person employed by him, was not in the register at the material time.

(6) If instruction is given in contravention of subsection (2) above, the person by whom it is given is guilty of an offence.

(7) Any reference in this Part of this Act to a current licence is a reference to a licence which has not expired and has not been cancelled, revoked or suspended.

(8) In this section "provisional licence" has the same meaning as in Part III of this Act.

124.—(1) Section 123(1) and (2) of this Act does not apply to the giving of instruction by a police instructor in pursuance of arrangements made by a chief officer of police or, under the authority of a chief officer of police, in pursuance of arrangements made by a local authority.

Exemption of  
police instructors  
from prohibition  
imposed by  
section 123.

(2) In this section—

"police instructor" means a person who is—

- (a) a member of a police force whose duties consist of or include, or have consisted of or included, the giving of instruction in the driving of motor cars to persons being members of a police force, or
- (b) a civilian employed by a police authority for the purpose of giving such instruction to such persons, and

"local authority" means—

- (a) in relation to England and Wales, the council of a county, metropolitan district, or London borough or the Common Council of the City of London,
- (b) in relation to Scotland, a regional or islands council.

## PART V

(3) In the application of subsection (2) above to the metropolitan police, the reference to a civilian employed by a police authority is to be read as a reference to a civilian employed under the Commissioner of Police of the Metropolis or the Receiver for the Metropolitan Police District.

*Registration*

The register of  
approved  
instructors.

**125.**—(1) The compilation and maintenance of the register shall continue by virtue of this Act.

(2) An application for the entry of a person's name in the register must be made, in manner determined by the Secretary of State, accompanied by particulars so determined, to the officer of the Secretary of State (in this Part of this Act referred to as "the Registrar") by whom the register is, on behalf of the Secretary of State, compiled and maintained.

(3) Where a person duly applies for the entry of his name in the register, the Registrar must, on payment of such fee, if any, as may be prescribed by regulations, enter his name in the register if he satisfies the Registrar that the following conditions are fulfilled in his case—

- (a) he has passed such examination of ability to give instruction in the driving of motor cars (consisting of a written examination, a practical test of ability and fitness to drive and a practical test of ability and fitness to instruct) as may be so prescribed,
- (b) he is the holder of a current licence of one of the following kinds—
  - (i) a licence to drive a motor car granted under Part III of this Act (not being a provisional licence), and
  - (ii) a licence to drive a motor car (not being a licence corresponding to a provisional licence) granted under the law in force in Northern Ireland,
- (c) during the period of six years ending with the day on which the application is made, the periods (if any) for which he did not hold one or more of the following licences, that is—
  - (i) a current licence of one of the kinds mentioned in paragraph (b) above, and
  - (ii) a current foreign licence, that is to say, a document issued under the law of a country outside the United Kingdom authorising the holder to drive a motor car in that country,
 did not amount in aggregate to more than two years,
- (d) he has not, during any part of the period of four years ending with the day on which the application is made, been disqualified under section 34 or 36 of the Road Traffic Offenders Act 1988 for holding or obtaining a licence to drive a motor vehicle granted under Part III of this Act, and
- (e) apart from fulfilment of the preceding conditions, he is a fit and proper person to have his name entered in the register.

(4) At any time when a person who held a current licence of one of the following kinds, that is—

- (a) a licence to drive a motor car granted under Part III of this Act, being a provisional licence, and

## PART V

- (b) a licence to drive a motor car (being a licence corresponding to a provisional licence) granted under the law in force in Northern Ireland,

had passed the test of competence to drive a motor car prescribed by virtue of section 89(3) of this Act or the corresponding law in force in Northern Ireland, he shall be regarded for the purposes of paragraph (c) of subsection (3) above as having held a current licence of one of the kinds mentioned in paragraph (b) of that subsection.

(5) The entry of a person's name in the register shall be subject to the condition that, so long as his name is in the register, he will, if at any time required to do so by the Registrar, undergo the test prescribed by regulations of continued ability and fitness to give instruction in the driving of motor cars.

(6) Regulations may provide that persons of such class as may be specified in the regulations shall be exempt from the condition mentioned in subsection (3)(a) above as regards such part of the examination mentioned in that paragraph as may be so specified.

(7) If the Secretary of State is satisfied that satisfactory provision is made by the law of Northern Ireland for the establishment of a register containing the names of persons qualified under that law to give instruction in the driving of motor cars, a person who satisfies the Registrar—

(a) that his name is in the register established under that law, and

(b) that he is resident in Great Britain,

shall be exempt from the condition mentioned in subsection (3)(a) above.

(8) The Registrar must, on making a decision on an application under subsection (2) above, give notice in writing of the decision to the applicant which, in the case of a decision to refuse the application, must state the grounds for the refusal.

(9) In this section "provisional licence" has the same meaning as in Part III of this Act.

126.—(1) Unless previously removed under the following provisions of this Part of this Act, the name of a person shall, subject to subsection (2) below, be removed from the register at the end of the period of four years beginning with—

Duration of registration.

(a) the first day of the month next after that in which the entry of his name was made, or

(b) where his name has been retained in the register under section 127 of this Act, the day with which the last further period for which his name was so retained began.

(2) If an application for the retention of his name in the register is made under section 127 of this Act before the end of that period, the name must not be removed except in pursuance of a decision of the Registrar having effect under that section.

## PART V

(3) Where a person whose name has been removed from the register under subsection (1) above applies under section 125(2) of this Act for his name to be entered again in the register, he shall be required again to pass the examination mentioned in section 125(3)(a) of this Act unless the application is made before the end of the period of one year beginning with the end of the period of four years mentioned in subsection (1) above.

Extension of  
duration of  
registration.

**127.—**(1) A person may, before the time when his name is required under section 126(1) of this Act to be removed from the register, apply to the Registrar, in manner determined by the Secretary of State, accompanied by particulars so determined, for the retention of his name in the register for a further period of four years.

(2) On an application under subsection (1) above, he shall be entitled, on payment of such fee, if any, as may be prescribed by regulations, to have his name retained in the register for that further period, if he satisfies the Registrar that the following conditions are fulfilled in his case.

(3) Those conditions are—

- (a) that he has not refused to undergo any such test as is mentioned in section 125(5) of this Act which he has been required to undergo during the period of four years ending with the time when his name is required under section 126(1) of this Act to be removed from the register,
- (b) that his ability and fitness to give instruction in the driving of motor cars continue, having regard to any such test or tests which he has undergone during that period, to be of a satisfactory standard,
- (c) that he is the holder of a current licence of one of the kinds mentioned in section 125(3)(b) of this Act,
- (d) that he has not during any part of that period been disqualified under section 34 or 36 of the Road Traffic Offenders Act 1988 for holding or obtaining a licence to drive a motor vehicle granted under Part III of this Act, and
- (e) that, apart from fulfilment of the preceding conditions, he continues to be a fit and proper person to have his name entered in the register.

1988 c. 53.

(4) The retention of a person's name under this section shall be subject to the condition mentioned in section 125(5) of this Act.

(5) Before refusing an application under subsection (1) above the Registrar must give to the applicant written notice stating that he is considering the refusal of the application and giving particulars of the grounds on which he is considering it.

(6) Where the Registrar gives notice under subsection (5) above—

- (a) the applicant may, within the period of twenty-eight days beginning with the day on which the notice is given, make representations with respect to the proposed refusal,
- (b) the Registrar must not decide to refuse the application until after the expiration of that period, and
- (c) before deciding whether or not to refuse the application, the Registrar must take into consideration any such representations made by the applicant within that period.

(7) On deciding to grant or refuse an application the Registrar must give notice in writing of the decision to the person concerned. **PART V**

(8) A decision to refuse an application shall take effect—

- (a) where no appeal under the following provisions of this Part of this Act is brought against the decision within the time limited for the appeal, on the expiration of that time,
- (b) where such an appeal is brought and is withdrawn or struck out for want of prosecution, on the withdrawal or striking out of the appeal,
- (c) where such an appeal is brought and not withdrawn or struck out for want of prosecution, if and when the appeal is dismissed, and not otherwise.

**128.—**(1) The Registrar may remove the name of a person from the register if he is satisfied that— **Removal of names from register.**

- (a) in a case where his name has not been retained in the register under section 127 of this Act, at any time since the entry of his name was made, and
- (b) in a case where his name has been so retained under that section, at any time since it was last retained,

any of the following conditions was fulfilled in his case.

(2) Those conditions are—

- (a) that he held neither of the kinds of current licence mentioned in section 125 (3)(b) of this Act,
- (b) that he was disqualified under section 34 or 36 of the Road Traffic Offenders Act 1988 for holding or obtaining a licence to drive a motor vehicle under Part III of this Act, **1988 c. 53.**
- (c) that he refused to undergo a test such as is mentioned in section 125 (5) of this Act,
- (d) that he failed to pass such a test,
- (e) that he ceased, apart from fulfilment of any of the preceding conditions, to be a fit and proper person to have his name included in the register.

(3) The Registrar may remove the name of a person from the register if the entry of his name in the register, or the retention of his name in the register, was made by mistake or procured by fraud.

(4) Before removing the name of a person from the register under this section, the Registrar must give him written notice stating that he is considering the removal and giving particulars of the grounds on which he is considering it.

(5) Where the Registrar gives notice to a person under subsection (4) above—

- (a) that person may, within the period of twenty-eight days beginning with the day on which the notice is given, make representations with respect to the proposed removal,
- (b) the Registrar must not decide to remove his name from the register until after the expiration of that period, and

## PART V

(c) before deciding whether or not to remove his name from the register, the Registrar must take into consideration any such representations made by him within that period.

(6) The Registrar must, on making a decision to remove a name from the register, give notice in writing of the decision to the person concerned.

(7) A decision to remove a name from the register shall take effect—

- (a) where no appeal under the following provisions of this Part of this Act is brought against the decision within the time limited for the appeal, on the expiration of that time,
- (b) where such an appeal is brought and is withdrawn or struck out for want of prosecution, on the withdrawal or striking out of the appeal,
- (c) where such an appeal is brought and not withdrawn or struck out for want of prosecution, if and when the appeal is dismissed, and not otherwise.

*Licences*

Licences for giving instruction so as to obtain practical experience.

129.—(1) A licence under this section is granted for the purpose of enabling a person to acquire practical experience in giving instruction in driving motor cars with a view to undergoing such part of the examination referred to in section 125(3)(a) of this Act as consists of a practical test of ability and fitness to instruct.

(2) Subject to subsection (3) below, where—

- (a) a person applies to the Registrar in manner determined by the Secretary of State, accompanied by particulars so determined, and
- (b) the Registrar is satisfied—
  - (i) that the applicant has passed the other parts of that examination, and
  - (ii) that the conditions set out in section 125(3)(b) to (e) of this Act are fulfilled in his case,

the Registrar must, on payment of such fee, if any, as may be prescribed by regulations, grant to the applicant a licence to give paid instruction (within the meaning of section 123(1) and (2) of this Act) in the driving of a motor car.

(3) The Registrar may refuse to grant a licence under this section to an applicant to whom such a licence has previously been issued.

(4) The Registrar must, on making a decision on an application under subsection (2) above, give notice in writing of the decision to the applicant which, in the case of a decision to refuse the application, must state the grounds of the refusal.

(5) A licence under this section shall be in such form, shall be in force for such period, and shall be granted subject to such conditions, as may be prescribed by regulations.

(6) Notwithstanding any provision of regulations made by virtue of subsection (5) above prescribing the period for which a licence is to be in force, where a person applies for a new licence in substitution for a licence held by him and current at the date of the application, the previous licence shall not expire—

- (a) until the commencement of the new licence, or
- (b) if the Registrar decides to refuse the application, until the time limited for an appeal under the following provisions of this Part of this Act against the decision has expired and, if such an appeal is duly brought, it is finally disposed of.

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(7) Before deciding to refuse an application for a new licence in substitution for a licence current at the date of the application, the Registrar must give to the applicant written notice stating that he is considering the refusal and giving particulars of the grounds on which he is considering it.

(8) Where the Registrar gives notice under subsection (7) above—

- (a) the applicant may, within the period of fourteen days beginning with the day on which the notice is given, make representations with respect to the proposed refusal, and
- (b) the Registrar must not decide to refuse the application until after the expiration of that period, and
- (c) before deciding whether or not to refuse the application, the Registrar must take into consideration any such representations made within that period.

130.—(1) The registrar may revoke a licence granted under section 129 of this Act—

Revocation of licences.

- (a) if the person to whom the licence was granted fails to comply with any of the conditions subject to which it was granted, or
- (b) if the Registrar is satisfied that, at any time since the licence was granted, any of the conditions mentioned in subsection (2) below was fulfilled in his case, or
- (c) if the licence was granted by mistake or procured by fraud.

(2) The conditions referred to in subsection (1)(b) above are—

- (a) that he held neither of the kinds of current licence mentioned in section 125 (3)(b) of this Act, or
- (b) that he was disqualified under section 34 or 36 of the Road Traffic Offenders Act 1988 for holding or obtaining a licence to drive a motor vehicle under Part III of this Act, or
- (c) that he ceased, apart from fulfilment of either of the preceding conditions, to be a fit and proper person to have his name in the register.

1988 c. 53.

(3) Before revoking a licence granted to a person under this section the Registrar must give him written notice stating that he is considering the revocation and giving particulars of the grounds on which he is considering it.

(4) Where the Registrar gives notice to a person under subsection (3) above—

- (a) that person may, within the period of fourteen days beginning with the day on which the notice is given, make representations with respect to the proposed revocation, and
- (b) the Registrar must not decide to revoke the licence until after the expiration of that period, and

## PART V

- (c) before deciding whether or not to revoke the licence, the Registrar must take into consideration any such representations made within that period.

(5) The Registrar must, on making a decision to revoke a licence granted under this section, give notice in writing of the decision to the person concerned.

(6) A decision to revoke a licence granted under this section shall take effect—

- (a) where no appeal under the following provisions of this Part of this Act is brought against the decision within the time limited for the appeal, on the expiration of that time,
- (b) where such an appeal is brought and is withdrawn or struck out for want of prosecution, on the withdrawal or striking out of the appeal,
- (c) where such an appeal is brought and not withdrawn or struck out for want of prosecution, if and when the appeal is dismissed, and not otherwise.

*Appeals*

## Appeals.

131.—(1) A person who is aggrieved by a decision of the Registrar—

- (a) to refuse an application for the entry of his name in the register, or
- (b) to refuse an application for the retention of his name in the register, or
- (c) to remove his name from the register,

may by notice in writing appeal to the Secretary of State within the period of twenty-eight days beginning with the day on which notice of the decision was given in accordance with this Part of this Act.

(2) A person who is aggrieved by a decision of the Registrar—

- (a) to refuse an application for the grant of a licence under this Part of this Act, or
- (b) to revoke such a licence,

may by notice in writing appeal to the Secretary of State within the period of fourteen days beginning with the day on which notice of the decision was given in accordance with this Part of this Act.

(3) On the appeal the Secretary of State may make such order—

- (a) for the grant or refusal of the application or,
- (b) for the removal or the retention of the name in the register, or the revocation or continuation of the licence,

(as the case may be) as he thinks fit.

(4) An order for such refusal, removal or revocation may direct that an application by the appellant—

- (a) for the grant of a licence under this Part of this Act, or
- (b) for his name to be entered in the register,

shall not be entertained before the expiration of such period, not exceeding four years beginning with the day on which the order is made, as may be specified in the order.



(5) Schedule 3 to this Act has effect in relation to an appeal under this section.

PART V

*Examinations and tests*

132.—(1) Regulations may make provision with respect to—

- (a) the nature of examinations of the ability of persons to give instruction in the driving of motor cars and tests of continued ability and fitness to give such instruction, and
- (b) evidence of the results of such tests and examinations, and generally with respect to such tests and examinations.

Examinations and tests of ability to give driving instruction.

(2) In particular, but without prejudice to the generality of subsection (1) above, the regulations may make provision—

- (a) for requiring a person submitting himself to any part of such an examination which consists of a practical test, or to such a test of continued ability and fitness, to provide a vehicle for the purposes of the test, being a vehicle in respect of which such conditions as may be specified in regulations are complied with,
- (b) for requiring a person applying to submit himself for any part of such an examination to pay to the Registrar such fee as may be specified in the regulations in relation to that part, and
- (c) for requiring a person who desires to submit himself for any part of such an examination to supply the Registrar with such particulars as the Secretary of State may determine.

133.—(1) On the application of a person who has submitted himself for any part of an examination of ability to give instruction in the driving of motor cars—

Review of examinations.

- (a) the magistrates' court acting for the petty sessions area in which he resides, or
  - (b) in Scotland, the sheriff within whose jurisdiction he resides,
- may determine whether that part of the examination was properly conducted in accordance with regulations.

(2) If it appears to the court or sheriff that that part of the examination was not so conducted, the court or sheriff may order that any fee payable by the applicant in respect of that part shall not be paid or, if it has been paid, shall be repaid.

(3) No appeal shall lie under section 131 of this Act in respect of any matter in respect of which an application may be made to a magistrates' court or a sheriff under subsection (1) above.

*General and supplemental*

134. Regulations may—

- (a) alter or add to the conditions as to which the Registrar is required by this Part of this Act to be satisfied for the entry of a name in the register, the retention of a name in the register, the removal of a name from the register, the grant of a licence and the revocation of a licence, or omit any of those conditions,

Power to alter conditions for entry or retention in, and removal from, register and for grant or revocation of licences.

## PART V

- (b) alter the period at the expiration of which a person's name which is entered or retained in the register after the coming into force of the regulation must, unless retained or further retained, be removed from the register.

Power to  
prescribe form  
of certificate of  
registration, etc.

135.—(1) Regulations may prescribe all or any of the following—

- (a) a form of certificate for issue to persons whose names are in the register as evidence of their names' being in the register,
- (b) a form of badge for use by such persons, and
- (c) an official title for such use.

(2) If a person whose name is not in the register—

- (a) takes or uses a title prescribed under this section, or
- (b) wears or displays a badge or certificate so prescribed, or
- (c) takes or uses any name, title, addition or description implying that his name is in the register,

he is guilty of an offence unless he proves that he did not know, and had no reasonable cause to believe, that his name was not in the register at the material time.

(3) If a person carrying on business in the provision of instruction in the driving of motor vehicles—

- (a) uses a title or description so prescribed in relation to any person employed by him whose name is not in the register, or
- (b) issues any advertisement or invitation calculated to mislead with respect to the extent to which persons whose names are in the register are employed by him,

he is guilty of an offence unless he proves that he did not know, and had no reasonable cause to believe, that the name or names in question were not in the register at the material time.

Surrender of  
certificates and  
licences.

136. Where—

- (a) the name of a person to whom a certificate prescribed under section 135 of this Act has been issued is removed from the register in pursuance of this Part of this Act, or
- (b) a licence granted under this Part of this Act to a person expires or is revoked,

that person must, if so required by the Registrar by notice in writing, surrender the certificate or licence, as the case may be, to the Registrar within the period of fourteen days beginning with that on which the notice is given and, if he fails to do so, he is guilty of an offence.

Production of  
certificates and  
licences to  
constables and  
authorised  
persons.

137.—(1) A person to whom a certificate prescribed under section 135 of this Act is issued, or to whom a licence under this Part of this Act is granted, must, on being so required by a constable or any person authorised in writing by the Secretary of State in that behalf, produce the certificate or licence for examination.

(2) Where—

- (a) the name of a person is removed from the register, or

- (b) a licence granted under this Part of this Act to a person expires or is revoked,

PART V

then, if that person fails to satisfy an obligation imposed on him by section 136 of this Act, a constable or a person authorised in writing by the Secretary of State in that behalf may require him to produce any such certificate issued to him or the licence, and upon its being produced may seize it and deliver it to the Registrar.

(3) A person who is required under subsection (1) or (2) above to produce a document and fails to do so is, subject to subsection (4) below, guilty of an offence.

(4) In proceedings against any person for an offence under subsection (3) above, it shall be a defence for him to show that—

- (a) within seven days beginning with the day following that on which the production of the document was so required, it was produced—

(i) where the requirement was made by a constable, at a police station specified at the time the production was required by the person required to produce the document,

(ii) where the requirement was made by a person other than a constable, at a place specified at that time by that person, or

- (b) the document was produced at that police station or, as the case may be, place as soon as was reasonably practicable, or

- (c) it was not reasonably practicable for it to be produced at that police station or, as the case may be, place before the day on which the proceedings were commenced,

and for the purposes of this subsection the laying of the information or, in Scotland, the service of the complaint on the accused shall be treated as the commencement of the proceedings.

138. Where a body corporate is guilty of an offence under this Part of this Act and the offence is proved to have been committed with the consent or connivance of, or to be attributable to neglect on the part of, a director, manager, secretary or other similar officer of the body corporate, or a person who was purporting to act in any such capacity, he, as well as the body corporate, is guilty of that offence and liable to be proceeded against and punished accordingly..

Offences by corporations.

139.—(1) A notice authorised or required to be given by this Part of this Act to a person may be given by delivering it to him, or by leaving it at his proper address, or by sending it to him by post.

Service of notices.

(2) For the purposes of this section and of section 7 of the Interpretation Act 1978 in its application to this section, the proper address of a person shall be, in the case of a person whose name is included in the register, his address on the register, and in any other case, his usual or last known address.

1978 c. 30.

140. Any sums received on account of fees payable by virtue of any provision of this Part of this Act shall be paid into the Consolidated Fund.

Receipts.

**PART V**  
**Regulations.**

**141.** The Secretary of State may make regulations for any purpose for which provision is by this Part of this Act authorised to be made by regulations, and in this Part of this Act "regulations" means regulations made under this section.

**Index to Part V.**

**142.** The expressions listed in the left-hand column below are respectively defined or (as the case may be) fall to be construed in accordance with the provisions of this Part of this Act listed in the right-hand column in relation to those expressions.

| <i>Expression</i> | <i>Relevant provision</i> |
|-------------------|---------------------------|
| Current licence   | Section 123 (7)           |
| The register      | Section 123               |
| The Registrar     | Section 125 (2)           |
| Regulations       | Section 141               |

**PART VI**

**THIRD-PARTY LIABILITIES**

*Compulsory insurance or security against third-party risks*

Users of motor  
vehicles to be  
insured or  
secured against  
third-party risks.

**143.—(1)** Subject to the provisions of this Part of this Act—

- (a) a person must not use a motor vehicle on a road unless there is in force in relation to the use of the vehicle by that person such a policy of insurance or such a security in respect of third party risks as complies with the requirements of this Part of this Act, and
- (b) a person must not cause or permit any other person to use a motor vehicle on a road unless there is in force in relation to the use of the vehicle by that other person such a policy of insurance or such a security in respect of third party risks as complies with the requirements of this Part of this Act.

(2) If a person acts in contravention of subsection (1) above he is guilty of an offence.

(3) A person charged with using a motor vehicle in contravention of this section shall not be convicted if he proves—

- (a) that the vehicle did not belong to him and was not in his possession under a contract of hiring or of loan,
- (b) that he was using the vehicle in the course of his employment, and
- (c) that he neither knew nor had reason to believe that there was not in force in relation to the vehicle such a policy of insurance or security as is mentioned in subsection (1) above.

(4) This Part of this Act does not apply to invalid carriages.

Exceptions from  
requirement of  
third-party  
insurance or  
security.

**144.—(1)** Section 143 of this Act does not apply to a vehicle owned by a person who has deposited and keeps deposited with the Accountant General of the Supreme Court the sum of £15,000, at a time when the vehicle is being driven under the owner's control.

## (2) Section 143 does not apply—

## PART VI

## (a) to a vehicle owned—

(i) by the council of a county or county district in England and Wales, the Common Council of the City of London, the council of a London borough, the Inner London Education Authority, or a joint authority (other than a police authority) established by Part IV of the Local Government Act 1985, 1985 c. 51.

(ii) by a regional, islands or district council in Scotland, or

(iii) by a joint board or committee in England or Wales, or joint committee in Scotland, which is so constituted as to include among its members representatives of any such council,

at a time when the vehicle is being driven under the owner's control,

(b) to a vehicle owned by a police authority or the Receiver for the Metropolitan Police district, at a time when it is being driven under the owner's control, or to a vehicle at a time when it is being driven for police purposes by or under the direction of a constable, or by a person employed by a police authority, or employed by the Receiver, or

(c) to a vehicle at a time when it is being driven on a journey to or from any place undertaken for salvage purposes pursuant to Part IX of the Merchant Shipping Act 1894, 1894 c. 60.

(d) to the use of a vehicle for the purpose of its being provided in pursuance of a direction under section 166(2)(b) of the Army Act 1955 or under the corresponding provision of the Air Force Act 1955, 1955 c. 18.  
1955 c. 19.

(e) to a vehicle which is made available by the Secretary of State to any person, body or local authority in pursuance of section 23 or 26 of the National Health Service Act 1977 at a time when it is being used in accordance with the terms on which it is so made available, 1977 c. 49.

(f) to a vehicle which is made available by the Secretary of State to any local authority, education authority or voluntary organisation in Scotland in pursuance of section 15 or 16 of the National Health Service (Scotland) Act 1978 at a time when it is being used in accordance with the terms on which it is so made available. 1978 c. 29.

**145.—**(1) In order to comply with the requirements of this Part of this Act, a policy of insurance must satisfy the following conditions. Requirements in respect of policies of insurance.

(2) The policy must be issued by an authorised insurer.

(3) Subject to subsection (4) below, the policy—

(a) must insure such person, persons or classes of persons as may be specified in the policy in respect of any liability which may be incurred by him or them in respect of the death of or bodily injury to any person or damage to property caused by, or arising out of, the use of the vehicle on a road in Great Britain, and

(b) must insure him or them in respect of any liability which may be incurred by him or them in respect of the use of the vehicle and of any trailer, whether or not coupled, in the territory other than

## PART VI

Great Britain and Gibraltar of each of the member States of the Communities according to the law on compulsory insurance against civil liability in respect of the use of vehicles of the State where the liability may be incurred, and

- (c) must also insure him or them in respect of any liability which may be incurred by him or them under the provisions of this Part of this Act relating to payment for emergency treatment.

(4) The policy shall not, by virtue of subsection (3)(a) above, be required—

- (a) to cover liability in respect of the death, arising out of and in the course of his employment, of a person in the employment of a person insured by the policy or of bodily injury sustained by such a person arising out of and in the course of his employment, or
- (b) to provide insurance of more than £250,000 in respect of all such liabilities as may be incurred in respect of damage to property caused by, or arising out of, any one accident involving the vehicle, or
- (c) to cover liability in respect of damage to the vehicle, or
- (d) to cover liability in respect of damage to goods carried for hire or reward in or on the vehicle or in or on any trailer (whether or not coupled) drawn by the vehicle, or
- (e) to cover any liability of a person in respect of damage to property in his custody or under his control, or
- (f) to cover any contractual liability.

1982 c. 50.

1929 c. 23.

(5) In this Part of this Act “authorised insurer” means a person or body of persons carrying on insurance business within Group 2 in Part II of Schedule 2 to the Insurance Companies Act 1982 and being a member of the Motor Insurers’ Bureau (a company limited by guarantee and incorporated under the Companies Act 1929 on 14th June 1946).

(6) If any person or body of persons ceases to be a member of the Motor Insurers’ Bureau, that person or body shall not by virtue of that cease to be treated as an authorised insurer for the purposes of this Part of this Act—

- (a) in relation to any policy issued by the insurer before ceasing to be such a member, or
- (b) in relation to any obligation (whether arising before or after the insurer ceased to be such a member) which the insurer may be called upon to meet under or in consequence of any such policy or under section 157 of this Act by virtue of making a payment in pursuance of such an obligation.

Requirements in  
respect of  
securities.

**146.—**(1) In order to comply with the requirements of this Part of this Act, a security must satisfy the following conditions.

(2) The security must be given either by an authorised insurer or by some body of persons which carries on in the United Kingdom the business of giving securities of a like kind and has deposited and keeps deposited with the Accountant General of the Supreme Court the sum of £15,000 in respect of that business.

(3) Subject to subsection (4) below, the security must consist of an undertaking by the giver of the security to make good, subject to any conditions specified in it, any failure by the owner of the vehicle or such other persons or classes of persons as may be specified in the security duly to discharge any liability which may be incurred by him or them, being a liability required under section 145 of this Act to be covered by a policy of insurance.

## PART VI

(4) In the case of liabilities arising out of the use of a motor vehicle on a road in Great Britain the amount secured need not exceed—

- (a) in the case of an undertaking relating to the use of public service vehicles (within the meaning of the Public Passenger Vehicles Act 1981), £25,000, 1981 c. 14.
- (b) in any other case, £5,000.

147.—(1) A policy of insurance shall be of no effect for the purposes of this Part of this Act unless and until there is delivered by the insurer to the person by whom the policy is effected a certificate (in this Part of this Act referred to as a “certificate of insurance”) in the prescribed form and containing such particulars of any conditions subject to which the policy is issued and of any other matters as may be prescribed.

Issue and  
surrender of  
certificates of  
insurance and of  
security.

(2) A security shall be of no effect for the purposes of this Part of this Act unless and until there is delivered by the person giving the security to the person to whom it is given a certificate (in this Part of this Act referred to as a “certificate of security”) in the prescribed form and containing such particulars of any conditions subject to which the security is issued and of any other matters as may be prescribed.

(3) Different forms and different particulars may be prescribed for the purposes of subsection (1) or (2) above in relation to different cases or circumstances.

(4) Where a certificate has been delivered under this section and the policy or security to which it relates is cancelled by mutual consent or by virtue of any provision in the policy or security, the person to whom the certificate was delivered must, within seven days from the taking effect of the cancellation—

- (a) surrender the certificate to the person by whom the policy was issued or the security was given, or
- (b) if the certificate has been lost or destroyed, make a statutory declaration to that effect.

(5) A person who fails to comply with subsection (4) above is guilty of an offence.

148.—(1) Where a certificate of insurance or certificate of security has been delivered under section 147 of this Act to the person by whom a policy has been effected or to whom a security has been given, so much of the policy or security as purports to restrict—

Avoidance of  
certain  
exceptions to  
policies or  
securities.

- (a) the insurance of the persons insured by the policy, or
- (b) the operation of the security,

(as the case may be) by reference to any of the matters mentioned in subsection (2) below shall, as respects such liabilities as are required to be covered by a policy under section 145 of this Act, be of no effect.

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## (2) Those matters are—

- (a) the age or physical or mental condition of persons driving the vehicle,
- (b) the condition of the vehicle,
- (c) the number of persons that the vehicle carries,
- (d) the weight or physical characteristics of the goods that the vehicle carries,
- (e) the time at which or the areas within which the vehicle is used,
- (f) the horsepower or cylinder capacity or value of the vehicle,
- (g) the carrying on the vehicle of any particular apparatus, or
- (h) the carrying on the vehicle of any particular means of identification other than any means of identification required to be carried by or under the Vehicles (Excise) Act 1971.

1971 c. 10.

(3) Nothing in subsection (1) above requires an insurer or the giver of a security to pay any sum in respect of the liability of any person otherwise than in or towards the discharge of that liability.

(4) Any sum paid by an insurer or the giver of a security in or towards the discharge of any liability of any person which is covered by the policy or security by virtue only of subsection (1) above is recoverable by the insurer or giver of the security from that person.

(5) A condition in a policy or security issued or given for the purposes of this Part of this Act providing—

- (a) that no liability shall arise under the policy or security, or
- (b) that any liability so arising shall cease,

in the event of some specified thing being done or omitted to be done after the happening of the event giving rise to a claim under the policy or security, shall be of no effect in connection with such liabilities as are required to be covered by a policy under section 145 of this Act.

(6) Nothing in subsection (5) above shall be taken to render void any provision in a policy or security requiring the person insured or secured to pay to the insurer or the giver of the security any sums which the latter may have become liable to pay under the policy or security and which have been applied to the satisfaction of the claims of third parties.

(7) Notwithstanding anything in any enactment, a person issuing a policy of insurance under section 145 of this Act shall be liable to indemnify the persons or classes of persons specified in the policy in respect of any liability which the policy purports to cover in the case of those persons or classes of persons.

Avoidance of certain agreements as to liability towards passengers.

**149.—**(1) This section applies where a person uses a motor vehicle in circumstances such that under section 143 of this Act there is required to be in force in relation to his use of it such a policy of insurance or such a security in respect of third-party risks as complies with the requirements of this Part of this Act.

(2) If any other person is carried in or upon the vehicle while the user is so using it, any antecedent agreement or understanding between them (whether intended to be legally binding or not) shall be of no effect so far as it purports or might be held—



## PART VI

- (a) to negative or restrict any such liability of the user in respect of persons carried in or upon the vehicle as is required by section 145 of this Act to be covered by a policy of insurance, or
- (b) to impose any conditions with respect to the enforcement of any such liability of the user.

(3) The fact that a person so carried has willingly accepted as his the risk of negligence on the part of the user shall not be treated as negating any such liability of the user.

(4) For the purposes of this section—

- (a) references to a person being carried in or upon a vehicle include references to a person entering or getting on to, or alighting from, the vehicle, and
- (b) the reference to an antecedent agreement is to one made at any time before the liability arose.

**150.—**(1) To the extent that a policy or security issued or given for the purposes of this Part of this Act—

- (a) restricts the insurance of the persons insured by the policy or the operation of the security (as the case may be) to use of the vehicle for specified purposes (for example, social, domestic and pleasure purposes) of a non-commercial character, or
- (b) excludes from that insurance or the operation of the security (as the case may be)—
  - (i) use of the vehicle for hire or reward, or
  - (ii) business or commercial use of the vehicle, or
  - (iii) use of the vehicle for specified purposes of a business or commercial character,

Insurance or security in respect of private use of vehicle to cover use under car-sharing arrangements.

then, for the purposes of that policy or security so far as it relates to such liabilities as are required to be covered by a policy under section 145 of this Act, the use of a vehicle on a journey in the course of which one or more passengers are carried at separate fares shall, if the conditions specified in subsection (2) below are satisfied, be treated as falling within that restriction or as not falling within that exclusion (as the case may be).

(2) The conditions referred to in subsection (1) above are—

- (a) the vehicle is not adapted to carry more than eight passengers and is not a motor cycle,
- (b) the fare or aggregate of the fares paid in respect of the journey does not exceed the amount of the running costs of the vehicle for the journey (which for the purposes of this paragraph shall be taken to include an appropriate amount in respect of depreciation and general wear), and
- (c) the arrangements for the payment of fares by the passenger or passengers carried at separate fares were made before the journey began.

(3) Subsections (1) and (2) above apply however the restrictions or exclusions described in subsection (1) are framed or worded.

(4) In subsections (1) and (2) above “fare” and “separate fares” have the same meaning as in section 1(4) of the Public Passenger Vehicles Act 1981.

1981 c. 14.

## PART VI

Duty of insurers or persons giving security to satisfy judgment against persons insured or secured against third-party risks.

**151.—(1)** This section applies where, after a certificate of insurance or certificate of security has been delivered under section 147 of this Act to the person by whom a policy has been effected or to whom a security has been given, a judgment to which this subsection applies is obtained.

(2) Subsection (1) above applies to judgments relating to a liability with respect to any matter where liability with respect to that matter is required to be covered by a policy of insurance under section 145 of this Act and either—

- (a) it is a liability covered by the terms of the policy or security to which the certificate relates, and the judgment is obtained against any person who is insured by the policy or whose liability is covered by the security, as the case may be, or
- (b) it is a liability, other than an excluded liability, which would be so covered if the policy insured all persons or, as the case may be, the security covered the liability of all persons, and the judgment is obtained against any person other than one who is insured by the policy or, as the case may be, whose liability is covered by the security.

(3) In deciding for the purposes of subsection (2) above whether a liability is or would be covered by the terms of a policy or security, so much of the policy or security as purports to restrict, as the case may be, the insurance of the persons insured by the policy or the operation of the security by reference to the holding by the driver of the vehicle of a licence authorising him to drive it shall be treated as of no effect.

(4) In subsection (2)(b) above “excluded liability” means a liability in respect of the death of, or bodily injury to, or damage to the property of any person who, at the time of the use which gave rise to the liability, was allowing himself to be carried in or upon the vehicle and knew or had reason to believe that the vehicle had been stolen or unlawfully taken, not being a person who—

- (a) did not know and had no reason to believe that the vehicle had been stolen or unlawfully taken until after the commencement of his journey, and
- (b) could not reasonably have been expected to have alighted from the vehicle.

In this subsection the reference to a person being carried in or upon a vehicle includes a reference to a person entering or getting on to, or alighting from, the vehicle.

(5) Notwithstanding that the insurer may be entitled to avoid or cancel, or may have avoided or cancelled, the policy or security, he must, subject to the provisions of this section, pay to the persons entitled to the benefit of the judgment—

- (a) as regards liability in respect of death or bodily injury, any sum payable under the judgment in respect of the liability, together with any sum which, by virtue of any enactment relating to interest on judgments, is payable in respect of interest on that sum,
- (b) as regards liability in respect of damage to property, any sum required to be paid under subsection (6) below, and
- (c) any amount payable in respect of costs.

## PART VI

## (6) This subsection requires—

- (a) where the total of any amounts paid, payable or likely to be payable under the policy or security in respect of damage to property caused by, or arising out of, the accident in question does not exceed £250,000, the payment of any sum payable under the judgment in respect of the liability, together with any sum which, by virtue of any enactment relating to interest on judgments, is payable in respect of interest on that sum,
- (b) where that total exceeds £250,000, the payment of either—
  - (i) such proportion of any sum payable under the judgment in respect of the liability as £250,000 bears to that total, together with the same proportion of any sum which, by virtue of any enactment relating to interest on judgments, is payable in respect of interest on that sum, or
  - (ii) the difference between the total of any amounts already paid under the policy or security in respect of such damage and £250,000, together with such proportion of any sum which, by virtue of any enactment relating to interest on judgments, is payable in respect of interest on any sum payable under the judgment in respect of the liability as the difference bears to that sum,

whichever is the less, unless not less than £250,000 has already been paid under the policy or security in respect of such damage (in which case nothing is payable).

(7) Where an insurer becomes liable under this section to pay an amount in respect of a liability of a person who is insured by a policy or whose liability is covered by a security, he is entitled to recover from that person—

- (a) that amount, in a case where he became liable to pay it by virtue only of subsection (3) above, or
- (b) in a case where that amount exceeds the amount for which he would, apart from the provisions of this section, be liable under the policy or security in respect of that liability, the excess.

(8) Where an insurer becomes liable under this section to pay an amount in respect of a liability of a person who is not insured by a policy or whose liability is not covered by a security, he is entitled to recover the amount from that person or from any person who—

- (a) is insured by the policy, or whose liability is covered by the security, by the terms of which the liability would be covered if the policy insured all persons or, as the case may be, the security covered the liability of all persons, and
- (b) caused or permitted the use of the vehicle which gave rise to the liability.

## (9) In this section—

- (a) “insurer” includes a person giving a security,
- (b) “material” means of such a nature as to influence the judgment of a prudent insurer in determining whether he will take the risk and, if so, at what premium and on what conditions, and

## PART VI

- (c) "liability covered by the terms of the policy or security" means a liability which is covered by the policy or security or which would be so covered but for the fact that the insurer is entitled to avoid or cancel, or has avoided or cancelled, the policy or security.

(10) In the application of this section to Scotland, the words "by virtue of any enactment relating to interest on judgments" in subsections (5) and (6) (in each place where they appear) shall be omitted.

## Exceptions to section 151.

152.—(1) No sum is payable by an insurer under section 151 of this Act—

- (a) in respect of any judgment unless, before or within seven days after the commencement of the proceedings in which the judgment was given, the insurer had notice of the bringing of the proceedings, or
- (b) in respect of any judgment so long as execution on the judgment is stayed pending an appeal, or
- (c) in connection with any liability if, before the happening of the event which was the cause of the death or bodily injury or damage to property giving rise to the liability, the policy or security was cancelled by mutual consent or by virtue of any provision contained in it, and also—

- (i) before the happening of that event the certificate was surrendered to the insurer, or the person to whom the certificate was delivered made a statutory declaration stating that the certificate had been lost or destroyed, or

- (ii) after the happening of that event, but before the expiration of a period of fourteen days from the taking effect of the cancellation of the policy or security, the certificate was surrendered to the insurer, or the person to whom it was delivered made a statutory declaration stating that the certificate had been lost or destroyed, or

- (iii) either before or after the happening of that event, but within that period of fourteen days, the insurer has commenced proceedings under this Act in respect of the failure to surrender the certificate.

(2) Subject to subsection (3) below, no sum is payable by an insurer under section 151 of this Act if, in an action commenced before, or within three months after, the commencement of the proceedings in which the judgment was given, he has obtained a declaration—

- (a) that, apart from any provision contained in the policy or security, he is entitled to avoid it on the ground that it was obtained—
  - (i) by the non-disclosure of a material fact, or
  - (ii) by a representation of fact which was false in some material particular, or
- (b) if he has avoided the policy or security on that ground, that he was entitled so to do apart from any provision contained in it.

(3) An insurer who has obtained such a declaration as is mentioned in subsection (2) above in an action does not by reason of that become entitled to the benefit of that subsection as respects any judgment obtained in proceedings commenced before the commencement of that action unless before, or within seven days after, the commencement of that action he has given notice of it to the person who is the plaintiff (or in Scotland pursuer) in those proceedings specifying the non-disclosure or false representation on which he proposes to rely.

(4) A person to whom notice of such an action is so given is entitled, if he thinks fit, to be made a party to it.

## PART VI

153.—(1) Where, after a certificate of insurance or certificate of security has been delivered under section 147 of this Act to the person by whom a policy has been effected or to whom a security has been given, any of the events mentioned in subsection (2) below happens, the happening of that event shall, notwithstanding anything in the Third Parties (Rights Against Insurers) Act 1930, not affect any such liability of that person as is required to be covered by a policy of insurance under section 145 of this Act.

Bankruptcy, etc., of insured or secured persons not to affect claims by third parties.  
1930 c. 25.

(2) In the case of the person by whom the policy was effected or to whom the security was given, the events referred to in subsection (1) above are—

(a) that he becomes bankrupt or makes a composition or arrangement with his creditors or that his estate is sequestrated or he grants a trust deed for his creditors,

(b) that he dies and—

(i) his estate falls to be administered in accordance with an order under section 421 of the Insolvency Act 1986,

1986 c. 45.

(ii) an award of sequestration of his estate is made, or

(iii) a judicial factor is appointed to administer his estate under section 11A of the Judicial Factors (Scotland) Act 1889,

1889 c. 39.

(c) that if that person is a company—

(i) a winding-up order or an administration order is made with respect to the company,

(ii) a resolution for a voluntary winding-up is passed with respect to the company,

(iii) a receiver or manager of the company's business or undertaking is duly appointed, or

(iv) possession is taken, by or on behalf of the holders of any debentures secured by a floating charge, of any property comprised in or subject to the charge.

(3) Nothing in subsection (1) above affects any rights conferred by the Third Parties (Rights Against Insurers) Act 1930 on the person to whom the liability was incurred, being rights so conferred against the person by whom the policy was issued or the security was given.

154.—(1) A person against whom a claim is made in respect of any such liability as is required to be covered by a policy of insurance under section 145 of this Act must, on demand by or on behalf of the person making the claim—

Duty to give information as to insurance or security where claim made.

## PART VI

(a) state whether or not, in respect of that liability—

(i) he was insured by a policy having effect for the purposes of this Part of this Act or had in force a security having effect for those purposes, or

(ii) he would have been so insured or would have had in force such a security if the insurer or, as the case may be, the giver of the security had not avoided or cancelled the policy or security, and

(b) if he was or would have been so insured, or had or would have had in force such a security—

(i) give such particulars with respect to that policy or security as were specified in any certificate of insurance or security delivered in respect of that policy or security, as the case may be, under section 147 of this Act, or

(ii) where no such certificate was delivered under that section, give the following particulars, that is to say, the registration mark or other identifying particulars of the vehicle concerned, the number or other identifying particulars of the insurance policy issued in respect of the vehicle, the name of the insurer and the period of the insurance cover.

(2) If without reasonable excuse, a person fails to comply with the provisions of subsection (1) above, or wilfully makes a false statement in reply to any such demand as is referred to in that subsection, he is guilty of an offence.

## Deposits.

**155.**—(1) Where a person has deposited a sum with the Accountant General of the Supreme Court under section 144 or 146 of this Act, then, so long as any liabilities incurred by him, being such liabilities as are required to be covered by a policy of insurance under section 145 of this Act, have not been discharged or otherwise provided for, no part of that sum shall be applicable in discharge of any other liabilities incurred by him.

## 1958 c. 72.

(2) Any regulations made, or having effect as if made, by the Secretary of State or the Board of Trade under section 20 of the Insurance Companies Act 1958 which apply to deposits made by insurers carrying on motor vehicle insurance business shall, with such necessary modifications and adaptations as, after consultation with the Lord Chancellor, may be prescribed, apply to deposits made with the Accountant General under section 144 or 146 of this Act.

(3) Such provision as might be made by the Secretary of State or the Board of Trade under section 20 of the Insurance Companies Act 1958 with respect to deposits under that Act may, after consultation with the Lord Chancellor, be made by regulations with respect to deposits made with the Accountant General under section 144 or 146 of this Act.

Power to require  
evidence of  
insurance or  
security on  
application for  
vehicle excise  
licence.  
1971 c. 10.

**156.** Provision may be made by regulations under section 37 of the Vehicles (Excise) Act 1971 for requiring a person applying for a licence under that Act in respect of a motor vehicle to produce such evidence as may be prescribed that either—

- (a) on the date when the licence comes into operation there will be in force the necessary policy of insurance or the necessary security in relation to the use of the vehicle by the applicant or by other persons on his order or with his permission, or
- (b) the vehicle is a vehicle to which section 143 of this Act does not apply at a time when it is being driven under the owner's control.

## PART VI

*Payments for treatment of traffic casualties*

157.—(1) Subject to subsection (2) below, where—

Payment for  
hospital  
treatment of  
traffic casualties.

- (a) a payment, other than a payment under section 158 of this Act, is made (whether or not with an admission of liability) in respect of the death of, or bodily injury to, any person arising out of the use of a motor vehicle on a road or in a place to which the public have a right of access, and
- (b) the payment is made—
  - (i) by an authorised insurer, the payment being made under or in consequence of a policy issued under section 145 of this Act, or
  - (ii) by the owner of a vehicle in relation to the use of which a security under this Part of this Act is in force, or
  - (iii) by the owner of a vehicle who has made a deposit under this Part of this Act, and
- (c) the person who has so died or been bodily injured has to the knowledge of the insurer or owner, as the case may be, received treatment at a hospital, whether as an in-patient or as an out-patient, in respect of the injury so arising,

the insurer or owner must pay the expenses reasonably incurred by the hospital in affording the treatment, after deducting from the expenses any moneys actually received in payment of a specific charge for the treatment, not being moneys received under any contributory scheme.

(2) The amount to be paid shall not exceed £2,000.37 for each person treated as an in-patient or £200.04 for each person treated as an out-patient.

(3) For the purposes of this section “expenses reasonably incurred” means—

- (a) in relation to a person who receives treatment at a hospital as an in-patient, an amount for each day he is maintained in the hospital representing the average daily cost, for each in-patient, of the maintenance of the hospital and the staff of the hospital and the maintenance and treatment of the in-patients in the hospital, and
- (b) in relation to a person who receives treatment at a hospital as an out-patient, reasonable expenses actually incurred.

158.—(1) Subsection (2) below applies where—

Payment for  
emergency  
treatment of  
traffic casualties.

- (a) medical or surgical treatment or examination is immediately required as a result of bodily injury (including fatal injury) to a person caused by, or arising out of, the use of a motor vehicle on a road, and

## PART VI

- (b) the treatment or examination so required (in this Part of this Act referred to as "emergency treatment") is effected by a legally qualified medical practitioner.

(2) The person who was using the vehicle at the time of the event out of which the bodily injury arose must, on a claim being made in accordance with the provisions of section 159 of this Act, pay to the practitioner (or, where emergency treatment is effected by more than one practitioner, to the practitioner by whom it is first effected)—

- (a) a fee of £15.00 in respect of each person in whose case the emergency treatment is effected by him, and
- (b) a sum, in respect of any distance in excess of two miles which he must cover in order—
  - (i) to proceed from the place from which he is summoned to the place where the emergency treatment is carried out by him, and
  - (ii) to return to the first mentioned place,
 equal to 29 pence for every complete mile and additional part of a mile of that distance.

(3) Where emergency treatment is first effected in a hospital, the provisions of subsections (1) and (2) above with respect to payment of a fee shall, so far as applicable, but subject (as regards the recipient of a payment) to the provisions of section 159 of this Act, have effect with the substitution of references to the hospital for references to a legally qualified medical practitioner.

(4) Liability incurred under this section by the person using a vehicle shall, where the event out of which it arose was caused by the wrongful act of another person, be treated for the purposes of any claim to recover damage by reason of that wrongful act as damage sustained by the person using the vehicle.

Supplementary provisions as to payments for treatment.  
1977 c. 49.

**159.**—(1) A payment falling to be made under section 157 or 158 of this Act in respect of treatment in a hospital must be made—

- (a) in England and Wales, in the case of a hospital vested in the Secretary of State for the purposes of the National Health Service Act 1977, to the Area Health Authority, District Health Authority or special health authority responsible for the administration of the hospital or the Secretary of State if no such authority is so responsible,
- (b) in Scotland, in the case of a hospital vested in the Secretary of State, to the Secretary of State or on his behalf to any Health Board authorised by him for the purpose, and
- (c) in the case of any other hospital, to the hospital.

(2) A claim for a payment under section 158 of this Act may be made at the time when the emergency treatment is effected, by oral request to the person who was using the vehicle, and if not so made must be made by request in writing served on him within seven days from the day on which the emergency treatment was effected.



## PART VI

## (3) Any such request in writing—

- (a) must be signed by the claimant or, in the case of a hospital, by an executive officer of the Authority (in Scotland, Board) or hospital claiming the payment or by an officer of the Secretary of State,
- (b) must state the name and address of the claimant, the circumstances in which the emergency treatment was effected, and that it was first effected by the claimant or, in the case of a hospital, in the hospital, and
- (c) may be served by delivering it to the person who was using the vehicle or by sending it in a prepaid registered letter, or the recorded delivery service, addressed to him at his usual or last known address.

(4) A payment made under section 158 of this Act shall operate as a discharge, to the extent of the amount paid, of any liability of the person who was using the vehicle, or of any other person, to pay any sum in respect of the expenses or remuneration of the practitioner or hospital concerned of or for effecting the emergency treatment.

(5) A chief officer of police must, if so requested by a person who alleges that he is entitled to claim a payment under section 158 of this Act, provide that person with any information at the disposal of the chief officer—

- (a) as to the identification marks of any motor vehicle which that person alleges to be a vehicle out of the use of which the bodily injury arose, and
- (b) as to the identity and address of the person who was using the vehicle at the time of the event out of which it arose.

*General*

**160.**—(1) The Secretary of State may make regulations for any purpose for which regulations may be made under this Part of this Act and for prescribing anything which may be prescribed under this Part of this Act and generally for the purpose of carrying this Part of this Act into effect. Regulations.

In this Part of this Act “regulations” means regulations under this section and “prescribed” means prescribed by regulations.

(2) In particular, but without prejudice to the generality of subsection (1) above, the regulations may make provision—

- (a) as to forms to be used for the purposes of this Part of this Act,
- (b) as to applications for and the issue of certificates of insurance and certificates of security and any other documents which may be prescribed, and as to the keeping of records of documents and the providing of particulars of them or the giving of information with respect to them to the Secretary of State or a chief officer of police,
- (c) as to the issue of copies of any such certificates or other documents which are lost or destroyed,
- (d) as to the custody, production, cancellation and surrender of any such certificates or other documents, and

## PART VI

- (e) for providing that any provisions of this Part of this Act shall, in relation to vehicles brought into Great Britain by persons making only a temporary stay in Great Britain, have effect subject to such modifications and adaptations as may be prescribed.

## Interpretation.

## 161.—(1) In this Part of this Act—

“hospital” means an institution, not being an institution carried on for profit, which provides medical or surgical treatment for in-patients,

“policy of insurance” includes a covering note,

“salvage” means the preservation of a vessel which is wrecked, stranded or in distress, or the lives of persons belonging to, or the cargo or apparel of, such a vessel, and

“under the owner’s control” means, in relation to a vehicle, that it is being driven by the owner or by a servant of the owner in the course of his employment or is otherwise subject to the control of the owner.

(2) In any provision of this Part of this Act relating to the surrender, or the loss or destruction, of a certificate of insurance or certificate of security, references to such a certificate—

(a) shall, in relation to policies or securities under which more than one certificate is issued, be construed as references to all certificates, and

(b) shall, where any copy has been issued of any certificate, be construed as including a reference to that copy.

(3) In this Part of this Act, any reference to an accident includes a reference to two or more causally related accidents.

## Index to Part VI.

162. The expressions listed in the left-hand column below are respectively defined or (as the case may be) fall to be construed in accordance with the provisions of this Part of this Act listed in the right-hand column in relation to those expressions.

| <i>Expression</i>         | <i>Relevant provision</i>  |
|---------------------------|----------------------------|
| Accident                  | Section 161(3)             |
| Authorised insurer        | Section 145(2)             |
| Certificate of insurance  | Sections 147(1) and 161(2) |
| Certificate of security   | Sections 147(2) and 161(2) |
| Hospital                  | Section 161(1)             |
| Policy of insurance       | Section 161(1)             |
| Prescribed                | Section 160(1)             |
| Regulations               | Section 160(1)             |
| Salvage                   | Section 161(1)             |
| Under the owner’s control | Section 161(1)             |

## PART VII

## PART VII

## MISCELLANEOUS AND GENERAL

*Powers of constables and other authorised persons*

**163.—**(1) A person driving a motor vehicle on a road must stop the vehicle on being required to do so by a constable in uniform. Power of police to stop vehicles.

(2) A person riding a cycle on a road must stop the cycle on being required to do so by a constable in uniform.

(3) If a person fails to comply with this section he is guilty of an offence.

**164.—**(1) Any of the following persons—

- (a) a person driving a motor vehicle on a road,
- (b) a person whom a constable has reasonable cause to believe to have been the driver of a motor vehicle at a time when an accident occurred owing to its presence on a road,
- (c) a person whom a constable has reasonable cause to believe to have committed an offence in relation to the use of a motor vehicle on a road, or

Power of constables to require production of driving licence and in certain cases statement of date of birth.

(d) a person—

(i) who supervises the holder of a provisional licence while the holder is driving a motor vehicle on a road, or

(ii) whom a constable has reasonable cause to believe was supervising the holder of a provisional licence while driving, at a time when an accident occurred owing to the presence of the vehicle on a road or at a time when an offence is suspected of having been committed by the holder of the provisional licence in relation to the use of the vehicle on a road,

must, on being so required by a constable, produce his licence for examination, so as to enable the constable to ascertain the name and address of the holder of the licence, the date of issue, and the authority by which it was issued.

(2) Such a person must in prescribed circumstances, on being so required by the constable, state his date of birth.

(3) If—

- (a) a licence has been revoked by the Secretary of State under section 93 or 99 of this Act, and
- (b) the holder of the licence fails to deliver it to the Secretary of State in pursuance of the section in question,

a constable may require him to produce it, and upon its being produced may seize it and deliver it to the Secretary of State.

(4) Where a constable has reasonable cause to believe that the holder of a licence, or any other person, has knowingly made a false statement for the purpose of obtaining the grant of the licence, the constable may require the holder of the licence to produce it to him.

(5) Where a person has been required under section 27 of the Road Traffic Offenders Act 1988 to produce a licence to the court and fails to do so, a constable may require him to produce it and, upon its being produced, may seize it and deliver it to the court.

1988 c. 53.

## PART VII

(6) If a person required under the preceding provisions of this section to produce a licence or state his date of birth to a constable fails to do so he is, subject to subsections (7) and (8) below, guilty of an offence.

(7) Subsection (6) above does not apply where a person required on any occasion under the preceding provisions of this section to produce a licence—

1988 c. 53.

(a) produces on that occasion a current receipt for the licence issued under section 56 of the Road Traffic Offenders Act 1988 and, if required to do so, produces the licence in person immediately on its return at a police station that was specified on that occasion, or

(b) within seven days after that occasion produces such a receipt in person at a police station that was specified by him on that occasion and, if required to do so, produces the licence in person immediately on its return at that police station.

(8) In proceedings against any person for the offence of failing to produce a licence it shall be a defence for him to show that—

(a) within seven days after the production of his licence was required he produced it in person at a police station that was specified by him at the time its production was required, or

(b) he produced it in person there as soon as was reasonably practicable, or

(c) it was not reasonably practicable for him to produce it there before the day on which the proceedings were commenced,

and for the purposes of this subsection the laying of the information or, in Scotland, the service of the complaint on the accused shall be treated as the commencement of the proceedings.

(9) Where in accordance with this section a person has stated his date of birth to a constable, the Secretary of State may serve on that person a notice in writing requiring him to provide the Secretary of State—

(a) with such evidence in that person's possession or obtainable by him as the Secretary of State may specify for the purpose of verifying that date, and

(b) if his name differs from his name at the time of his birth, with a statement in writing specifying his name at that time,

and a person who knowingly fails to comply with a notice under this subsection is guilty of an offence.

1978 c. 30.

(10) A notice authorised to be served on any person by subsection (9) above may be served on him by delivering it to him or by leaving it at his proper address or by sending it to him by post; and for the purposes of this subsection and section 7 of the Interpretation Act 1978 in its application to this subsection the proper address of any person shall be his latest address as known to the person giving the notice.

(11) In this section "licence" and "provisional licence" have the same meanings as in Part III of this Act.

**165.—(1) Any of the following persons—**

- (a) a person driving a motor vehicle (other than an invalid carriage) on a road, or
- (b) a person whom a constable has reasonable cause to believe to have been the driver of a motor vehicle (other than an invalid carriage) at a time when an accident occurred owing to its presence on a road, or
- (c) a person whom a constable has reasonable cause to believe to have committed an offence in relation to the use on a road of a motor vehicle (other than an invalid carriage),

must, on being so required by a constable, give his name and address and the name and address of the owner of the vehicle and produce the following documents for examination.

**(2) Those documents are—**

- (a) the relevant certificate of insurance or certificate of security (within the meaning of Part VI of this Act), or such other evidence that the vehicle is not or was not being driven in contravention of section 143 of this Act as may be prescribed by regulations made by the Secretary of State,
- (b) in relation to a vehicle to which section 47 of this Act applies, a test certificate issued in respect of the vehicle as mentioned in subsection (1) of that section, and
- (c) in relation to a goods vehicle the use of which on a road without a plating certificate or goods vehicle test certificate is an offence under section 53(1) or (2) of this Act, any such certificate issued in respect of that vehicle or any trailer drawn by it.

(3) Subject to subsection (4) below, a person who fails to comply with a requirement under subsection (1) above is guilty of an offence.

(4) A person shall not be convicted of an offence under subsection (1) above by reason only of failure to produce any certificate or other evidence to a constable if in proceedings against him for the offence he shows that—

- (a) within seven days after the date on which the production of the certificate or other evidence was required it was produced at a police station that was specified by him at the time when its production was required, or
- (b) it was produced there as soon as was reasonably practicable, or
- (c) it was not reasonably practicable for it to be produced there before the day on which the proceedings were commenced,

and for the purposes of this subsection the laying of the information or, in Scotland, the service of the complaint on the accused shall be treated as the commencement of the proceedings.

**(5) A person—**

- (a) who supervises the holder of a provisional licence granted under Part III of this Act while the holder is driving on a road a motor vehicle (other than an invalid carriage), or
- (b) whom a constable has reasonable cause to believe was supervising the holder of such a licence while driving, at a time when an accident occurred owing to the presence of the vehicle

**PART VII**

Power of constables to obtain names and addresses of drivers and others, and to require production of evidence of insurance or security and test certificates.

## PART VII

on a road or at a time when an offence is suspected of having been committed by the holder of the provisional licence in relation to the use of the vehicle on a road,

must, on being so required by a constable, give his name and address and the name and address of the owner of the vehicle.

(6) A person who fails to comply with a requirement under subsection (5) above is guilty of an offence.

(7) In this section "owner", in relation to a vehicle which is the subject of a hiring agreement, includes each party to the agreement.

Powers of  
certifying officers  
and examiners as  
respects goods  
vehicles.  
1981 c. 14.

166. A certifying officer appointed under the Public Passenger Vehicles Act 1981 or an examiner appointed under section 68 of this Act may at any time, on production if so required of his authority, exercise in the case of goods vehicles all such powers as are, under section 164(1) or 165 of this Act, exercisable by a constable.

Power of arrest in  
Scotland for  
reckless or careless  
driving or cycling.

167. A constable—

- (a) may arrest without warrant the driver of a motor vehicle who within his view commits an offence under section 2 or 3 of this Act unless the driver either gives his name and address or produces for examination his licence to drive a motor vehicle granted under Part III of this Act, and
- (b) may arrest without warrant the rider of a cycle who within his view commits an offence under section 28 or 29 of this Act unless the rider gives his name and address.

This section extends only to Scotland.

*Duty to give name and address*

Failure to give, or  
giving false, name  
and address in  
case of reckless or  
careless or  
inconsiderate  
driving or cycling.

168. Any of the following persons—

- (a) the driver of a motor vehicle who is alleged to have committed an offence under section 2 or 3 of this Act, or
- (b) the rider of a cycle who is alleged to have committed an offence under section 28 or 29 of this Act,

who refuses, on being so required by any person having reasonable ground for so requiring, to give his name or address, or gives a false name or address, is guilty of an offence.

Pedestrian  
contravening  
constable's  
direction to stop  
to give name and  
address.

169. A constable may require a person committing an offence under section 37 of this Act to give his name and address, and if that person fails to do so he is guilty of an offence.

*Duties in case of accident*

Duty of driver to  
stop, report  
accident and give  
information or  
documents.

170.—(1) This section applies in a case where, owing to the presence of a motor vehicle on a road, an accident occurs by which—

- (a) personal injury is caused to a person other than the driver of that motor vehicle, or
- (b) damage is caused—

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(i) to a vehicle other than that motor vehicle or a trailer drawn by that motor vehicle, or

(ii) to an animal other than an animal in or on that motor vehicle or a trailer drawn by that motor vehicle, or

(iii) to any other property constructed on, fixed to, growing in or otherwise forming part of the land on which the road in question is situated or land adjacent to such land.

(2) The driver of the motor vehicle must stop and, if required to do so by any person having reasonable grounds for so requiring, give his name and address and also the name and address of the owner and the identification marks of the vehicle.

(3) If for any reason the driver of the motor vehicle does not give his name and address under subsection (2) above, he must report the accident.

(4) A person who fails to comply with subsection (2) or (3) above is guilty of an offence.

(5) If, in a case where this section applies by virtue of subsection (1)(a) above, the driver of the vehicle does not at the time of the accident produce such a certificate of insurance or security, or other evidence, as is mentioned in section 165(2)(a) of this Act—

(a) to a constable, or

(b) to some person who, having reasonable grounds for so doing, has required him to produce it,

the driver must report the accident and produce such a certificate or other evidence.

This subsection does not apply to the driver of an invalid carriage.

(6) To comply with a duty under this section to report an accident or to produce such a certificate of insurance or security, or other evidence, as is mentioned in section 165(2)(a) of this Act, the driver—

(a) must do so at a police station or to a constable, and

(b) must do so as soon as is reasonably practicable and, in any case, within twenty-four hours of the occurrence of the accident.

(7) A person who fails to comply with a duty under subsection (5) above is guilty of an offence, but he shall not be convicted by reason only of a failure to produce a certificate or other evidence if, within five days after the occurrence of the accident, the certificate or other evidence is produced at a police station that was specified by him at the time when the accident was reported.

(8) In this section “animal” means horse, cattle, ass, mule, sheep, pig, goat or dog.

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*Other duties to give information or documents*

Duty of owner of motor vehicle to give information for verifying compliance with requirement of compulsory insurance or security.

**171.—**(1) For the purpose of determining whether a motor vehicle was or was not being driven in contravention of section 143 of this Act on any occasion when the driver was required under section 165(1) or 170 of this Act to produce such a certificate of insurance or security, or other evidence, as is mentioned in section 165(2)(a) of this Act, the owner of the vehicle must give such information as he may be required, by or on behalf of a chief officer of police, to give.

(2) A person who fails to comply with the requirement of subsection (1) above is guilty of an offence.

(3) In this section "owner", in relation to a vehicle which is the subject of a hiring agreement, includes each party to the agreement.

Duty to give information as to identity of driver, etc., in certain cases.

**172.—**(1) This section applies—

(a) to any offence under the preceding provisions of this Act except—

(i) an offence under Part V, or

(ii) an offence under section 13, 16, 51(2), 61(4), 67(9), 68(4), 96 or 117,

and to an offence under section 178 of this Act,

(b) to any offence under sections 25, 26, 27 and 45 of the Road Traffic Offenders Act 1988, and

(c) to any offence against any other enactment relating to the use of vehicles on roads.

(2) Where the driver of a vehicle is alleged to be guilty of an offence to which this section applies—

(a) the person keeping the vehicle shall give such information as to the identity of the driver as he may be required to give by or on behalf of a chief officer of police, and

(b) any other person shall if required as stated above give any information which it is in his power to give and may lead to identification of the driver.

In this subsection references to the driver of a vehicle include references to the person riding a cycle.

(3) A person who fails to comply with the requirement of subsection (2)(a) above is guilty of an offence unless he shows to the satisfaction of the court that he did not know and could not with reasonable diligence have ascertained who the driver of the vehicle or, as the case may be, the rider of the cycle was.

(4) A person who fails to comply with the requirement of subsection (2)(b) above is guilty of an offence.

*Forgery, false statements, etc.*

Forgery of documents, etc.

**173.—**(1) A person who, with intent to deceive—

(a) forges, alters or uses a document or other thing to which this section applies, or

(b) lends to, or allows to be used by, any other person a document or other thing to which this section applies, or



## PART VII

(c) makes or has in his possession any document or other thing so closely resembling a document or other thing to which this section applies as to be calculated to deceive,  
is guilty of an offence.

(2) This section applies to the following documents and other things—

- (a) any licence under any Part of this Act,
- (b) any test certificate, goods vehicle test certificate, plating certificate, certificate of conformity or Minister's approval certificate (within the meaning of Part II of this Act),
- (c) any certificate required as a condition of any exception prescribed under section 14 of this Act,
- (d) any plate containing plated particulars (within the meaning of Part II of this Act) or containing other particulars required to be marked on a goods vehicle by sections 54 to 58 of this Act or regulations under those sections,
- (e) any records required to be kept by virtue of section 74 of this Act,
- (f) any document which, in pursuance of section 89(3) or 117(2) of this Act, is issued as evidence of the result of a test of competence to drive,
- (g) any badge or certificate prescribed by regulations made by virtue of section 135 of this Act,
- (h) any certificate of insurance or certificate of security under Part VI of this Act,
- (j) any document produced as evidence of insurance in pursuance of Regulation 6 of the Motor Vehicles (Compulsory Insurance) (No. 2) Regulations 1973, S.I. 1973 / 2143.
- (k) any document issued under regulations made by the Secretary of State in pursuance of his power under section 165(2)(a) of this Act to prescribe evidence which may be produced in lieu of a certificate of insurance or a certificate of security, and
- (l) any international road haulage permit.

(3) In the application of this section to England and Wales "forges" means makes a false document or other thing in order that it may be used as genuine.

174.—(1) A person who knowingly makes a false statement for the purpose—

- (a) of obtaining the grant of a licence under any Part of this Act to himself or any other person, or
- (b) of preventing the grant of any such licence, or
- (c) of procuring the imposition of a condition or limitation in relation to any such licence, or
- (d) of securing the entry or retention of the name of any person in the register of approved instructors maintained under Part V of this Act, or
- (e) of obtaining the grant of an international road haulage permit to himself or any other person,

is guilty of an offence.

False statements and withholding material information.

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(2) A person who, in supplying information or producing documents for the purposes either of sections 53 to 60 and 63 of this Act or of regulations made under sections 49 to 51, 61, 62 and 66(3) of this Act—

- (a) makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular, or
- (b) produces, provides, sends or otherwise makes use of a document which he knows to be false in a material particular or recklessly produces, provides, sends or otherwise makes use of a document which is false in a material particular,

is guilty of an offence.

(3) A person who—

- (a) knowingly produces false evidence for the purposes of regulations under section 66(1) of this Act, or
- (b) knowingly makes a false statement in a declaration required to be made by the regulations,

is guilty of an offence.

(4) A person who—

- (a) wilfully makes a false entry in any record required to be made or kept by regulations under section 74 of this Act, or
- (b) with intent to deceive, makes use of any such entry which he knows to be false,

is guilty of an offence.

(5) A person who makes a false statement or withholds any material information for the purpose of obtaining the issue—

- (a) of a certificate of insurance or certificate of security under Part VI of this Act, or
- (b) of any document issued under regulations made by the Secretary of State in pursuance of his power under section 165(2)(a) of this Act to prescribe evidence which may be produced in lieu of a certificate of insurance or a certificate of security,

is guilty of an offence.

Issue of false documents.

175. If a person issues—

- (a) any such document as is referred to in section 174(5)(a) or (b) of this Act, or
- (b) a test certificate or certificate of conformity (within the meaning of Part II of this Act),

and the document or certificate so issued is to his knowledge false in a material particular, he is guilty of an offence.

Power to seize articles in respect of which offences under sections 173 to 175 may have been committed.

176.—(1) If a constable has reasonable cause to believe that a document produced to him—

- (a) in pursuance of section 137 of this Act, or

(b) in pursuance of any of the preceding provisions of this Part of this Act, PART VII

is a document in relation to which an offence has been committed under section 173, 174 or 175 of this Act or under section 115 of the Road Traffic Regulation Act 1984, he may seize the document.

1984 c. 27.

(2) When a document is seized under subsection (1) above, the person from whom it was taken shall, unless—

- (a) the document has been previously returned to him, or
- (b) he has been previously charged with an offence under any of those sections,

be summoned before a magistrates' court or, in Scotland, the sheriff to account for his possession of the document.

(3) The court or sheriff must make such order respecting the disposal of the document and award such costs as the justice of the case may require.

(4) If a constable, a certifying officer appointed under the Public Passenger Vehicles Act 1981 or an examiner appointed under section 68(1) of this Act has reasonable cause to believe that a document or plate carried on a motor vehicle or by the driver of the vehicle is a document or plate to which this subsection applies, he may seize it.

1981 c. 14.

For the purposes of this subsection the power to seize includes power to detach from a vehicle.

(5) Subsection (4) above applies to a document or plate in relation to which an offence has been committed under sections 173, 174 or 175 of this Act in so far as they apply—

- (a) to documents evidencing the appointment of examiners for the purposes of sections 68 to 72 of this Act, or
- (b) to goods vehicle test certificates, plating certificates, certificates of conformity or Minister's approval certificates (within the meaning of Part II of this Act), or
- (c) to plates containing plated particulars (within the meaning of that Part) or containing other particulars required to be marked on goods vehicles by sections 54 to 58 of this Act or regulations made under them, or
- (d) to records required to be kept by virtue of section 74 of this Act, or
- (e) to international road haulage permits.

(6) When a document or plate is seized under subsection (4) above, either the driver or owner of the vehicle shall, if the document or plate is still detained and neither of them has previously been charged with an offence in relation to the document or plate under section 173, 174 or 175 of this Act, be summoned before a magistrates' court or, in Scotland, the sheriff to account for his possession of, or the presence on the vehicle of, the document or plate.

(7) The court or sheriff must make such order respecting the disposal of the document or plate and award such costs as the justice of the case may require.

**PART VII**  
Impersonation of,  
or of person  
employed by,  
authorised  
examiner.

**177.** If a person, with intent to deceive, falsely represents himself to be, or to be employed by, a person authorised by the Secretary of State for the purposes of section 45 of this Act, he is guilty of an offence.

*Offences in Scotland*

Taking motor  
vehicle without  
authority, etc.

**178.—(1)** A person who in Scotland—

- (a) takes and drives away a motor vehicle without having either the consent of the owner of the vehicle or other lawful authority, or
- (b) knowing that a motor vehicle has been so taken, drives it or allows himself to be carried in or on it without such consent or authority,

is, subject to subsection (2) below, guilty of an offence.

(2) If—

- (a) the jury, on proceedings under this section on indictment, or
- (b) the court, on summary proceedings under this section,

is satisfied that the accused acted in the reasonable belief that he had lawful authority, or in the reasonable belief that the owner would, in the circumstances of the case, have given consent if he had been asked for it, the accused shall not be liable to be convicted of the offence.

(3) A constable may arrest without warrant a person reasonably suspected by him of having committed or of attempting to commit an offence under this section.

*Inquiries*

General power to  
hold enquiries.

**179.** Without prejudice to any other provision of this Act, the Secretary of State may hold inquiries for the purposes of this Act.

General  
provisions as to  
inquiries.

**180.—(1)** Where under any of the provisions of this Act an inquiry is held by the Secretary of State—

- (a) notice of the inquiry may be given and published in accordance with such general or special directions as the Secretary of State may give,
- (b) the Secretary of State and, if authorised by him, the person appointed to hold the inquiry may by order require any person, subject to the payment or tender of the reasonable expenses of his attendance, to attend as a witness and give evidence or to produce any documents in his possession or power which relate to any matter in question at the inquiry and are such as would be subject to production in a court of law,
- (c) the person holding the inquiry shall have power to take evidence on oath and for that purpose to administer oaths, and
- (d) the Secretary of State may make such order as to the payment of the costs incurred by him in connection with the inquiry (including such reasonable sum not exceeding £30 a day as he may determine for the services of any officer engaged in the inquiry) by such party to the inquiry as he thinks fit, and may certify the amount of the costs so incurred.

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(2) Any amount certified as mentioned in subsection (1)(d) above and directed by the Secretary of State to be paid by any person shall be recoverable from that person—

- (a) in England or Wales, by the Secretary of State summarily as a civil debt (without prejudice to any other means of recovering it), or
- (b) in Scotland, by the Secretary of State.

(3) A person who fails without reasonable excuse to comply with any of the provisions of an order under subsection (1)(b) above is guilty of an offence.

181.—(1) Where an accident arises out of the presence of a motor vehicle on a road, the Secretary of State may direct inquiry to be made into the cause of the accident.

General provisions as to accident inquiries.

(2) Where any accident arising out of the presence of a motor vehicle on a road has occurred, a person authorised by the Secretary of State in that behalf may, on production if so required of his authority, inspect any vehicle in connection with which the accident arose, and for that purpose may enter at any reasonable time any premises where the vehicle is.

(3) If a person obstructs a person so authorised in the performance of his duty under subsection (2) above, he is guilty of an offence.

(4) If in any case the Secretary of State considers that an inquiry to be made by him under this section should be made by means of the holding of a public inquiry, he may direct a public inquiry to be held.

(5) A report made by or to the Secretary of State as the result of an inquiry under this section shall not be used in evidence by or on behalf of a person by or against whom any legal proceedings are instituted in consequence of the accident to which the inquiry relates.

182.—(1) Where, owing to the presence of a vehicle on a road, an accident occurs within Greater London and it appears to the Secretary of State that the sole or a contributory cause of the accident was—

Special provisions as to accident inquiries in Greater London.

- (a) the nature or character of the road or of the road surface, or
- (b) a defect in the design or construction of the vehicle or in the materials used in the construction of the road or vehicle,

he may, if he thinks fit, cause an inquiry to be held into the cause of the accident.

(2) In this section “road” includes a highway and a bridge carrying a highway and any lane, mews, footway, square, court, alley or passage whether a thoroughfare or not.

*Application to the Crown*

183.—(1) Subject to the provisions of this section—

Application to the Crown.

- (a) Part I of this Act,
- (b) Part II of this Act, except sections 68 to 74 and 77,
- (c) Part III of this Act, except section 103(3),
- (d) Part IV of this Act, and

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(e) in this Part, sections 163, 164, 168, 169, 170(1) to (4), 177, 178, 181 and 182,

apply to vehicles and persons in the public service of the Crown.

(2) Sections 49 to 63 and section 65 of this Act apply—

1971 c. 10.

(a) to vehicles in the public service of the Crown only if they are registered or liable to be registered under the Vehicles (Excise) Act 1971, and

(b) to trailers in the public service of the Crown only while drawn by vehicles (whether or not in the public service of the Crown) which are required to be so registered.

(3) Where those sections so apply they do so subject to the following modifications—

1981 c. 14.

(a) examinations of such vehicles in pursuance of regulations under section 49 or 61(2)(a) of this Act may be made by or under the directions of examiners authorised by the Secretary of State for the purpose instead of by or under the directions of examiners appointed under section 68 of this Act or of certifying officers or public service vehicle examiners appointed under the Public Passenger Vehicles Act 1981, and

(b) section 50(1) of this Act does not apply to the determination of an examiner so authorised on any such examination, but any person aggrieved by such a determination may appeal to the Secretary of State and on the appeal the Secretary of State shall cause the vehicle to be re-examined by an officer appointed by him for the purpose and may make such determination on the basis of the re-examination as he thinks fit.

(4) Neither section 97(3) nor section 98(3) of this Act, in so far as they prevent such a licence as is there mentioned from authorising a person to drive certain motor cycles, applies—

(a) in the case of motor cycles owned by the Secretary of State for Defence and used for naval, military or air force purposes, or

(b) in the case of motor cycles so used while being ridden by persons for the time being subject to the orders of a member of the armed forces of the Crown.

(5) Subject to regulations made under subsection (2) of section 101 of this Act, that section (in so far as it prohibits persons under 21 from holding or obtaining a licence to drive motor vehicles or persons under 18 from holding or obtaining a licence to drive medium-sized goods vehicles) does not apply—

(a) in the case of motor vehicles owned by the Secretary of State for Defence and used for naval, military or air force purposes, or

(b) in the case of vehicles so used while being driven by persons for the time being subject to the orders of a member of the armed forces of the Crown.

1957 c. 53.

(6) The function of issuing licences under Part IV of this Act to persons subject to the Naval Discipline Act 1957, to military law or to air force law to drive goods vehicles in the public service of the Crown and of revoking and suspending such licences shall be exercised by the prescribed licensing authority, and references in that Part to the licensing authority shall be construed accordingly.

(7) Section 165 of this Act, in so far as it provides for the production of test certificates and the giving of names and addresses, applies to a person in connection with a vehicle to which section 47 of this Act applies notwithstanding that he or the driver is or was at any material time in the public service of the Crown.

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(8) Subsection (1) of section 165 of this Act, in so far as it provides for the production of any certificate mentioned in subsection (2)(c) of that section, applies to a person in connection with a goods vehicle so mentioned notwithstanding that he or the driver is or was at any material time in the public service of the Crown.

**184.**—(1) Sections 5 to 10 of this Act, in their application to persons subject to service discipline, apply outside as well as within Great Britain and have effect as if—

Application of sections 5 to 10 to persons subject to service discipline.

- (a) references to proceedings for an offence under any enactment included references to proceedings for the corresponding service offence,
- (b) references to the court included a reference to any naval, military or air force authority before whom the proceedings take place,
- (c) references to a constable included references to a member of the provost staff,
- (d) references to a police station included references to a naval, military or air force unit or establishment,
- (e) references to a hospital included references to a naval, military or air force unit or establishment at which medical or surgical treatment is provided for persons subject to service discipline, and
- (f) in section 6(1) the reference to a traffic offence included a reference to the corresponding service offence.

(2) In relation to persons for the time being subject to service discipline, the power to arrest conferred on a constable by section 4(6) of this Act is also exercisable by a member of the provost staff and is so exercisable outside as well as within Great Britain.

(3) In this section—

“corresponding service offence”, in relation to an offence under any enactment, means an offence under section 42 of the Naval Discipline Act 1957 or an offence against section 70 of the Army Act 1955 or section 70 of the Air Force Act 1955 committed by an act or omission which is punishable under that enactment or would be so punishable if committed in Great Britain,

1957 c. 53.  
1955 c. 18.  
1955 c. 19.

“member of the provost staff” means a provost officer or any person legally exercising authority under or on behalf of a provost officer,

“persons subject to service discipline” means persons subject to that Act of 1957, to military law or to air force law and other persons to whom section 42 of that Act of 1957 or section 70 of either of those Acts of 1955 for the time being applies,

“provost officer” means a person who is a provost officer within the meaning of that Act of 1957 or either of those Acts of 1955.

## PART VII

## Interpretation

Meaning of  
"motor vehicle"  
and other  
expressions  
relating to  
vehicles.

**185.—(1) In this Act—**

"heavy locomotive" means a mechanically propelled vehicle which is not constructed itself to carry a load other than any of the excepted articles and the weight of which unladen exceeds 11690 kilograms,

"heavy motor car" means a mechanically propelled vehicle, not being a motor car, which is constructed itself to carry a load or passengers and the weight of which unladen exceeds 2540 kilograms,

"invalid carriage" means a mechanically propelled vehicle the weight of which unladen does not exceed 254 kilograms and which is specially designed and constructed, and not merely adapted, for the use of a person suffering from some physical defect or disability and is used solely by such a person,

"light locomotive" means a mechanically propelled vehicle which is not constructed itself to carry a load other than any of the excepted articles and the weight of which unladen does not exceed 11690 kilograms but does exceed 7370 kilograms,

"motor car" means a mechanically propelled vehicle, not being a motor cycle or an invalid carriage, which is constructed itself to carry a load or passengers and the weight of which unladen—

(a) if it is constructed solely for the carriage of passengers and their effects, is adapted to carry not more than seven passengers exclusive of the driver and is fitted with tyres of such type as may be specified in regulations made by the Secretary of State, does not exceed 3050 kilograms,

(b) if it is constructed or adapted for use for the conveyance of goods or burden of any description, does not exceed 3050 kilograms, or 3500 kilograms if the vehicle carries a container or containers for holding for the purposes of its propulsion any fuel which is wholly gaseous at 17.5 degrees Celsius under a pressure of 1.013 bar or plant and materials for producing such fuel,

(c) does not exceed 2540 kilograms in a case not falling within sub-paragraph (a) or (b) above,

"motor cycle" means a mechanically propelled vehicle, not being an invalid carriage, with less than four wheels and the weight of which unladen does not exceed 410 kilograms,

"motor tractor" means a mechanically propelled vehicle which is not constructed itself to carry a load, other than the excepted articles, and the weight of which unladen does not exceed 7370 kilograms,

"motor vehicle" means, subject to section 20 of the Chronically Sick and Disabled Persons Act 1970 (which makes special provision about invalid carriages, within the meaning of that Act), a mechanically propelled vehicle intended or adapted for use on roads, and

"trailer" means a vehicle drawn by a motor vehicle.



(2) In subsection (1) above "excepted articles" means any of the following: water, fuel, accumulators and other equipment used for the purpose of propulsion, loose tools and loose equipment.

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**186.**—(1) For the purposes of section 185 of this Act, a side car attached to a motor vehicle, if it complies with such conditions as may be specified in regulations made by the Secretary of State, is to be regarded as forming part of the vehicle to which it is attached and as not being a trailer.

Supplementary provisions about those expressions.

(2) For the purposes of section 185 of this Act, in a case where a motor vehicle is so constructed that a trailer may by partial super-imposition be attached to the vehicle in such a manner as to cause a substantial part of the weight of the trailer to be borne by the vehicle, that vehicle is to be deemed to be a vehicle itself constructed to carry a load.

(3) For the purposes of section 185 of this Act, in the case of a motor vehicle fitted with a crane, dynamo, welding plant or other special appliance or apparatus which is a permanent or essentially permanent fixture, the appliance or apparatus is not to be deemed to constitute a load or goods or burden of any description, but is to be deemed to form part of the vehicle.

(4) The Secretary of State may by regulations vary any of the maximum or minimum weights specified in section 185 of this Act.

(5) Regulations under subsection (4) above may have effect—

- (a) either generally or in the case of vehicles of any class specified in the regulations, and
- (b) either for the purposes of the provisions of the Road Traffic Acts and of all regulations made under those provisions or for such of those purposes as may be so specified.

(6) Nothing in section 86 of the Road Traffic Regulation Act 1984 limits the powers conferred by subsection (4) above. 1984 c. 27.

**187.**—(1) Unless it falls within subsection (2) below, a vehicle so constructed that it can be divided into two parts both of which are vehicles and one of which is a motor vehicle shall (when not so divided) be treated for the purposes of the enactments mentioned in subsection (3) below as that motor vehicle with the other part attached as a trailer.

Articulated vehicles.

(2) A passenger vehicle so constructed that—

- (a) it can be divided into two parts, both of which are vehicles and one of which is a motor vehicle, but cannot be so divided without the use of facilities normally available only at a workshop, and
- (b) passengers carried by it when not so divided can at all times pass from either part to the other,

shall (when not so divided) be treated for the purposes of the enactments mentioned in subsection (3) below as a single motor vehicle.

(3) The enactments referred to in subsections (1) and (2) above are the Road Traffic Act 1960, Parts I and II of the Public Passenger Vehicles Act 1981, and the Traffic Acts.

1960 c. 16.  
1981 c. 14.

(4) In this section "passenger vehicle" means a vehicle constructed or adapted for use solely or principally for the carriage of passengers.

**PART VII**  
Hover vehicles.  
1968 c. 59.

**188.—**(1) For the purposes of the Road Traffic Acts, a hovercraft within the meaning of the Hovercraft Act 1968 (in this section referred to as a hover vehicle)—

- (a) is a motor vehicle, whether or not it is intended or adapted for use on roads, but
- (b) apart from that is to be treated, subject to subsection (2) below, as not being a vehicle of any of the classes defined in section 185 of this Act.

(2) The Secretary of State may by regulations provide—

- (a) that any provisions of this Act which would otherwise apply to hover vehicles shall not apply to them or shall apply to them subject to such modifications as may be specified in the regulations, or
- (b) that any such provision which would not otherwise apply to hover vehicles shall apply to them subject to such modifications (if any) as may be specified in the regulations.

Certain vehicles  
not to be treated  
as motor vehicles.

**189.—**(1) For the purposes of the Road Traffic Acts—

- (a) a mechanically propelled vehicle being an implement for cutting grass which is controlled by a pedestrian and is not capable of being used or adapted for any other purpose,
- (b) any other mechanically propelled vehicle controlled by a pedestrian which may be specified by regulations made by the Secretary of State for the purposes of this section and section 140 of the Road Traffic Regulation Act 1984, and
- (c) an electrically assisted pedal cycle of such a class as may be prescribed by regulations so made,

1984 c. 27.

is to be treated as not being a motor vehicle.

(2) In subsection (1) above “controlled by a pedestrian” means that the vehicle either—

- (a) is constructed or adapted for use only under such control, or
- (b) is constructed or adapted for use either under such control or under the control of a person carried on it, but is not for the time being in use under, or proceeding under, the control of a person carried on it.

Method of  
calculating weight  
of motor vehicles  
and trailers.

**190.—**(1) This section applies for the purposes of the Traffic Acts and of any other enactments relating to the use of motor vehicles or trailers on roads.

(2) The weight unladen of a vehicle or trailer shall be taken to be the weight of the vehicle or trailer—

- (a) inclusive of the body and all parts (the heavier being taken where alternative bodies or parts are used) which are necessary to or ordinarily used with the vehicle or trailer when working on a road, but
- (b) exclusive of the weight of water, fuel or accumulators used for the purpose of the supply of power for the propulsion of the vehicle or, as the case may be, of any vehicle by which the trailer is drawn, and of loose tools and loose equipment.

**191. A motor vehicle or trailer—**

- (a) is to be deemed to be a carriage within the meaning of any Act of Parliament, whether a public general Act or a local Act, and of any rule, regulation or byelaw made under any Act of Parliament, and
- (b) if used as a carriage of any particular class shall for the purpose of any enactment relating to carriages of any particular class be deemed to be a carriage of that class.

**PART VII**

Interpretation of  
statutory  
references to  
carriages.

**192.—(1) In this Act—**

General  
interpretation of  
Act.

“bridleway” means a way over which the public have the following, but no other, rights of way: a right of way on foot and a right of way on horseback or leading a horse, with or without a right to drive animals of any description along the way,

“carriage of goods” includes the haulage of goods,

“cycle” means a bicycle, a tricycle, or a cycle having four or more wheels, not being in any case a motor vehicle,

“driver”, where a separate person acts as a steersman of a motor vehicle, includes (except for the purposes of section 1 of this Act) that person as well as any other person engaged in the driving of the vehicle, and “drive” is to be interpreted accordingly,

“footpath”, in relation to England and Wales, means a way over which the public have a right of way on foot only,

“goods” includes goods or burden of any description,

“goods vehicle” means a motor vehicle constructed or adapted for use for the carriage of goods, or a trailer so constructed or adapted,

“highway authority”, in relation to England and Wales, means—

(a) in relation to a road other than a trunk road, the authority (being either the council of a county, metropolitan district or London borough or the Common Council of the City of London) which is responsible for the maintenance of the road, and

(b) in relation to a trunk road, the Secretary of State,

“international road haulage permit” means a licence, permit, authorisation or other document issued in pursuance of a Community instrument relating to the carriage of goods by road between member States or an international agreement to which the United Kingdom is a party and which relates to the international carriage of goods by road,

“owner”, in relation to a vehicle which is the subject of a hiring agreement or hire-purchase agreement, means the person in possession of the vehicle under that agreement,

“petty sessions area” has the same meaning as in the Magistrates’ Courts Act 1980,

1980 c. 43.

“prescribed” means prescribed by regulations made by the Secretary of State,

**PART VII**

- “road”, in relation to England and Wales, means any highway and any other road to which the public has access, and includes bridges over which a road passes,
- 1988 c. 53. “the Road Traffic Acts” means the Road Traffic Offenders Act 1988,  
1988 c. 54. the Road Traffic (Consequential Provisions) Act 1988 (so far as it reproduces the effect of provisions repealed by that Act) and this Act,
- “statutory”, in relation to any prohibition, restriction, requirement or provision, means contained in, or having effect under, any enactment (including any enactment contained in this Act),
- “the Traffic Acts” means the Road Traffic Acts and the Road Traffic Regulation Act 1984,
- “traffic sign” has the meaning given by section 64(1) of the Road Traffic Regulation Act 1984,
- 1896 c. 48. “tramcar” includes any carriage used on any road by virtue of an order under the Light Railways Act 1896, and
- “trolley vehicle” means a mechanically propelled vehicle adapted for use on roads without rails and moved by power transmitted to it from some external source.
- (2) In this Act—
- “carriageway”
- “footway”
- “local roads authority”
- “public road”
- “road”
- “roads authority”
- “special road” and
- “trunk road”,
- 1984 c. 54. in relation to Scotland, have the same meanings as in the Roads (Scotland) Act 1984, and “footpath”, in relation to Scotland, means a way over which the public have a right of way on foot only (whether or not associated with a carriageway).
- 1984 c. 27. (3) References in this Act to a class of vehicles are to be interpreted as references to a class defined or described by reference to any characteristics of the vehicles or to any other circumstances whatsoever.
- Exemptions for tramcars, trolley vehicles, railway locomotives, carriages and trucks. **193.** Schedule 4 to this Act (which excludes the application of certain provisions of the Road Traffic Acts to tramcars, trolley vehicles, railway locomotives, carriages and trucks) shall have effect.
- General index. **194.** The expressions listed in the left-hand column below are respectively defined or (as the case may be) fall to be construed in accordance with the provisions of this Act listed in the right-hand column in relation to those expressions.

| <i>Expression</i>                 | <i>Relevant provision</i>           |
|-----------------------------------|-------------------------------------|
| Bridleway                         | Section 192                         |
| Carriage of goods                 | Section 192                         |
| Carriageway                       | Section 192                         |
| Cycle                             | Section 192                         |
| Drive                             | Section 192                         |
| Driver                            | Section 192                         |
| Footpath                          | Section 192                         |
| Footway                           | Section 192                         |
| Goods                             | Section 192                         |
| Goods vehicle                     | Section 192                         |
| Goods vehicle test certificate    | Section 49(2)(b)                    |
| Heavy locomotive                  | Section 185                         |
| Heavy motor car                   | Section 185                         |
| Highway authority                 | Section 192                         |
| International road haulage permit | Section 192                         |
| Invalid carriage                  | Section 185                         |
| Light locomotive                  | Section 185                         |
| Local roads authority             | Section 192                         |
| Motor car                         | Section 185                         |
| Motor cycle                       | Section 185                         |
| Motor tractor                     | Section 185                         |
| Motor vehicle                     | Sections 185, 186(1), 187, 188, 189 |
| Owner                             | Section 192                         |
| Plating certificate               | Section 49(2)(a)                    |
| Prescribed                        | Section 192                         |
| Public road                       | Section 192                         |
| Road                              | Section 192                         |
| Roads authority                   | Section 192                         |
| Road Traffic Acts                 | Section 192                         |
| Special road                      | Section 192                         |
| Statutory                         | Section 192                         |
| Test certificate                  | Section 45(2)                       |
| Traffic Acts                      | Section 192                         |
| Traffic sign                      | Section 192                         |
| Trailer                           | Section 185                         |
| Tramcar                           | Section 192                         |
| Trolley vehicle                   | Section 192                         |
| Trunk road                        | Section 192                         |
| Unladen weight                    | Section 190                         |

## PART VII

*Supplementary*

**195.—(1)** Any power conferred by this Act upon the Secretary of State to make regulations shall be exercisable by statutory instrument. Provisions as to regulations.

## PART VII

(2) Before making any regulations under this Act (other than regulations under section 88(3) or Part V) the Secretary of State must consult with such representative organisations as he thinks fit.

(3) A statutory instrument whereby any power conferred by this Act upon the Secretary of State to make regulations is exercised (other than the power conferred by sections 8(3), 11(2), 14, 15 (where exercisable for the purposes of subsection (3) of that section) or 189) shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) The Secretary of State must not make any regulations under section 8(3), 11(2), 14 or (where made for the purposes of subsection (3) of that section) 15 of this Act unless a draft of the regulations has been approved by both Houses of Parliament.

(5) Regulations under section 189 of this Act shall not have effect unless approved by resolution of each House of Parliament.

Provision, etc.,  
of weighbridges.

196.—(1) A highway authority may—

- (a) provide, erect, maintain and operate, or join with another highway authority in providing, erecting, maintaining and operating, weighbridges or other machines for weighing vehicles, or
- (b) contribute towards the cost of the provision, erection, maintenance and operation of any such weighbridge or other machine by any other authority or person.

(2) The Secretary of State may exercise the powers conferred by subsection (1) above whether or not in his capacity as highway authority, but may provide, erect, maintain and operate any such machine on a road for which he is not the highway authority only with the consent of the highway authority.

(3) Accordingly the presence of any such machine on a road in consequence of the exercise of those powers by virtue of subsection (2) above (as in any other case) shall not be taken to be an obstruction of the road.

(4) The provision or erection, or the making of a contribution towards the provision or erection, of any such weighbridge or other machine shall be a purpose for which the highway authority may borrow.

(5) In relation to Scotland, references in this section to a highway authority are to be read as references to a roads authority.

Short title,  
commencement  
and extent.  
1988 c. 54.

197.—(1) This Act may be cited as the Road Traffic Act 1988.

(2) This Act shall come into force, subject to the transitory provisions in Schedule 5 to the Road Traffic (Consequential Provisions) Act 1988, at the end of the period of six months beginning with the day on which it is passed.

(3) This Act, except section 80 and except as provided by section 184, does not extend to Northern Ireland.

## SCHEDULES

## SCHEDULE 1

Sections 17 and  
18.SUPPLEMENTARY PROVISIONS IN CONNECTION WITH PROCEEDINGS FOR OFFENCES  
UNDER SECTIONS 17 AND 18(4)*Proceedings in England and Wales*

1.—(1) A person against whom proceedings are brought in England and Wales for an offence under section 17 or 18(4) of this Act is, upon information duly laid by him and on giving the prosecution not less than three clear days' notice of his intention, entitled to have any person to whose act or default he alleges that the contravention of that section was due brought before the court in the proceedings.

(2) If, after the contravention has been proved, the original accused proves that the contravention was due to the act or default of that other person—

- (a) that other person may be convicted of the offence, and
- (b) if the original accused further proves that he has used all due diligence to secure that section 17 or, as the case may be, 18(4) was complied with, he shall be acquitted of the offence.

(3) Where an accused seeks to avail himself of the provisions of subparagraphs (1) and (2) above—

- (a) the prosecution, as well as the person whom the accused charges with the offence, has the right to cross-examine him, if he gives evidence, and any witness called by him in support of his pleas, and to call rebutting evidence, and
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party to the proceedings.

2.—(1) Where—

- (a) it appears that an offence under section 17 or 18(4) of this Act has been committed in respect of which proceedings might be taken in England and Wales against some person (referred to below in this paragraph as "the original offender"), and
- (b) a person proposing to take proceedings in respect of the offence is reasonably satisfied—
  - (i) that the offence of which complaint is made was due to an act or default of some other person, being an act or default which took place in England and Wales, and
  - (ii) that the original offender could establish a defence under paragraph 1 of this Schedule,

the proceedings may be taken against that other person without proceedings first being taken against the original offender.

(2) In any such proceedings the accused may be charged with, and on proof that the contravention was due to his act or default be convicted of, the offence with which the original offender might have been charged.

3.—(1) Where proceedings are brought in England and Wales against a person (referred to below in this paragraph as "the accused") in respect of a contravention of section 17 or 18(4) of this Act and it is proved—

- (a) that the contravention was due to the act or default of some other person, being an act or default which took place in Scotland, and
- (b) that the accused used all due diligence to secure compliance with that section,

the accused shall, subject to the provisions of this paragraph, be acquitted of the offence.

SCH. 1 (2) The accused is not entitled to be acquitted under this paragraph unless within seven days from the date of the service of the summons on him—

(a) he has given notice in writing to the prosecution of his intention to rely upon the provisions of this paragraph, specifying the name and address of the person to whose act or default he alleges that the contravention was due, and

(b) he has sent a like notice to that person.

(3) The person specified in a notice served under this paragraph is entitled to appear at the hearing and to give evidence and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) Where it is proved that the contravention of section 17 or 18(4) of this Act was due to the act or default of some person other than the accused, being an act or default which took place in Scotland, the court must (whether or not the accused is acquitted) cause notice of the proceedings to be sent to the Secretary of State.

#### *Proceedings in Scotland*

4.—(1) Where a contravention of section 17 or 18(4) of this Act committed by a person in Scotland (referred to in this sub-paragraph as “the original offender”) was due to the act or default of any other person, being an act or default which took place in Scotland then, whether or not proceedings are taken against the original offender, that other person may be charged with and convicted of the contravention and shall be liable on conviction to the same punishment as might have been inflicted on the original offender if he had been convicted of the contravention.

(2) Where a person (referred to in this sub-paragraph as “the accused”) who is charged in Scotland with a contravention of section 17 or 18(4) of this Act proves to the satisfaction of the court—

(a) that he used all due diligence to secure that the provision in question was complied with, and

(b) that the contravention was due to the act or default of some other person,

the accused shall be acquitted of the contravention.

#### *Proceedings in Great Britain*

5.—(1) Subject to the provisions of this paragraph, in any proceedings (whether in England and Wales or Scotland) for an offence under section 17 or 18(4) of this Act it shall be a defence for the accused to prove—

(a) that he purchased the helmet or appliance in question as being of a type which—

(i) in the case of section 17, could be lawfully sold or offered for sale under that section, and

(ii) in the case of section 18(4), could be lawfully sold or offered for sale under section 18 as authorised for use in the manner in question, and with a written warranty to that effect, and

(b) that he had no reason to believe at the time of the commission of the alleged offence that it was not of such a type, and

(c) that it was then in the same state as when he purchased it.



(2) A warranty is only a defence in any such proceedings if—

SCH. 1

(a) the accused—

(i) has, not later than three clear days before the date of the hearing, sent to the prosecutor a copy of the warranty with a notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it, and

(ii) has also sent a like notice of his intention to that person, and

(b) in the case of a warranty given by a person outside the United Kingdom, the accused proves that he had taken reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained in the warranty.

(3) Where the accused is a servant of the person who purchased the helmet or appliance in question under a warranty, he is entitled to rely on the provisions of this paragraph in the same way as his employer would have been entitled to do if he had been the accused.

(4) The person by whom the warranty is alleged to have been given is entitled to appear at the hearing and to give evidence and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

6.—(1) An accused who in any proceedings for an offence under section 17 or 18(4) of this Act wilfully applies to a helmet or, as the case may be, appliance a warranty not given in relation to that helmet or appliance is guilty of an offence.

(2) A person who, in respect of a helmet or appliance sold by him, being a helmet or appliance in respect of which a warranty might be pleaded under paragraph 5 of this Schedule, gives to the purchaser a false warranty in writing, is guilty of an offence, unless he proves that when he gave the warranty he had reason to believe that the statements or description contained in it were accurate.

(3) Where the accused in a prosecution for an offence under section 17 or 18(4) of this Act relies successfully on a warranty given to him or his employer, any proceedings under sub-paragraph (2) above in respect of the warranty may, at the option of the prosecutor, be taken either—

(a) before a court having jurisdiction in the place where the helmet or appliance, or any of the helmets or appliances, to which the warranty relates was procured, or

(b) before a court having jurisdiction in the place where the warranty was given.

7. In this Schedule, “appliance” means an appliance to which section 18 of this Act applies.

## SCHEDULE 2

Section 67.

### DEFERRED TESTS OF CONDITION OF VEHICLES

1. Where the driver is the owner of the vehicle, he may at the time of electing that the test shall be deferred—

(a) specify a period of seven days within which the deferred test is to take place, being a period falling within the next thirty days, disregarding any day on which the vehicle is outside Great Britain, and

(b) require that the deferred test shall take place on premises then specified by him where the test can conveniently be carried out or that it shall take place in such area in England and Wales, being a county district or Greater London, or such area in Scotland, being an islands area or district, as he may specify at that time.

2. When the driver is not the owner of the vehicle he shall inform the examiner of the name and address of the owner of the vehicle and the owner shall be afforded an opportunity of specifying such a period, and such premises or area.

## SCH. 2

3.—(1) Where under the preceding provisions of this Schedule a period has been specified within which the deferred test is to be carried out, the time for carrying it out shall be such time within that period as may be notified, being a time not earlier than two days after the giving of the notification.

(2) Where no such period has been specified, the time for the carrying out of the deferred test shall be such time as may be notified, being a time not earlier than seven days after the giving of the notification.

(3) Where premises have been specified under the preceding provisions of this Schedule for the carrying out of the deferred test, and the test can conveniently be carried out on those premises, it must be carried out there.

(4) Where sub-paragraph (3) above does not apply, the place for carrying out the deferred test shall be such place as may be notified with the notification of the time for the carrying out of the test, and where an area has been so specified the place shall be a place in that area.

(5) Notwithstanding the preceding provisions of this paragraph, the time and place for the carrying out of the deferred test may be varied by agreement between an authorised examiner and the owner of the vehicle.

(6) In this paragraph—

“notified” means notified in writing to the owner of the vehicle on behalf of the Secretary of State, and

“notification” shall be construed accordingly,

and any notification under this paragraph may be given by post.

4. The owner of the vehicle must produce it, or secure its production, at the time and place fixed for the carrying out of the deferred test.

5.—(1) References in this Schedule to the owner of a vehicle are references to the owner of the vehicle at the time at which the election is made under section 67(6) of this Act that the test should be deferred.

(2) For the purposes of this Schedule—

(a) subject to sub-paragraph (b) below, if at the time at which that election is made the vehicle is in the possession of a person under a hire-purchase agreement or hiring agreement, that person shall be deemed to be the owner of the vehicle to the exclusion of any other person,

(b) if at that time the vehicle is being used under an international circulation permit, the person to whom the permit was issued shall be deemed to be the owner of the vehicle to the exclusion of any other person.

## Section 131.

## SCHEDULE 3

## APPEALS UNDER SECTION 131 AGAINST DECISIONS OF THE REGISTRAR

1. On an appeal under section 131 of this Act, the Registrar shall be made respondent.

2.—(1) The Secretary of State shall refer every such appeal to a person, or two or three persons, appointed by him to hold an inquiry and report to him.

(2) The person or persons so appointed may be appointed either for the purposes of one particular inquiry, or of inquiries into any such appeal that may be made to the Secretary of State during such period as the Secretary of State may determine.

(3) No person so appointed shall be an officer of the Secretary of State.

(4) The Secretary of State may, for the purpose of any such inquiry, appoint up to three assessors to advise the person or persons holding it on matters arising out of it.

(5) The Secretary of State shall, before making an order under section 131 of this Act, consider any report made to him under this paragraph. SCH. 3

(6) The Secretary of State shall pay to any person or persons holding inquiries under this paragraph and to any assessors appointed under this paragraph such fees and such expenses, if any, incurred by them as he may, with the approval of the Treasury, determine.

3.—(1) The Secretary of State may by rules made by statutory instrument make provision as to the procedure on an appeal under section 131 of this Act.

(2) In particular, but without prejudice to the generality of sub-paragraph (1) above, the rules may make provision—

- (a) prescribing the form and contents of the notice of appeal,
- (b) enabling the party to an appeal to appear at an inquiry held under this Schedule by counsel or a solicitor or any person of such other description, if any, as may be specified by the rules,
- (c) requiring proceedings on any such inquiry to be held in public, except in so far as may otherwise be provided by the rules,
- (d) defining the functions of any assessors appointed by the Secretary of State.

4.—(1) The Secretary of State may on an appeal under section 131 of this Act—

- (a) order the appellant to pay the whole or part of the costs incurred by the Secretary of State in connection with the appeal, or
- (b) direct that the whole or part of the costs of the appellant incurred in connection with the appeal shall be treated as part of the administrative expenses of the Secretary of State.

(2) The Secretary of State may certify the amount of any such costs, and any amount so certified and ordered to be paid by the appellant shall be recoverable from him.

5. Section 180 of this Act, in its application to an inquiry caused by the Secretary of State to be held under paragraph 2 above, shall have effect as if subsection (1)(d) were omitted.

#### SCHEDULE 4

Section 193.

##### PROVISIONS NOT APPLICABLE TO TRAMCARS, ETC.

1. Sections 12, 25, 26 and 127 of this Act do not apply to tramcars or trolley vehicles operated under statutory powers.

2. Sections 2, 3, 4(1) and 181 of this Act do not apply to tramcars operated under statutory powers.

3. The provisions of sections 41, 42, 47, 48, 66 and 75 of this Act and any order or regulations made under those provisions do not apply to tramcars or trolley vehicles operated under statutory powers.

4. Section 83 of this Act does not apply to railway locomotives, carriages and trucks or to tramcars.

5. Part III of this Act and, in the Road Traffic Offenders Act 1988, the provisions connected with the licensing of drivers (within the meaning of that Act) do not apply to tramcars operated under statutory powers. 1988 c. 53.

6. Sections 101 and 109 of this Act do not apply to trolley vehicles operated under statutory powers.

7. Part VI of this Act does not apply to tramcars or trolley vehicles operated under statutory powers.

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1988 c. 53.

8. Sections 78, 79, 163, 165, 168, 170, 171, 178, 190 and 191 of this Act and sections 1 and 2 of the Road Traffic Offenders Act 1988 do not apply to tramcars or trolley vehicles operated under statutory powers.

9. Section 164 of this Act does not apply to tramcars operated under statutory powers.

10. In this Schedule "operated under statutory powers" means, in relation to tramcars or trolley vehicles, that their use is authorised or regulated by special Act of Parliament or by an order having the force of an Act.

11. Paragraphs 1 to 3 and 5 to 9 above shall have effect subject to any such Act or order as is mentioned in paragraph 10 above, and any such Act or order may apply to the tramcars or trolley vehicles to which it relates any of the provisions excluded by those paragraphs except sections 47, 48 and 66 of this Act.